

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

– vs. –

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO.: 1953(I)

KAIRAT NURGAZINOV,

– vs. –

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

**APPENDIX TO COMPLAINANTS’ MOTION FOR AN ENLARGEMENT OF TIME TO
FILE EXCEPTIONS AND FOR OTHER RELIEF**

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| APPENDIX “1” | Docket printout from the matter of <i>Akishev et al. v. Kapustin et al.</i>
(U.S.D.C. – D.N.J. Docket No.: 1:13-cv-07152-NLH-AMD) |
| APPENDIX “2” | Complainants’ Status Report of January 15, 2017 |
| APPENDIX “3” | Docket printout from the matter of <i>United States of America v. Sergey Kapustin</i> (U.S.D.C. – D.N.J. Docket No.: 2:16-MJ-03662-MF) |

APPENDIX “1”

U.S. District Court
District of New Jersey [LIVE] (Camden)
CIVIL DOCKET FOR CASE #: 1:13-cv-07152-NLH-AMD

AKISHEV et al v. KAPUSTIN et al
Assigned to: Judge Noel L. Hillman
Referred to: Magistrate Judge Ann Marie Donio
Related Case: [1:16-cv-00530-NLH-AMD](#)
Case in other court: 3rd circuit, 16-01095
Cause: 18:1961 Racketeering (RICO) Act

Date Filed: 11/25/2013
Jury Demand: Both
Nature of Suit: 470 Racketeer/Corrupt
Organization
Jurisdiction: Federal Question

Movant

TRT INTERNATIONAL LTD.

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Plaintiff**ALEXEY BATALOV**

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Plaintiff**IGOR GLAZUNOV**

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Plaintiff

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Plaintiff**VIKTOR MANIASHIN**

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YEGOR ZADOROZHNIY

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Defendant

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Defendant

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Defendant

GLOBAL CARGO OY

Defendant

JOHN DOES (1-10)

Defendant

DOE ENTITIES (1-10)

Claimant Consolidated

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Creditor

Attorney Jeff Goldsmith

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Intervenor

DK International Trading Inc.

represented by **JEFF H. GOLDSMITH**

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Interested Party

TRUSTEE JEFFREY A. LESTER

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Interested Party

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TERMINATED: 01/20/2017

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Cross Defendant

CARCONT, LTD

Cross Defendant

DOE ENTITIES (1-10)

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Cross Defendant

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Cross Defendant

JOHN DOES (1-10)

Cross Defendant

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Cross Defendant**SERGEY KAPUSTIN**represented by **SERGEY KAPUSTIN**
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*TERMINATED: 05/05/2015**LEAD ATTORNEY**ATTORNEY TO BE NOTICED***Cross Claimant****SERGEY KAPUSTIN**represented by **JAMES STEVEN DOBIS**

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*TERMINATED: 05/05/2015**LEAD ATTORNEY**ATTORNEY TO BE NOTICED*

V.

Cross Defendant**CARCONT, LTD****Cross Defendant****EMPIRE UNITED LINES, CO., INC.**represented by **JON WERNER**

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*LEAD ATTORNEY**ATTORNEY TO BE NOTICED***Cross Defendant****CARCONT, LTD****Cross Defendant****EMPIRE UNITED LINES, CO., INC.**represented by **JON WERNER**

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*LEAD ATTORNEY**ATTORNEY TO BE NOTICED*

Date Filed	#	Docket Text
11/25/2013	<u>1</u>	COMPLAINT against MICHAEL B. CAMPAGNA, CARCONT, LTD, DOE ENTITIES (1-10), EFFECT AUTO SALES, INC., EMPIRE UNITED LINES, CO., INC., G AUTO SALES, INC., GLOBAL AUTO, INC., GLOBAL CARGO OY, GLOBAL CARS, INC., MICHAEL GOLOVERYA, MICHAEL HITRINOV, JOHN DOES (1-10), IRINA KAPUSTIN, SERGEY KAPUSTIN, VLADIMIR SHTEYN, SK IMPORTS, INC., IGOR ZADOROZHNIY (Filing and Admin fee \$ 400 receipt number 0312-5373880) with JURY DEMAND, filed by NATALIA KIRIK, YURIY YAMKOVIY, IGOR GLAZUNOV, VIKTOR MANIASHIN, ARDAK AKISHEV, ALLA YAMKOVAYA, EVGENIY

		KONDRATUK, ZHANDOS ALIAKPAROV, ANDREY KIRIK, EDUARD LISITSYN, MIKHAIL MATVEEV, ALEXEY BATALOV. (Attachments: # 1 Civil Cover Sheet, # 2 Exhibit 1, # 3 Exhibit 2, # 4 Exhibit 3, # 5 Exhibit 4)(bdk,) (Entered: 11/26/2013)
11/25/2013	2	SUMMONS ISSUED as to MICHAEL B. CAMPAGNA, CARCONT, LTD, EFFECT AUTO SALES, INC., EMPIRE UNITED LINES, CO., INC., G AUTO SALES, INC., GLOBAL AUTO, INC., GLOBAL CARGO OY, GLOBAL CARS, INC., MICHAEL GOLOVERYA, MICHAEL HITRINOV, IRINA KAPUSTIN, SERGEY KAPUSTIN, VLADIMIR SHTEYN, SK IMPORTS, INC., IGOR ZADOROZHNIY Attached is the official court Summons, please fill out Defendant and Plaintiffs attorney information and serve. Issued By *Brian D. Kemner* (bdk,) (Entered: 11/26/2013)
12/16/2013	3	Letter. (Attachments: # 1 Exhibit)(BROWN, ANNA) (Entered: 12/16/2013)
12/21/2013	4	SUMMONS Returned Executed by NATALIA KIRIK, YURIY YAMKOVYI, IGOR GLAZUNOV, VIKTOR MANIASHIN, ARDAK AKISHEV, ALLA YAMKOVAYA, EVGENIY KONDRATUK, ZHANDOS ALIAKPAROV, ANDREY KIRIK, EDUARD LISITSYN, MIKHAIL MATVEEV, ALEXEY BATALOV. SERGEY KAPUSTIN served on 12/2/2013, answer due 12/23/2013. (BROWN, ANNA) (Entered: 12/21/2013)
12/21/2013	5	SUMMONS Returned Executed by NATALIA KIRIK, YURIY YAMKOVYI, IGOR GLAZUNOV, VIKTOR MANIASHIN, ARDAK AKISHEV, ALLA YAMKOVAYA, EVGENIY KONDRATUK, ZHANDOS ALIAKPAROV, ANDREY KIRIK, EDUARD LISITSYN, MIKHAIL MATVEEV, ALEXEY BATALOV. MICHAEL GOLOVERYA served on 12/2/2013, answer due 12/23/2013. (BROWN, ANNA) (Entered: 12/21/2013)
12/21/2013	6	SUMMONS Returned Executed by NATALIA KIRIK, YURIY YAMKOVYI, IGOR GLAZUNOV, VIKTOR MANIASHIN, ARDAK AKISHEV, ALLA YAMKOVAYA, EVGENIY KONDRATUK, ZHANDOS ALIAKPAROV, ANDREY KIRIK, EDUARD LISITSYN, MIKHAIL MATVEEV, ALEXEY BATALOV. IRINA KAPUSTIN served on 12/2/2013, answer due 12/23/2013. (BROWN, ANNA) (Entered: 12/21/2013)
01/09/2014	7	STIPULATION re 1 Complaint,, <i>Extending Time to File Answer to Plaintiffs' Complaint to 1/20/14</i> by EFFECT AUTO SALES, INC., G AUTO SALES, INC., GLOBAL AUTO, INC., GLOBAL CARS, INC., MICHAEL GOLOVERYA, IRINA KAPUSTIN, SERGEY KAPUSTIN, SK IMPORTS, INC.. (DOBIS, JAMES) (Entered: 01/09/2014)
01/09/2014	8	STIPULATION AND ORDER extending time to answer Plaintiff's Complaint to 1/20/2014. Signed by Magistrate Judge Ann Marie Donio on 1/9/2014. (tf,) (Entered: 01/09/2014)
01/10/2014	9	NOTICE of Appearance by JAMES STEVEN DOBIS on behalf of EFFECT AUTO SALES, INC., G AUTO SALES, INC., GLOBAL AUTO, INC., GLOBAL CARS, INC., MICHAEL GOLOVERYA, IRINA KAPUSTIN, SERGEY KAPUSTIN, SK IMPORTS, INC. (DOBIS, JAMES) (Entered: 01/10/2014)
01/20/2014	10	MOTION to Stay <i>or for Alternative Relief</i> by EFFECT AUTO SALES, INC., G AUTO SALES, INC., GLOBAL AUTO, INC., GLOBAL CARS, INC., MICHAEL GOLOVERYA, IRINA KAPUSTIN, SERGEY KAPUSTIN, SK IMPORTS, INC.. (Attachments: # 1 Brief, # 2 Declaration of James S. Dobis, # 3 Exhibit A to Declaration of James Dobis, # 4 Exhibit B (2 of 4) to Declaration of James Dobis, # 5 Exhibit B (3 of 4) to Declaration of James Dobis, # 6 Exhibit B (4 of 4) to Declaration of James Dobis, # 7 Exhibit C to Declaration of James Dobis, # 8 Exhibit D to Declaration of James Dobis, # 9 Certificate

		of Service, # 10 Text of Proposed Order, # 11 Exhibit B (1 of 4) to Declaration of James Dobis)(DOBIS, JAMES) (Entered: 01/20/2014)
01/21/2014		Set Deadlines as to 10 MOTION to Stay <i>or for Alternative Relief</i> . Motion set for 2/18/2014 before Magistrate Judge Ann Marie Donio. The motion will be decided on the papers. No appearances required unless notified by the court. (drw) (Entered: 01/21/2014)
01/22/2014	11	APPLICATION/PETITION for Admission Pro Hac Vice for by EFFECT AUTO SALES, INC., G AUTO SALES, INC., GLOBAL AUTO, INC., GLOBAL CARS, INC., MICHAEL GOLOVERYA, IRINA KAPUSTIN, SERGEY KAPUSTIN, SK IMPORTS, INC.. (Attachments: # 1 Declaration of Boris Parker, # 2 Exhibit Certificates of Good Standing, # 3 Text of Proposed Order)(DOBIS, JAMES) (Entered: 01/22/2014)
01/23/2014		CLERK'S QUALITY CONTROL MESSAGE - Please be advised that the Application/Petition for Pro Hac admission # 11 on 1/22/2014 should be filed as a Motion. PLEASE RESUBMIT THE DOCUMENT USING THE EVENT *MOTION TO APPEAR PRO HAC VICE*. In addition, the Declaration #11-1 contains an improper signature. Only the filing user is permitted to sign electronically filed documents with an s/. PLEASE RESUBMIT THE DECLARATION WITH A SCANNED SIGNATURE. This submission will remain on the docket unless otherwise ordered by the court. (tf,) (Entered: 01/23/2014)
01/23/2014	12	CLERK'S ORDER TO REFUND FEES. Signed by Theresa Burnett Chief Deputy Clerk on 01/17/2014. (ck) (Entered: 01/23/2014)
01/24/2014	13	MOTION for Leave to Appear Pro Hac Vice <i>on behalf of Boris Parker, Esq.</i> by EFFECT AUTO SALES, INC., G AUTO SALES, INC., GLOBAL AUTO, INC., GLOBAL CARS, INC., MICHAEL GOLOVERYA, IRINA KAPUSTIN, SERGEY KAPUSTIN, SK IMPORTS, INC.. (Attachments: # 1 Certification James S. Dobis, # 2 Declaration Boris Parker, # 3 Exhibit Certificate of Good Standing, # 4 Text of Proposed Order)(DOBIS, JAMES) (Entered: 01/24/2014)
01/24/2014		Set Deadlines as to 13 MOTION for Leave to Appear Pro Hac Vice <i>on behalf of Boris Parker, Esq.</i> Motion set for 2/18/2014 before Magistrate Judge Ann Marie Donio. The motion will be decided on the papers. No appearances required unless notified by the court. (tf,) (Entered: 01/24/2014)
01/27/2014	14	ORDER granting 13 Motion for Leave to Appear Pro Hac Vice as to Boris Parker, Esquire. Shall make a payment of \$150.00, payable to the Clerk, United States District Court. Signed by Magistrate Judge Ann Marie Donio on 1/27/2014. (tf,) (Entered: 01/27/2014)
01/30/2014		Pro Hac Vice fee as to Boris Parker: \$ 150, receipt number CAM3646. (js) (Entered: 01/31/2014)
02/04/2014	15	MEMORANDUM in Opposition filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, IGOR GLAZUNOV, ANDREY KIRIK, NATALIA KIRIK, EVGENIY KONDRATUK, EDUARD LISITSYN, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALLA YAMKOVAYA, YURIY YAMKOVYI, IRINA GLAZUNOVA re 10 MOTION to Stay <i>or for Alternative Relief</i> (Attachments: # 1 Declaration, # 2 Exhibit, # 3 Exhibit, # 4 Certificate of Service)(BROWN, ANNA) (Entered: 02/04/2014)
02/04/2014	16	Request for Default by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, EVGENIY KONDRATUK, EDUARD LISITSYN, VIKTOR MANIASHIN,

		MIKHAIL MATVEEV, ALLA YAMKOVAYA, YURIY YAMKOVIY against Defendants Sergey Kapustin, Irina Kapustin, Michael Goloverya a/k/a Mikhail Goloverya, G Auto Sales, Inc., Global Auto Inc., Effect Auto Sales, Inc., Global Cars, Inc., SK Imports, Inc.. (Attachments: # 1 Certification, # 2 Exhibit)(BROWN, ANNA) (Entered: 02/04/2014)
02/11/2014	17	Notice of Request by Pro Hac Vice Boris Parker to receive Notices of Electronic Filings. (DOBIS, JAMES) (Entered: 02/11/2014)
02/11/2014	18	MEMORANDUM in Support filed by EFFECT AUTO SALES, INC., G AUTO SALES, INC., GLOBAL AUTO, INC., GLOBAL CARS, INC., MICHAEL GOLOVERYA, IRINA KAPUSTIN, SERGEY KAPUSTIN, SK IMPORTS, INC. re 10 MOTION to Stay <i>or for Alternative Relief</i> (Attachments: # 1 Declaration, # 2 Exhibit A, # 3 Exhibit B, # 4 Exhibit C, # 5 Certificate of Service)(DOBIS, JAMES) (Entered: 02/11/2014)
02/18/2014	19	Letter from James S. Dobis re 16 Request for Default,. (Attachments: # 1 Exhibit A)(DOBIS, JAMES) (Entered: 02/18/2014)
02/20/2014	20	TEXT ORDER Setting Hearing on Motion: The Court will conduct oral argument on the motion to stay or for alternative relief 10 on 3/5/2014 at 3:00 PM in Camden - Courtroom 3B before Magistrate Judge Ann Marie Donio. The Court shall also address the Request for Default 16 at that time. ORDERED by Magistrate Judge Ann Marie Donio on 2/20/2014. (slc) (Entered: 02/20/2014)
02/21/2014	21	MOTION for Leave to File <i>SUR-REPLY BRIEF IN OPPOSITION TO DEFENDANTS MOTION TO STAY</i> by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, EVGENIY KONDRATUK, EDUARD LISITSYN, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALLA YAMKOVAYA, YURIY YAMKOVIY. (Attachments: # 1 Brief, # 2 Certification)(BROWN, ANNA) (Entered: 02/21/2014)
02/24/2014		Set Deadlines as to 21 MOTION for Leave to File <i>SUR-REPLY BRIEF IN OPPOSITION TO DEFENDANTS MOTION TO STAY</i> . Motion set for 3/17/2014 before Magistrate Judge Ann Marie Donio. The motion will be decided on the papers. No appearances required unless notified by the court. (tf,) (Entered: 02/24/2014)
02/24/2014	22	Exhibit to 21 Motion for Leave to File, by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, EVGENIY KONDRATUK, EDUARD LISITSYN, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALLA YAMKOVAYA, YURIY YAMKOVIY. (BROWN, ANNA) (Entered: 02/24/2014)
02/25/2014	23	ORDERED that Plaintiffs' 21 motion for leave to file a surreply shall be, and hereby is, GRANTED; and it is further ORDERED that any surreply shall be filed by no later than 3:00 P.M. on March 4, 2014. Signed by Magistrate Judge Ann Marie Donio on 2/25/2014. (tf,) (Entered: 02/25/2014)
02/25/2014	24	RESPONSE to Motion filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, EVGENIY KONDRATUK, EDUARD LISITSYN, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALLA YAMKOVAYA, YURIY YAMKOVIY re 10 MOTION to Stay <i>or for Alternative Relief</i> (Attachments: # 1 Certification)(BROWN, ANNA) (Entered: 02/25/2014)

03/04/2014	25	Letter. (DOBIS, JAMES) (Entered: 03/04/2014)
03/05/2014	26	Minute Entry for proceedings held before Magistrate Judge Ann Marie Donio: Motion Hearing held on 3/5/2014 re 10 MOTION to Stay. Decision Reserved. (CD #677.) (tf,) (Entered: 03/06/2014)
04/04/2014	27	AMENDED COMPLAINT against All Defendants All Defendants., filed by NATALIA KIRIK, YURIY YAMKOVYI, IGOR GLAZUNOV, VIKTOR MANIASHIN, ARDAK AKISHEV, ALLA YAMKOVAYA, EVGENIY KONDRATUK, IRINA GLAZUNOVA, ZHANDOS ALIAKPAROV, ANDREY KIRIK, EDUARD LISITSYN, MIKHAIL MATVEEV, ALEXEY BATALOV. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Exhibit 6, # 7 Exhibit 7, # 8 Exhibit 8, # 9 Exhibit 9, # 10 Exhibit 10, # 11 Exhibit 11, # 12 Exhibit 12, # 13 Exhibit 13, # 14 Exhibit 14, # 15 Exhibit 15, # 16 Exhibit 16, # 17 Exhibit 17, # 18 Exhibit 18, # 19 Exhibit 19, # 20 Exhibit 20, # 21 Exhibit 21, # 22 Exhibit 22, # 23 Exhibit 23, # 24 Exhibit 24, # 25 Exhibit 25, # 26 Exhibit 26, # 27 Exhibit 27, # 28 Exhibit 28, # 29 Exhibit 29, # 30 Exhibit 30, # 31 Exhibit 31, # 32 Exhibit 32, # 33 Exhibit 33, # 34 Exhibit 34, # 35 Exhibit 35, # 36 Exhibit 36, # 37 Exhibit 37, # 38 Exhibit 38, # 39 Exhibit 39, # 40 Exhibit 40, # 41 Exhibit 41, # 42 Exhibit 42, # 43 Exhibit 43, # 44 Exhibit 44, # 45 Exhibit 45, # 46 Translator's Certificate of Accuracy)(BROWN, ANNA) (Entered: 04/04/2014)
04/22/2014	28	SUMMONS Returned Executed by YURIY YAMKOVYI, EVGENIY TELIN, IGOR GLAZUNOV, VIKTOR MANIASHIN, ARDAK AKISHEV, ARKADIY KOLBIN, ELENA ZVEREVA, EVGENIY BORZENKO, ALEXANDER ZHILINSKIY, NATALIA KIRIK, MIKHAIL ZVEREV, EVGENIY KONDRATUK, ALLA YAMKOVAYA, IRINA GLAZUNOVA, ZHANDOS ALIAKPAROV, ALEXANDER PUKIR, ANDREY KIRIK, EDUARD LISITSYN, VLADIMIR LUKYANOV, MIKHAIL MATVEEV, ALEXEY BATALOV. VLADIMIR SHTEYN served on 4/9/2014, answer due 4/30/2014. (BROWN, ANNA) (Entered: 04/22/2014)
04/25/2014	29	ACKNOWLEDGMENT OF SERVICE Executed for IGOR ZADOROZHNIY, CARCONT, LTD and GLOBAL CARGO OY filed by Plaintiffs (tf,) (Entered: 04/25/2014)
05/02/2014	30	Letter from counsel for Plaintiffs to Judge Donio re 10 MOTION to Stay <i>or for Alternative Relief</i> , 15 Memorandum in Opposition of Motion,. (Attachments: # 1 Exhibit Excerpts from the docket in EDNY Action)(BROWN, ANNA) (Entered: 05/02/2014)
05/19/2014	31	Certified Mail Receipt Returned sent to GLOBAL CARGO OY, IGOR ZADOROZHNIY re 29 Acknowledgment of Service (tf,) (Entered: 05/19/2014)
05/28/2014	32	MEMORANDUM OPINION AND ORDER: ORDERED that Defendants' motion to stay and for alternative relief 10 is DENIED WITHOUT PREJUDICE to the extent Defendants seek to stay this litigation pending resolution of the E.D.N.Y. action; and it is further ORDERED that Defendants' motion to stay and for alternative relief 10 is DENIED to the extent Defendants request that the Court conduct an early initial scheduling conference; and it is further ORDERED that Defendants' motion to stay and for alternative relief 10 is GRANTED to the extent Defendants seek an extension of time within which to answer, move, or otherwise respond to Plaintiffs' complaint; and it is further ORDERED that Plaintiffs' request for the entry of default with respect to all Defendants 16 is DENIED WITHOUT PREJUDICE. Signed by Magistrate Judge Ann Marie Donio on 5/28/2014. (tf,) (Entered: 05/28/2014)
05/28/2014	33	ORDERED that the Court shall conduct a telephone conference at 11:30 A.M. on 6/5/2014, at

		which time the Court shall address Plaintiffs' amended complaint and the time frame for Defendants' response. Signed by Magistrate Judge Ann Marie Donio on 5/28/2014. (tf,) (Entered: 05/28/2014)
06/03/2014	34	MOTION for Preliminary Injunction <i>FOR AN ORDER TO FREEZE THE ASSETS OF DEFENDANTS AND EXPEDITED DISCOVERY RELATED TO THE ASSETS</i> by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (Attachments: # 1 Brief IN SUPPORT OF MOTION FOR AN ORDER TO FREEZE THE ASSETS OF DEFENDANTS AND EXPEDITED DISCOVERY RELATED TO THE ASSETS, # 2 Certification, # 3 Exhibit 1, # 4 Exhibit 2, # 5 Exhibit 3, # 6 Exhibit 4, # 7 Exhibit 5, # 8 Exhibit 6, # 9 Text of Proposed Order)(BROWN, ANNA) (Entered: 06/03/2014)
06/04/2014		Set Deadlines as to 34 MOTION for Preliminary Injunction <i>FOR AN ORDER TO FREEZE THE ASSETS OF DEFENDANTS AND EXPEDITED DISCOVERY RELATED TO THE ASSETS</i> . Motion set for 7/7/2014 before Judge Noel L. Hillman. The motion will be decided on the papers. No appearances required unless notified by the court. (tf,) (Entered: 06/04/2014)
06/05/2014	35	ORDER deeming Pltfs' 27 Amended Complaint filed as of 5/28/2014. Defts shall answer/move/otherwise respond to the amended complaint by 6/30/2014. Pltfs' oral application for a Federal Rule of Civil Procedure 16 conference is DENIED W/OUT PREJUDICE. Signed by Magistrate Judge Ann Marie Donio on 6/5/2014. (drw) (Entered: 06/05/2014)
06/05/2014	36	Minute Entry for proceedings held before Magistrate Judge Ann Marie Donio: Telephone Status Conference held on 6/5/2014. Order to be entered. (CD #682.) (drw) (Entered: 06/06/2014)
06/10/2014	37	Mail Returned as Undeliverable. Mail (re: # 29) sent to CARCONT, LTD (tf,) (Entered: 06/10/2014)
06/10/2014	38	CONSENT & REGISTRATION FORM to Receive Documents Electronically by VLADIMIR SHTEYN (tf,) (Entered: 06/10/2014)
06/10/2014	39	MOTION to Appoint Pro Bono by VLADIMIR SHTEYN. (tf,) (Entered: 06/10/2014)
06/10/2014		Set Deadlines as to 39 MOTION to Appoint Pro Bono. Motion set for 7/7/2014 before Magistrate Judge Ann Marie Donio. The motion will be decided on the papers. No appearances required unless notified by the court. (tf,) (Entered: 06/10/2014)
06/11/2014	40	ORDER denying without prejudice 39 Motion to Appoint Pro Bono Counsel. Signed by Magistrate Judge Ann Marie Donio on 6/11/2014. (tf, n.m.) (Entered: 06/11/2014)
06/11/2014	41	Application and Proposed Order for Clerk's Order to extend time to answer as to VLADIMIR SHTEYN.. (tf,) (Entered: 06/11/2014)
06/11/2014		Clerk's Text Order - The document 41 Application for Clerk's Order to Ext Answer/Proposed Order submitted by VLADIMIR SHTEYN has been GRANTED. The answer due date has been set for 7/14/2014. (tf,) (Entered: 06/11/2014)
06/11/2014	42	Letter from James S. Dobis re Set/Reset Motion and R&R Deadlines/Hearings, 34 MOTION

		for Preliminary Injunction <i>FOR AN ORDER TO FREEZE THE ASSETS OF DEFENDANTS AND EXPEDITED DISCOVERY RELATED TO THE ASSETS</i> . (DOBIS, JAMES) (Entered: 06/11/2014)
06/12/2014	43	SUMMONS Returned Executed by YURIY YAMKOVIIY, EVGENIY TELIN, IGOR GLAZUNOV, VIKTOR MANIASHIN, ARDAK AKISHEV, ARKADIY KOLBIN, ELENA ZVEREVA, EVGENIY BORZENKO, ALEXANDER ZHILINSKIY, NATALIA KIRIK, MIKHAIL ZVEREV, EVGENIY KONDRATUK, ALLA YAMKOVAYA, IRINA GLAZUNOVA, ZHANDOS ALIAKPAROV, ALEXANDER PUKIR, ANDREY KIRIK, EDUARD LISITSYN, VLADIMIR LUKYANOV, MIKHAIL MATVEEV, ALEXEY BATALOV. MICHAEL HITRINOV served on 5/20/2014, answer due 6/10/2014. (BROWN, ANNA) (Entered: 06/12/2014)
06/12/2014	44	SUMMONS Returned Executed by YURIY YAMKOVIIY, EVGENIY TELIN, IGOR GLAZUNOV, VIKTOR MANIASHIN, ARDAK AKISHEV, ARKADIY KOLBIN, ELENA ZVEREVA, BORIS PARKER, EVGENIY BORZENKO, ALEXANDER ZHILINSKIY, NATALIA KIRIK, MIKHAIL ZVEREV, EVGENIY KONDRATUK, ALLA YAMKOVAYA, IRINA GLAZUNOVA, ZHANDOS ALIAKPAROV, ALEXANDER PUKIR, ANDREY KIRIK, EDUARD LISITSYN, VLADIMIR LUKYANOV, MIKHAIL MATVEEV, ALEXEY BATALOV. EMPIRE UNITED LINES, CO., INC. served on 5/20/2014, answer due 6/10/2014. (BROWN, ANNA) (Entered: 06/12/2014)
06/12/2014	45	SUMMONS Returned Executed by YURIY YAMKOVIIY, EVGENIY TELIN, IGOR GLAZUNOV, VIKTOR MANIASHIN, ARDAK AKISHEV, ARKADIY KOLBIN, ELENA ZVEREVA, EVGENIY BORZENKO, ALEXANDER ZHILINSKIY, NATALIA KIRIK, MIKHAIL ZVEREV, EVGENIY KONDRATUK, ALLA YAMKOVAYA, IRINA GLAZUNOVA, ZHANDOS ALIAKPAROV, ALEXANDER PUKIR, ANDREY KIRIK, EDUARD LISITSYN, VLADIMIR LUKYANOV, MIKHAIL MATVEEV, ALEXEY BATALOV. CARCONT, LTD served on 5/20/2014, answer due 6/10/2014. (BROWN, ANNA) (Entered: 06/12/2014)
06/12/2014	46	Letter from counsel for Plaintiffs to Judge Donio Regarding Status of Service of the Amended Complaint re 35 Order,. (Attachments: # 1 Exhibit)(BROWN, ANNA) (Entered: 06/12/2014)
06/13/2014	47	TEXT ORDER Upon receipt of the June 11, 2014 letter from James Dobis, Esquire, counsel for Defendants, seeking a two-week adjournment of Plaintiff's motion [Doc. No. 34] for a preliminary injunction, and requesting a new return date of July 21, 2014; and the Court noting that all parties have consented to this request: Accordingly, IT IS on this 13th day of June, 2014, hereby ORDERED that Defendants' request shall be and hereby is GRANTED; and it is further ORDERED that Defendants shall file their opposition papers by July 7, 2014, and Plaintiffs shall file their reply papers by July 14, 2014. Ordered by Judge Noel L. Hillman on 6/13/2014. (gn). (dd,) (Entered: 06/13/2014)
06/30/2014	48	MOTION to Dismiss <i>for Misjoinder or in the Alternative for Failure to State a Claim</i> by EFFECT AUTO SALES, INC., G AUTO SALES, INC., GLOBAL AUTO, INC., GLOBAL CARS, INC., MICHAEL GOLOVERYA, IRINA KAPUSTIN, SERGEY KAPUSTIN, SK IMPORTS, INC.. Responses due by 7/21/2014 (Attachments: # 1 Certification of James S. Dobis, # 2 Brief Memorandum of Law, # 3 Text of Proposed Order, # 4 Certificate of Service)(DOBIS, JAMES) (Entered: 06/30/2014)
07/01/2014		Set Deadlines as to 48 MOTION to Dismiss <i>for Misjoinder or in the Alternative for Failure to State a Claim</i> . Motion set for 8/4/2014 before Judge Noel L. Hillman. The motion will be

		decided on the papers. No appearances required unless notified by the court. (tf,) (Entered: 07/01/2014)
07/07/2014	49	MEMORANDUM in Opposition filed by EFFECT AUTO SALES, INC., G AUTO SALES, INC., GLOBAL AUTO, INC., GLOBAL CARS, INC., MICHAEL GOLOVERYA, IRINA KAPUSTIN, SERGEY KAPUSTIN, SK IMPORTS, INC. re 34 MOTION for Preliminary Injunction <i>FOR AN ORDER TO FREEZE THE ASSETS OF DEFENDANTS AND EXPEDITED DISCOVERY RELATED TO THE ASSETS</i> (Attachments: # 1 Declaration of Sergey Kapustin, # 2 Exhibit A, # 3 Exhibit B, # 4 Exhibit C, # 5 Exhibit D, # 6 Index E, # 7 Exhibit F, # 8 Exhibit G, # 9 Index H, # 10 Exhibit I, # 11 Exhibit J, # 12 Exhibit K, # 13 Exhibit L, # 14 Exhibit M, # 15 Exhibit N, # 16 Exhibit O, # 17 Exhibit P, # 18 Exhibit Q, # 19 Exhibit R, # 20 Exhibit S, # 21 Exhibit T, # 22 Certificate of Service)(DOBIS, JAMES) (Entered: 07/07/2014)
07/14/2014	50	REPLY to Response to Motion filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 34 MOTION for Preliminary Injunction <i>FOR AN ORDER TO FREEZE THE ASSETS OF DEFENDANTS AND EXPEDITED DISCOVERY RELATED TO THE ASSETS</i> (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Exhibit 6, # 7 Exhibit 7, # 8 Exhibit 8, # 9 Exhibit 9, # 10 Exhibit 10, # 11 Exhibit 11, # 12 Exhibit 12, # 13 Exhibit 13, # 14 Exhibit 14, # 15 Exhibit 15, # 16 Exhibit 16, # 17 Exhibit 17, # 18 Exhibit 18, # 19 Exhibit 19, # 20 Exhibit 20)(BROWN, ANNA) (Entered: 07/14/2014)
07/14/2014	51	Certification on behalf of ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA Re 50 Reply to Response to Motion,,,. (BROWN, ANNA) (Entered: 07/14/2014)
07/15/2014		NOTICE of Hearing on Motion 34 MOTION for Preliminary Injunction <i>FOR AN ORDER TO FREEZE THE ASSETS OF DEFENDANTS AND EXPEDITED DISCOVERY RELATED TO THE ASSETS</i> : Motion hearing set for 7/31/2014 at 2:00 PM in Camden - Courtroom 3A before Judge Noel L. Hillman. (gn) (Entered: 07/15/2014)
07/18/2014	52	NOTICE of Appearance by SCOTT ALAN KRASNY on behalf of VLADIMIR SHTEYN (KRASNY, SCOTT) (Entered: 07/18/2014)
07/18/2014	53	STIPULATION <i>Extending Time to Answer Plaintiffs' Amended Complaint</i> by VLADIMIR SHTEYN. (KRASNY, SCOTT) (Entered: 07/18/2014)
07/18/2014	54	STIPULATION AND ORDER that the time to answer or otherwise respond to Plaintiffs' Amended Complaint is extended to 7/30/2014. Signed by Magistrate Judge Ann Marie Donio on 7/18/2014. (tf,) (Entered: 07/18/2014)
07/18/2014	55	Letter from Anna V. Brown addressed to Judge Hillman; Re: Requesting Court to reschedule

		hearing. (tf,) (Entered: 07/18/2014)
07/21/2014	56	TEXT ORDER: Letter Upon consideration of the 55 Letter submitted by Anna V. Brown, Esq., counsel for Plaintiffs, requesting that the hearing which is presently scheduled for July 31, 2014 be rescheduled for August 7, 2014; and the Court noting that August 7, 2014 is a convenient date for all counsel: Accordingly, IT IS on this 18th day of July, 2014, hereby ORDERED that Plaintiffs' request shall be and hereby is GRANTED; and it is further ORDERED that the hearing presently scheduled for July 31, 2014 shall be adjourned to August 7, 2014 at 10:00 a.m.. Ordered by Judge Noel L. Hillman on 7/21/2014. (gn) (Entered: 07/21/2014)
07/21/2014	57	RESPONSE to Motion filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVIIY, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 48 MOTION to Dismiss <i>for Misjoinder or in the Alternative for Failure to State a Claim</i> (Attachments: # 1 Exhibit 1, # 2 Certificate of Service)(BROWN, ANNA) (Entered: 07/21/2014)
07/28/2014	58	MEMORANDUM in Support filed by EFFECT AUTO SALES, INC., G AUTO SALES, INC., GLOBAL AUTO, INC., GLOBAL CARGO OY, GLOBAL CARS, INC., IRINA KAPUSTIN, SERGEY KAPUSTIN, SK IMPORTS, INC. re 48 MOTION to Dismiss <i>for Misjoinder or in the Alternative for Failure to State a Claim</i> (Attachments: # 1 Certificate of Service)(DOBIS, JAMES) (Entered: 07/28/2014)
07/30/2014	59	ANSWER to Amended Complaint , CROSSCLAIM against All Defendants by VLADIMIR SHTEYN.(KRASNY, SCOTT) (Entered: 07/30/2014)
07/31/2014		CLERK'S QUALITY CONTROL MESSAGE - When the Answer to Amended Complaint with Crossclaim # 59 was filed by VLADIMIR SHTEYN the against "All Defendants" button was selected causing the defendant to file a Crossclaim against itself. The Clerk has deleted VLADIMIR SHTEYN as a cross-defendant, however, in the future please select each party individually while holding the Control button. This message is for informational purposes only. (tf,) (Entered: 07/31/2014)
07/31/2014	60	Order Initial Conference set for 9/16/2014 10:30 AM in Room 2010 before Magistrate Judge Ann Marie Donio. Signed by Magistrate Judge Ann Marie Donio on 7/31/2014. (tf,) (Entered: 07/31/2014)
08/05/2014	61	NOTICE of Appearance by MARIA TEMKIN on behalf of All Plaintiffs (TEMKIN, MARIA) (Entered: 08/05/2014)
08/07/2014	62	Minute Entry for proceedings held before Judge Noel L. Hillman: In Camera proceedings held on 8/7/2014 re Plaintiff's 34 Motion for Preliminary Injunction for an order to freeze the assets of defendant's and expedited discovery related to the assets and Defendant's 48 Motion to Dismiss for Misjoinder or in the Alternative for Failure to State a Claim. Ordered 34 Motion Granted in part as to expedited discovery, Denied in part w/o prejudice. Ordered 48 Motion Denied without prejudice. Ordered plaintiff's supplemental letter brief due August 25, 2014 and defendant's letter response due September 2, 2014. Evidentiary hearing set for Friday, September 5, 2014 at 10:00 a.m., Courtroom 3A. (Court Reporter/Recorder Robert Tate.) (tf,) (Entered: 08/07/2014)

08/15/2014	63	Transcript of Proceedings held on 8/7/2014, before Judge NOEL L. HILLMAN. Court Reporter/Transcriber Bob Tate (609-462-4384). NOTICE REGARDING REDACTION OF TRANSCRIPTS: The parties have seven (7) calendar days to file with the Court a Notice of Intent to Request Redaction of this Transcript. Redaction Request due 9/5/2014. Redacted Transcript Deadline set for 9/15/2014. Release of Transcript Restriction set for 11/13/2014. (drw) (Entered: 08/19/2014)
08/25/2014	64	Letter from counsel for Plaintiffs to Judge Hillman Submitting Further Documents in Support of Plaintiffs Motion for an Order to Freeze the Assets of Defendants re 62 Motion Hearing,, 34 MOTION for Preliminary Injunction <i>FOR AN ORDER TO FREEZE THE ASSETS OF DEFENDANTS AND EXPEDITED DISCOVERY RELATED TO THE ASSETS</i> . (Attachments: # 1 Certification Certification of Anna Brown, # 2 Exhibit A - Plaintiffs Document Requests, # 3 Exhibit B - Defendants Responses to Document Requests, # 4 Supplement Aliakparov Documents, # 5 Supplement Batalov Documents, # 6 Supplement Borzenko Documents, # 7 Supplement Glazunov Documents, # 8 Supplement Kiriks Documents, # 9 Supplement Kolbin Documents, # 10 Supplement Kondratyuk Documents, # 11 Supplement Lisitsyn Documents, # 12 Supplement Lukyanov Documents, # 13 Supplement Maniashin Documents, # 14 Supplement Matveev Documents, # 15 Supplement Pukir Documents, # 16 Supplement Telin Documents, # 17 Supplement Yamkoviy Documents, # 18 Supplement Zhilinskiy Documents, # 19 Supplement Zverevs Documents, # 20 Supplement Akishev Documents, # 21 Certification Translator's Certification of Accuracy)(BROWN, ANNA) (Entered: 08/25/2014)
09/02/2014	65	MEMORANDUM in Opposition filed by EFFECT AUTO SALES, INC., G AUTO SALES, INC., GLOBAL AUTO, INC., GLOBAL CARS, INC., MICHAEL GOLOVERYA, IRINA KAPUSTIN, SERGEY KAPUSTIN, SK IMPORTS, INC. re 34 MOTION for Preliminary Injunction <i>FOR AN ORDER TO FREEZE THE ASSETS OF DEFENDANTS AND EXPEDITED DISCOVERY RELATED TO THE ASSETS (Supplemental Memorandum)</i> (Attachments: # 1 Declaration Sergey Kapustin, # 2 Exhibit 1, # 3 Exhibit 2, # 4 Exhibit 3, # 5 Exhibit 4, # 6 Exhibit 6, # 7 Exhibit 7, # 8 Exhibit 8, # 9 Exhibit 9, # 10 Exhibit 10, # 11 Exhibit 11, # 12 Exhibit 12, # 13 Exhibit 13, # 14 Exhibit 14, # 15 Exhibit 15, # 16 Exhibit 16-1, # 17 Exhibit 16-2, # 18 Exhibit 17, # 19 Exhibit 18, # 20 Exhibit 19, # 21 Exhibit 20, # 22 Exhibit 21, # 23 Exhibit 22, # 24 Exhibit 23, # 25 Exhibit 24, # 26 Exhibit 25, # 27 Exhibit 26, # 28 Certificate of Service)(DOBIS, JAMES) (Entered: 09/02/2014)
09/05/2014	66	Minute Entry for proceedings held before Judge Noel L. Hillman: Evidentiary Hearing on Plaintiff's 34 Motion for Preliminary Injunction held on 9/5/2014. Ordered Plaintiff to submit bank statements for court's review no later than Monday, 9/8/2014. Ordered counsel to be available for a continuation of today's evidentiary hearing on Wednesday, 9/10/2014 at a time to be set by the court. (Court Reporter/Recorder Robert Tate.) (tf,) (Entered: 09/08/2014)
09/08/2014	67	Letter from counsel for Plaintiffs to Judge Hillman Submitting Bank Statements of Global Defendants' Bank Accounts in Support of Plaintiffs Motion for an Order to Freeze the Assets of Defendants re 66 Evidentiary Hearing,. (Attachments: # 1 Exhibit Wire Transfers Spreadsheet, # 2 Exhibit Global Cars October 2013 Bank Statement, # 3 Exhibit Global Cars November 2013 Bank Statement, # 4 Exhibit Global Cars December 2013 Bank Statement, # 5 Exhibit Global Cars April 2014 Bank Statement, # 6 Exhibit Global Cars May 2014 Bank Statement, # 7 Exhibit Global Cars June 2014 Bank Statement, # 8 Exhibit Global Cars July 2014 Bank Statement, # 9 Exhibit Global Cars August 2014 Bank Statement, # 10 Exhibit G Auto October 2013 Bank Statement, # 11 Exhibit G Auto November 2013 Bank Statement, #

		12 Exhibit G Auto December 2013 Bank Statement, # 13 Exhibit G Auto May 2014 Bank Statement, # 14 Exhibit G Auto June 2014 Bank Statement, # 15 Exhibit G Auto July 2014 Bank Statement, # 16 Exhibit Global Auto October 2013 Bank Statement, # 17 Exhibit Global Auto November 2013 Bank Statement, # 18 Exhibit Global Auto December 2013 Bank Statement)(TEMKIN, MARIA) (Entered: 09/08/2014)
09/09/2014		NOTICE of Hearing on Motion 34 MOTION for Preliminary Injunction <i>FOR AN ORDER TO FREEZE THE ASSETS OF DEFENDANTS AND EXPEDITED DISCOVERY RELATED TO THE ASSETS</i> :Continuation of Evidentiary Hearing set for 9/10/2014 at 10:30 AM in Camden - Courtroom 3A before Judge Noel L. Hillman. (gn) (Entered: 09/09/2014)
09/09/2014	68	Letter from Scott A. Krasny, Esq.. (KRASNY, SCOTT) (Entered: 09/09/2014)
09/09/2014	69	Letter from counsel for Plaintiffs' opposing Defendant Shteyn's request for continuance of Rule 16 Conference re 68 Letter, 60 Order Initial Scheduling Conference (Camden). (TEMKIN, MARIA) (Entered: 09/09/2014)
09/09/2014	70	Joint Discovery Plan by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVIIY, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (TEMKIN, MARIA) (Entered: 09/09/2014)
09/10/2014	71	CERTIFICATION in Support filed by ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVIIY, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 34 MOTION for Preliminary Injunction <i>FOR AN ORDER TO FREEZE THE ASSETS OF DEFENDANTS AND EXPEDITED DISCOVERY RELATED TO THE ASSETS</i> (Attachments: # 1 Certification Akishev, # 2 Certification Aliakparov, # 3 Certification Batalov, # 4 Certification Borzenko, # 5 Certification Glazunov, # 6 Certification Kirik, # 7 Certification Kondratuk, # 8 Certification Lisitsyn, # 9 Certification Lukyanov, # 10 Certification Maniashin, # 11 Certification Matveev, # 12 Certification Pukir, # 13 Certification Telin, # 14 Certification Yamkoviiy, # 15 Certification Zhilinskiy, # 16 Certification Zverev, # 17 Certification Kolbin, # 18 Exhibit Batalov-9 Autocheck Report, # 19 Exhibit Kondratuk-9 Autocheck Report, # 20 Exhibit Matveev-8 NY DMV Records, # 21 Exhibit Glazunov-7 Translation, # 22 Exhibit Pukir-8 Translation, # 23 Exhibit Pukir-9 Translation)(BROWN, ANNA) (Entered: 09/10/2014)
09/10/2014	72	TEXT ORDER: Upon review of the letter submissions of counsel [68 , 69], the initial scheduling conference on 9/16/2014 at 10:30 AM shall remain as scheduled. Counsel shall report to Courtroom 3B at that time. ORDERED by Magistrate Judge Ann Marie Donio on 9/10/2014. (slc) (Entered: 09/10/2014)
09/10/2014	73	Minute Entry for proceedings held before Judge Noel L. Hillman: Preliminary Injunction Hearing held on 9/10/2014. Local counsel for defendant, James Steven Dobis, Esq., request permission to be excused for today's hearing; Ordered request Granted. On date set aside for a continuation of evidentiary hearing on plaintiff's 34 Motion for preliminary injunction for an order to freeze the assets of defendant's, In Camera preliminary injunction hearing held off the record. Ordered evidentiary preliminary injunction hearing is adjourned for 30 days to allow plaintiff's to

		conduct expedited discovery and for all counsel to comply with terms of agreement as stated on the record. Consent/Protective Order to be submitted by plaintiff's counsel. Evidentiary hearing reset for on Wednesday, October 22, 2014 at 10:30 a.m., Courtroom 3A. (Court Reporter/Recorder Robert Tate.) (tf,) (Entered: 09/10/2014)
09/15/2014	74	Transcript of Proceedings held on 9/10/2014, before Judge NOEL L. HILLMAN. Court Reporter/Transcriber Bob Tate (609-462-4384). NOTICE REGARDING REDACTION OF TRANSCRIPTS: The parties have seven (7) calendar days to file with the Court a Notice of Intent to Request Redaction of this Transcript. Redaction Request due 10/6/2014. Redacted Transcript Deadline set for 10/16/2014. Release of Transcript Restriction set for 12/15/2014. (drw) (Entered: 09/15/2014)
09/15/2014	75	Joint Discovery Plan by MICHAEL B. CAMPAGNA, CARCONT, LTD, DOE ENTITIES (1-10), EFFECT AUTO SALES, INC., EMPIRE UNITED LINES, CO., INC., G AUTO SALES, INC., GLOBAL AUTO, INC., GLOBAL CARGO OY, GLOBAL CARS, INC., MICHAEL GOLOVERYA, MICHAEL HITRINOV, JOHN DOES (1-10), IRINA KAPUSTIN, SERGEY KAPUSTIN, BORIS PARKER, VLADIMIR SHTEYN, SK IMPORTS, INC., IGOR ZADOROZHNIY.(DOBIS, JAMES) (Entered: 09/15/2014)
09/16/2014	76	TEXT ORDER: As set forth on the record, Defendants, Sergey Kapustin, Irina Kapustin, Michael Goloverya, G Auto Sales, Inc., Global Auto, Inc., Effect Auto Sales, Inc., Global Cars, Inc. and SK Imports, Inc., shall file their answer to Plaintiffs' First Amended Complaint by no later than 9/30/2014. ORDERED by Magistrate Judge Ann Marie Donio on 9/16/2014. (slc) (Entered: 09/16/2014)
09/16/2014	77	SCHEDULING ORDER: Telephone Status Conference set for 11/7/2014 12:00 PM before Magistrate Judge Ann Marie Donio. The time within which to file a motion to amend the pleadings or a motion to join new parties will expire on 12/31/2014. Pretrial Factual Discovery extended to 4/30/2015. Signed by Magistrate Judge Ann Marie Donio on 9/16/2014. (tf,) (Entered: 09/16/2014)
09/16/2014	78	RICO CASE ORDER. Signed by Magistrate Judge Ann Marie Donio on 9/16/2014. (tf,) (Entered: 09/16/2014)
09/16/2014	79	Minute Entry for proceedings held before Magistrate Judge Ann Marie Donio: Initial Scheduling Conference held on 9/16/2014. Order to be entered. (Court Reporter/Recorder Electronic Court Recorder.) (tf,) (Entered: 09/17/2014)
09/23/2014	80	STIPULATED CONSENT ORDER, the Court adjourns the hearing on the motion 34 until 10/22/14. Signed by Judge Noel L. Hillman on 9/23/14. (js) (Entered: 09/23/2014)
09/25/2014	81	Proposed Pretrial Order <i>Stipulated Discovery Confidentiality Order</i> by SERGEY KAPUSTIN. (Attachments: # 1 Certification Certification Pursuant to R.5.3(b)(2) in Support of a Stipulated Discovery Confidentiality Order, # 2 Certificate of Service)(DOBIS, JAMES) (Entered: 09/25/2014)
09/30/2014	82	ORDER denying without prejudice 48 Motion to Dismiss. Signed by Judge Noel L. Hillman on 9/30/2014. (tf,) (Entered: 09/30/2014)
09/30/2014	83	ANSWER to Amended Complaint by EFFECT AUTO SALES, INC., G AUTO SALES, INC., GLOBAL AUTO, INC., GLOBAL CARS, INC., MICHAEL GOLOVERYA, IRINA KAPUSTIN, SERGEY KAPUSTIN, SK IMPORTS, INC.. (Attachments: # 1 Certificate of Service)(DOBIS, JAMES) (Entered: 09/30/2014)

10/01/2014	84	TEXT ORDER: Telephone Conference set for 10/6/2014 at 2:15 PM before Magistrate Judge Ann Marie Donio. Counsel for Plaintiffs shall initiate the telephone call. ORDERED by Magistrate Judge Ann Marie Donio on 10/1/2014. (slc) (Entered: 10/01/2014)
10/02/2014		NOTICE: The Court will address the proposed Discovery Confidentiality Order at the upcoming conference call on 10/6/2014. (slc) (Entered: 10/02/2014)
10/03/2014	85	Letter from counsel for Plaintiffs to Judge Hillman Requesting a Hearing to Address Global Defendants Failure to Provide Any Assets Discovery in Violation of the Consent Order re 80 Order. (Attachments: # 1 Exhibit 1 - September 10 Hearing Transcript, # 2 Exhibit 2 - Consent Order, # 3 Exhibit 3- Plaintiffs' Discovery Requests)(TEMKIN, MARIA) (Entered: 10/03/2014)
10/06/2014		CLERK'S QUALITY CONTROL MESSAGE - Please be advised the Exhibit 85-1 submitted by M. Temkin on 10/3/2014 is not filed pursuant to the Courts Transcript Policy. Only certified official court reporters or transcription agencies are permitted to electronically file official court transcripts. The Clerks office has removed this document pursuant to the procedure of the Court and at the Courts direction. This message is for informational purposes. (tf,) (Entered: 10/06/2014)
10/06/2014	86	Minute Entry for proceedings held before Magistrate Judge Ann Marie Donio: Telephone Status Conference held on 10/6/2014. (Court Reporter/Recorder Electronic Court Recorder.) (tf,) (Entered: 10/06/2014)
10/07/2014	87	Stipulated Discovery Confidentiality Order. Signed by Magistrate Judge Ann Marie Donio on 10/7/2014. (tf,) (Entered: 10/07/2014)
10/07/2014	88	AMENDED ANSWER to Complaint with JURY DEMAND , First CROSSCLAIM against CARCONT, LTD, EMPIRE UNITED LINES, CO., INC., MICHAEL HITRINOV by IRINA KAPUSTIN, MICHAEL GOLOVERYA, SERGEY KAPUSTIN, SK IMPORTS, INC., GLOBAL CARS, INC., G AUTO SALES, INC., EFFECT AUTO SALES, INC., GLOBAL AUTO, INC.. (Attachments: # 1 Certificate of Service)(DOBIS, JAMES) (Entered: 10/07/2014)
10/10/2014	89	Letter from Boris Parker, Esq.. (DOBIS, JAMES) (Entered: 10/10/2014)
10/14/2014	90	Letter from counsel for Plaintiffs to Judge Hillman re 85 Letter, 89 Letter. (TEMKIN, MARIA) (Entered: 10/14/2014)
10/15/2014	91	Letter from counsel for Plaintiffs to Judge Donio Regarding Status of Parties' Conference On Discovery of Digital Information re 77 Scheduling Order,. (TEMKIN, MARIA) (Entered: 10/15/2014)
10/17/2014	92	TEXT ORDER: Telephone Conference set for 10/21/2014 at 10:00 AM before Magistrate Judge Ann Marie Donio. Counsel for plaintiffs shall initiate the telephone call. ORDERED by Magistrate Judge Ann Marie Donio on 10/17/2014. (slc) (Entered: 10/17/2014)
10/21/2014	93	Minute Entry for proceedings held before Magistrate Judge Ann Marie Donio: Telephone Status Conference held on 10/21/2014. Order to be entered. (Court Reporter/Recorder Electronic Court Recorder.) (tf,) (Entered: 10/21/2014)
10/21/2014	94	SCHEDULING ORDER: The RICO Case Statement shall be filed by no later than 10/28/2014. Plaintiff's counsel shall forward a letter to the Court by 10/28/2014, stating that the parties have conferred pursuant to L. CIV. R. 26.1(b)(2) and 26.1(d) concerning discovery of

		digital information and advise whether the parties have agreed on computer-based and other digital discovery matters. Signed by Magistrate Judge Ann Marie Donio on 10/21/2014. (tf,) (Entered: 10/21/2014)
10/21/2014	95	ORDER ON INFORMAL APPLICATION: ORDERED that the automatic stay provisions shall apply to the debtor Sergey Kapustin only; and it is further ORDERED that discovery shall proceed as to the remaining defendants. Signed by Magistrate Judge Ann Marie Donio on 10/21/2014. (tf,) (Entered: 10/21/2014)
10/21/2014	96	MOTION to Withdraw as Attorney <i>on behalf of James S. Dobis and Boris Parker</i> by EFFECT AUTO SALES, INC., G AUTO SALES, INC., GLOBAL AUTO, INC., GLOBAL CARS, INC., MICHAEL GOLOVERYA, IRINA KAPUSTIN, SERGEY KAPUSTIN, SK IMPORTS, INC.. (Attachments: # 1 Certification of Counsel, # 2 Exhibit A, # 3 Text of Proposed Order, # 4 Certificate of Service)(DOBIS, JAMES) (Entered: 10/21/2014)
10/22/2014		Set Deadlines as to 96 MOTION to Withdraw as Attorney <i>on behalf of James S. Dobis and Boris Parker</i> . Motion set for 11/17/2014 before Magistrate Judge Ann Marie Donio. The motion will be decided on the papers. No appearances required unless notified by the court. (tf,) (Entered: 10/22/2014)
10/22/2014	97	Minute Entry for proceedings held before Judge Noel L. Hillman: Motion/Status Hearing held on 10/22/2014. Status Hearing held re: compliance with 80 Stipulated Consent Order; Hearing on defendant's 96 Motion to withdraw as attorney; Ordered 96 Motion Denied without prejudice. Ordered defendant's counsel for Sergey Kapustin is directed to disclose financial records on Thursday, October 23, 2015 no later than 5:00 p.m.; Ordered deposition of Sergey Kapustin to be held on Friday, October 24, 2014 at 10:30 a.m., in attorney conference room located outside Courtroom 3A. Order to Show Cause hearing set for Friday, October 24, 2014 at 2:00 p.m., Courtroom 3A as to why Sergey Kapustin shall not be held in contempt. Order to be submitted by plaintiff's counsel. (Court Reporter/Recorder Robert T. Tate.) (tf,) (Entered: 10/23/2014)
10/23/2014	98	Letter from Boris Parker, Esq. re 97 Motion Hearing, Status Conference,,,,,,,,. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Text of Proposed Order Amended Stipulated Consent Order) (DOBIS, JAMES) (Entered: 10/23/2014)
10/23/2014	99	ORDERED that Defendant Sergey Kapustin is ORDERED TO SHOW CAUSE and SHALL appear before the Court on October 24, 2014 at 2 p.m.; Defendants G Auto, Global Auto, Effect Auto, Global Cars, Irina Kapustina and Michael Goloverya, and Sergey Kapustin, in his capacity as the President of Global Cars, SHALL provide verified responses and documents in response to Plaintiffs' expedited asset discovery requests, by 5 p.m. on Thursday, October 23, 2014; Defendant Sergey Kapustin, in his capacity as the President of Global Cars and the officer of Defendants G Auto, Global Auto, Effect Auto SHALL appear for a deposition on October 24, 2014 at 10:30 a.m. in Courtroom 3A; Defendant Irina Kapustina SHALL appear for a deposition at 10:30 a.m. in Courtroom 3A on October 30, 2014; Defendant Michael Goloverya SHALL appear for a deposition at 10:30 a.m. in Courtroom 3A on October 31, 2014; Svetlana Zakirzyanov SHALL appear for a deposition at 2 p.m. in Courtroom 3A on October 31, 2014. Signed by Judge Noel L. Hillman on 10/23/2014. (tf,) (Entered: 10/23/2014)
10/24/2014		CLERK'S QUALITY CONTROL MESSAGE - Please be advised the Exhibit A #98-1 submitted by J. Dobis on 10/23/2014 is not filed pursuant to the Courts Transcript Policy. Only

		certified official court reporters or transcription agencies are permitted to electronically file official court transcripts. The Clerks office has removed this document pursuant to the procedure of the Court and at the Courts direction. This message is for informational purposes. (tf,) (Entered: 10/24/2014)
10/24/2014	100	Minute Entry for proceedings held before Judge Noel L. Hillman: Order to Show Cause Hearing held on 10/24/2014. Order to Show Cause hearing held why the defendant should not be held in contempt or sanctioned for failure to comply with 80 Stipulated Consent Order and Court's 99 Order. Ordered that counsel for defendant is directed to produce to Plaintiff's Counsel and the Court Financial information of S.Kapustin and corporations as of the filing of the motion for preliminary injunction filed on 6/3/2014. Hearing on plaintiff's Oral Motion for Sanctions against defendants and counsel; Ordered that Boris Parker, Esq. Pro Hac Vice counsel for defendant Sergey Kapustin shall appear on Monday, October 27, 2014 at 9:00 a.m., Courtroom 3A. Ordered depositions shall be continued per 99 Court's Order on Monday, October 27, 2014 at 10:30 a.m., in attorney conference room located outside Courtroom 3A. Order to Show Cause hearing continued to Monday, October 27, 2014 at 9:00 a.m., Courtroom 3A (Court Reporter/Recorder Robert T. Tate.) (tf,) (Entered: 10/24/2014)
10/24/2014	101	Minute Entry for proceedings held before Judge Noel L. Hillman: Order to Show Cause Hearing continued held on 10/24/2014. Hearing on Court's Oral Motion to shut down company website; Ordered Oral Motion Granted; Order to be submitted by plaintiff counsel. Hearing on plaintiff's oral motion to freeze any disbursement of bank accounts until Monday, October 27, 2014; Ordered Motion Granted; Order to be submitted by counsel. Ordered that defendant S. Kapustin is directed to disclose 14 original vehicle titles and \$100,000.00 by Monday, October 27, 2014. (Court Reporter/Recorder Robert T. Tate.) (tf,) (Entered: 10/24/2014)
10/26/2014	102	RESPONSE re 100 Show Cause Hearing,,,,,. (DOBIS, JAMES) (Entered: 10/26/2014)
10/27/2014	103	MOTION for Sanctions by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVIIY, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (Attachments: # 1 Brief Memorandum of Law, # 2 Exhibit 1, # 3 Exhibit 2, # 4 Exhibit 3, # 5 Exhibit 4, # 6 Exhibit 5, # 7 Exhibit 6, # 8 Exhibit 7, # 9 Exhibit 8, # 10 Exhibit 9, # 11 Exhibit 10, # 12 Exhibit 11, # 13 Exhibit 12, # 14 Exhibit 13, # 15 Exhibit 14, # 16 Exhibit Proposed Order)(BROWN, ANNA) (Entered: 10/27/2014)
10/27/2014		Set Deadlines as to 103 MOTION for Sanctions . Motion set for 12/1/2014 before Judge Noel L. Hillman. The motion will be decided on the papers. No appearances required unless notified by the court. (tf,) (Entered: 10/27/2014)
10/27/2014	104	Minute Entry for proceedings held before Judge Noel L. Hillman: Order to Show Cause/Evidentiary Hearing held on 10/27/2014. Ordered that the Court shall retain in the Court's registry the following vehicle titles with numbers ending in #5396, #5864, #7313, #5678; Order to be entered. Ordered defendant and counsel to submit to the court an addendum to 80 Stipulated Consent Order. Hearing on defendant's renewed oral motion to withdraw as counsel; Ordered motion Denied without prejudice. Ordered depositions scheduled for today are suspended; Ordered plaintiff shall submit a letter brief by tomorrow re:

		defendant's oral application as a matter of ethical issue and defendants shall file a letter response. Hearing on plaintiff's expedited oral motion to freeze defendants Wells Fargo and M&T Bank accounts; Ordered accounts frozen, Order to be entered today. Order to Show Cause hearing continued for 10/28/2014 at 10:00 a.m., Courtroom 3A. (Court Reporter/Recorder Robert T. Tate.) (tf,) (Entered: 10/27/2014)
10/27/2014	105	ORDERED that Defendants G Auto, Global Auto, Effect Auto, Global Cars shall not make any disbursements out of their bank accounts until the end of the Court's hearing on 10/27/2014. Signed by Judge Noel L. Hillman on 10/24/2014. (tf,) (Entered: 10/27/2014)
10/27/2014	106	ORDERED that Global Defendants are immediately enjoined from removing, withdrawing, drawing upon, pledging or in any way alienating any funds or deposits of any kind of monies contained in the Wells Fargo Bank Account ending *2341 and M&T Bank Account ending in *1201. Signed by Judge Noel L. Hillman on 10/27/2014. (tf,) (Entered: 10/27/2014)
10/27/2014	107	Letter from Plaintiffs' Counsel. (BROWN, ANNA) (Entered: 10/27/2014)
10/28/2014	108	Letter from counsel for Plaintiffs to Judge Hillman Regarding Global Defendants' Counsel's Renewed Motion to Withdraw. (TEMKIN, MARIA) (Entered: 10/28/2014)
10/28/2014	109	MEMORANDUM in Support filed by GLOBAL AUTO, INC. re 96 MOTION to Withdraw as Attorney <i>on behalf of James S. Dobis and Boris Parker Supplemental Memorandum</i> (DOBIS, JAMES) (Entered: 10/28/2014)
10/28/2014		CLERK'S QUALITY CONTROL MESSAGE - The Memorandum in Support of Motion # 109 submitted by J. Dobis on 10/28/2014 contains an improper signature. Only the filing user is permitted to sign electronically filed documents with an s/. PLEASE RESUBMIT THE DOCUMENT WITH A PROPER ELECTRONIC SIGNATURE. This submission will remain on the docket unless otherwise ordered by the court. (tf,) (Entered: 10/28/2014)
10/28/2014		CLERK'S QUALITY CONTROL MESSAGE - Please disregard Clerk's Quality Control Message re # 109 per Judge Hillman's Chambers. (tf,) (Entered: 10/28/2014)
10/28/2014	116	Minute Entry for proceedings held before Judge Noel L. Hillman: Order to Show Cause/Motion Hearing held on 10/28/2014. Order to Show Cause hearing continued why the defendant should not be held in contempt or sanctioned for failure to comply with 80 Stipulated Consent Order and Courts 99 Order and discuss bank accounts and website issues. Hearing on defendan's renewed 96 Motion to withdraw as attorney; Ordered motion Denied. Ordered depositions of Irina Kapustina, Michael Golourya, Svetlana Zakirzyanov shall resume as scheduled. Order to be entered. Oral argument on plaintiff's 103 Motion for Sanctions set for Monday, November 3, 2014 at 10:00 a.m., Courtroom 3A. (Court Reporter/Recorder Robert T. Tate.) (tf,) (Entered: 10/30/2014)
10/29/2014	110	ORDERED that the Websites shall be shut down immediately. Signed by Judge Noel L. Hillman on 10/28/2014. (tf,) (Entered: 10/29/2014)
10/29/2014	111	ORDERED that Global Defendants shall reveal to the Court, by 10:00am tomorrow, October 30, 2014, any other Internet-based media where Global Defendants market automobiles or other vehicles, including, but not limited to, Twitter, through any blog or other websites, through any internet chat rooms, or by way of any other social networking websites, including Facebook, MySpace, LinkedIn, and YouTube. Signed by Judge Noel L. Hillman on 10/29/2014. (tf,) (Entered: 10/29/2014)

10/29/2014	112	ORDERED that all Global Defendants shall reveal to the Court, by 10:00am tomorrow, October 30, 2014, a complete listing of their entire inventory of automobiles and other vehicles within their possession and control. Signed by Judge Noel L. Hillman on 10/29/2014. (tf,) (Entered: 10/29/2014)
10/29/2014	113	ORDER TO SHOW CAUSE: ORDERED that the Global Defendants shall show cause as to why the Orders entered in this action should not be placed on the home pages of the Global Defendants' Websites in lieu of the current "down for maintenance" message. Global Defendants shall file their response to this Order by Thursday, October 30, 2014 at 5:00pm, and Plaintiffs may file a response to the Global Defendants' submission by Monday, November 3, 2014 at 10:00am.. Signed by Judge Noel L. Hillman on 10/29/2014. (tf,) (Entered: 10/29/2014)
10/29/2014	114	ORDERED that the Clerk of Court shall file the vehicle titles with numbers ending in #5396, #5864, #7313, #5678 in the Court's registry. Signed by Judge Noel L. Hillman on 10/29/2014. (tf,) (Entered: 10/29/2014)
10/29/2014	115	AMENDED ORDER re 111 Order. Signed by Judge Noel L. Hillman on 10/29/2014. (tf,) (Entered: 10/29/2014)
10/31/2014	117	MEMORANDUM in Opposition filed by SERGEY KAPUSTIN re 103 MOTION for Sanctions (Attachments: # 1 Certification of James S. Dobis, # 2 Certificate of Service) (DOBIS, JAMES) (Entered: 10/31/2014)
10/31/2014	118	MEMORANDUM in Opposition filed by EFFECT AUTO SALES, INC., G AUTO SALES, INC., GLOBAL AUTO, INC., GLOBAL CARS, INC., MICHAEL GOLOVERYA, IRINA KAPUSTIN, SERGEY KAPUSTIN, SK IMPORTS, INC. re 103 MOTION for Sanctions <i>Filed on Behalf of Boris Parker</i> (Attachments: # 1 Exhibit A, # 2 Exhibit A1, # 3 Exhibit A2, # 4 Exhibit B, # 5 Exhibit C, # 6 Exhibit D, # 7 Exhibit E, # 8 Exhibit F, # 9 Exhibit G, # 10 Exhibit H, # 11 Exhibit I, # 12 Exhibit J, # 13 Exhibit K, # 14 Exhibit L, # 15 Exhibit M, # 16 Exhibit Unpublished Decisions, # 17 Certificate of Service)(DOBIS, JAMES) (Entered: 10/31/2014)
11/03/2014	119	REPLY BRIEF to Opposition to Motion filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 103 MOTION for Sanctions (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Certificate of Service)(BROWN, ANNA) (Entered: 11/03/2014)
11/03/2014	120	Exhibit to 118 Memorandum in Opposition of Motion,, by SERGEY KAPUSTIN. (DOBIS, JAMES) (Entered: 11/03/2014)
11/03/2014		CLERK'S QUALITY CONTROL MESSAGE - The MEMORANDUM in Opposition # 118 submitted by James Dobis on 10/31/2014 contains an improper signature. Only the filing user is permitted to sign electronically filed documents with an s/. Pro Hac Counsel must use a scanned signature. PLEASE RESUBMIT THE DOCUMENT WITH A PROPER ELECTRONIC SIGNATURE. This submission will remain on the docket unless otherwise ordered by the court. (tf,) (Entered: 11/03/2014)

11/05/2014	121	Letter from Plaintiffs Counsel to Judge Hillman Advising of Status and Requesting a Contempt Hearing. (TEMKIN, MARIA) (Entered: 11/05/2014)
11/05/2014	122	TEXT ORDER - In light of the motions and/or applications presently pending before the District Judge, the Court hereby sua sponte adjourns the November 7, 2014 telephone status conference before Judge Donio. Ordered by Magistrate Judge Ann Marie Donio on 11/5/14. (sb) (Entered: 11/05/2014)
11/06/2014	123	Letter from Boris Parker, Esq.. (DOBIS, JAMES) (Entered: 11/06/2014)
11/12/2014	124	Letter Motion from Plaintiffs Counsel to Judge Hillman Addressing Corporate Global Defendants' Recent Bankruptcy Filings re 123 Letter. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5)(TEMKIN, MARIA) (Entered: 11/12/2014)
11/12/2014	125	CERTIFICATE OF SERVICE by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 124 Letter, (TEMKIN, MARIA) (Entered: 11/12/2014)
11/17/2014	126	ORDERED that counsel for Jeffrey A. Lester, Chapter 7 Trustee for the Global Defendants bankruptcy, shall file a response to plaintiffs' November 12, 2014 letter [Docket No. 124], no later than November 25, 2014. Plaintiffs and Global Defendants may file a response to the Trustee's brief no later than December 1, 2014. A hearing will be held on the matters raised by the plaintiffs, defendants, and Trustee in their briefing on December 3, 2014 at 10:00am in Courtroom 3A. Signed by Judge Noel L. Hillman on 11/17/2014. (tf,) (Entered: 11/17/2014)
11/18/2014	127	Letter from Barry J. Roy, Bankruptcy Trustee Counsel addressed to Judge Hillman. (tf,) (Entered: 11/18/2014)
11/20/2014	128	Letter from Wells Fargo Bank NA, Re: 106 Order. (js) (Entered: 11/25/2014)
11/24/2014	129	LETTER ORDER extending the briefing schedule, etc. Signed by Judge Noel L. Hillman on 11/24/14. (js) (Entered: 11/25/2014)
11/25/2014	130	TEXT ORDER: Ordered a hearing is set for Tuesday, January 6, 2015 at 10:00 a.m. in Courtroom 3A on 124 Letter Motion from Plaintiffs Counsel to Judge Hillman Addressing Corporate Global Defendants' Recent Bankruptcy Filings. Ordered by Judge Noel L. Hillman on 11/25/2014. (gn) (Entered: 11/25/2014)
12/01/2014	131	BRIEF in Opposition filed by Jeffrey Lester re 124 MOTION (Attachments: # 1 Certificate of Service)(RABINOWITZ, JONATHAN) (Entered: 12/01/2014)
12/08/2014	132	REPLY BRIEF to Opposition to Motion filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 124 MOTION (Attachments: # 1 Exhibit 1, # 2 Text of Proposed Order, # 3 Certificate of Service)(TEMKIN, MARIA) (Entered: 12/08/2014)

12/15/2014	133	TEXT ORDER: ORDERED that the Trustee's request to file a submission in response to plaintiffs' reply brief 132 is GRANTED; the Trustee's submission shall be filed by Monday, December 29, 2014. Ordered by Judge Noel L. Hillman on 12/15/2014. (gn) (Entered: 12/15/2014)
12/17/2014	134	Transcript of Proceedings held on 10/24/2014, before Judge NOEL L. HILLMAN. Court Reporter/Transcriber Bob Tate (609-462-4384). NOTICE REGARDING REDACTION OF TRANSCRIPTS: The parties have seven (7) calendar days to file with the Court a Notice of Intent to Request Redaction of this Transcript. Redaction Request due 1/7/2015. Redacted Transcript Deadline set for 1/20/2015. Release of Transcript Restriction set for 3/17/2015. (drw) (Entered: 12/19/2014)
12/17/2014	135	Transcript of Proceedings held on 10/27/2014, before Judge NOEL L. HILLMAN. Court Reporter/Transcriber Bob Tate (609-462-4384). NOTICE REGARDING REDACTION OF TRANSCRIPTS: The parties have seven (7) calendar days to file with the Court a Notice of Intent to Request Redaction of this Transcript. Redaction Request due 1/7/2015. Redacted Transcript Deadline set for 1/20/2015. Release of Transcript Restriction set for 3/17/2015. (drw) (Entered: 12/19/2014)
12/17/2014	136	Transcript of Proceedings held on 10/28/2014, before Judge NOEL L. HILLMAN. Court Reporter/Transcriber Bob Tate (609-462-4384). NOTICE REGARDING REDACTION OF TRANSCRIPTS: The parties have seven (7) calendar days to file with the Court a Notice of Intent to Request Redaction of this Transcript. Redaction Request due 1/7/2015. Redacted Transcript Deadline set for 1/20/2015. Release of Transcript Restriction set for 3/17/2015. (drw) (Entered: 12/19/2014)
12/25/2014	137	Letter from Plaintiffs Counsel to Judge Hillman Attaching Letter from Russian Consulate re 124 MOTION, 132 Reply Brief to Opposition to Motion,,. (Attachments: # 1 Exhibit)(TEMKIN, MARIA) (Entered: 12/25/2014)
12/29/2014	138	RESPONSE in Opposition filed by Jeffrey Lester re 124 MOTION (RABINOWITZ, JONATHAN) (Entered: 12/29/2014)
12/29/2014	139	CERTIFICATE OF SERVICE by Jeffrey Lester re 138 Response in Opposition to Motion (RABINOWITZ, JONATHAN) (Entered: 12/29/2014)
12/30/2014	140	Letter from Jonathan I. Rabinowitz on Behalf of Jeffrey A. Lester, Chapter 7 Trustee, Objecting to Submission by Plaintiffs' Counsel re 137 Letter. (RABINOWITZ, JONATHAN) (Entered: 12/30/2014)
12/31/2014	141	Letter from Plaintiffs Counsel to Judge Hillman Responding to Letter from Counsel to the Trustee re 140 Letter. (TEMKIN, MARIA) (Entered: 12/31/2014)
01/05/2015	142	TEXT ORDER ORDERED that the time for the hearing set for Tuesday, January 6, 2015 at 10:00 a.m. in Courtroom 3A on 124 Letter Motion is RESCHEDULED to 1:00 p.m. Ordered by Judge Noel L. Hillman on 1/5/15. (dd,) (Entered: 01/05/2015)
01/05/2015		NOTICE OF TIME CHANGE - amending order 142 , the time for the hearing set for Tuesday, January 6, 2015 on 124 Letter Motion is 12:00 p.m.(dd,) (Entered: 01/05/2015)
01/06/2015	145	Minute Entry for proceedings held before Judge Noel L. Hillman: Motion Hearing held on 1/6/2015 re 124 MOTION. Hearing on Oral Motion by counsel for trustee to automatic stay case for 14 days; Ordered Motion Denied. Ordered Jeffrey Lester-Trustee shall appear at

		hearing set on Tuesday, January 20, 2015 at 12:30 p.m., Courtroom 3A. Order to be entered. (Court Reporter/Recorder Robert T. Tate.) (tf,) (Entered: 01/08/2015)
01/07/2015	143	Transcript of Proceedings held on 1/6/2015, before Judge NOEL L. HILLMAN. Court Reporter/Transcriber Bob Tate (609-462-4384). NOTICE REGARDING REDACTION OF TRANSCRIPTS: The parties have seven (7) calendar days to file with the Court a Notice of Intent to Request Redaction of this Transcript. Redaction Request due 1/28/2015. Redacted Transcript Deadline set for 2/9/2015. Release of Transcript Restriction set for 4/7/2015. (drw) (Entered: 01/07/2015)
01/08/2015	144	Letter from Jon Werner, Esq. addressed to Judge Hillman; Re: Boris Parker, Esq.. (tf,) (Entered: 01/08/2015)
01/09/2015	146	Transcript of Proceedings held on 1/6/2015, before Judge NOEL L. HILLMAN. Court Reporter/Transcriber Bob Tate (609-462-4384). NOTICE REGARDING REDACTION OF TRANSCRIPTS: The parties have seven (7) calendar days to file with the Court a Notice of Intent to Request Redaction of this Transcript. Redaction Request due 1/30/2015. Redacted Transcript Deadline set for 2/9/2015. Release of Transcript Restriction set for 4/9/2015. (drw) (Entered: 01/09/2015)
01/09/2015	147	ORDERED that by 9 a.m. on Friday, January 16, 2015, Website administrators, including Iskander Ibragimov, IMD Company, InMotion Hosting, SingleHop, Inc., and GoDaddy (the Administrators) SHALL restore the Websites; IT IS FURTHER ORDERED that by 9 a.m. on Wednesday, January 14, 2015, the Administrators SHALL disclose to the Trustee and Plaintiffs' counsel information how to access the Websites remotely, such as user names and passwords. Signed by Judge Noel L. Hillman on 1/9/2015. (tf,) (Entered: 01/09/2015)
01/09/2015	148	ORDER WITHDRAWING THE REFERENCE FOR THE FOLLOWING BANKRUPTCY CASES PENDING IN THE UNITED STATES BANKRUPTCY COURT FOR THE DISTRICT OF NEW JERSEY: GLOBAL AUTO SALES (Case No. 14-32520), EFFECT AUTO SALES, INC. (Case No. 14-32521), G AUTO SALES, INC. (Case No. 14-32522), SK IMPORTS, INC. (Case No. 14-32523), AND SERGEY KAPUSTIN (Case No. 14-30488). Signed by Judge Noel L. Hillman on 1/9/2015. (tf,) (Entered: 01/09/2015)
01/12/2015	149	TEXT ORDER: ORDERED that on Tuesday, January 20, 2015 at 12:30pm in Courtroom 3A, the Court will conduct a status conference in this matter, as well as bankruptcy matters for GLOBAL AUTO SALES (Case No. 14-32520), EFFECT AUTO SALES, INC. (Case No. 14-32521), G AUTO SALES, INC. (Case No. 14-32522), SK IMPORTS, INC. (Case No. 14-32523), and SERGEY KAPUSTIN (Case No. 14-30488); it is further ORDERED that the Chapter 7 and Chapter 13 Trustees, or their representatives, shall appear; and it is further ORDERED that defendant Sergey Kapustin shall appear; and it is further ORDERED that Boris Parker, Esquire shall appear. Ordered by Judge Noel L. Hillman on 1/12/2015. (gn) (Entered: 01/12/2015)
01/19/2015	150	Letter from Boris Parker, Esq. re 144 Letter. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C)(DOBIS, JAMES) (Entered: 01/19/2015)
01/20/2015	151	Letter from Plaintiffs Counsel to Judge Hillman Regarding January 20 Status Hearing re 149 Order,. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5) (TEMKIN, MARIA) (Entered: 01/20/2015)
01/20/2015	152	BRIEF in Support filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY

		BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 103 MOTION for Sanctions (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Exhibit 6, # 7 Exhibit 7, # 8 Exhibit 8)(TEMKIN, MARIA) (Entered: 01/20/2015)
01/20/2015	155	Minute Entry for proceedings held before Judge Noel L. Hillman: Motion/Status Hearing held on 1/20/2015. Status hearing held re: matters pending in U.S. Bankruptcy Court for the District of New Jersey-Newark vicinage with Case Nos. 14-32521, 14-32520, 14-32522, 14-32523, 14-30488. Hearing on plaintiff's 124 Letter Motion and 34 Motion for Preliminary Injunction. Ordered Motions Granted in part, Denied in part. Order to be entered. Hearing on Plaintiff's 103 Motion for Sanctions set for 3/6/2015 at 10:30 a.m. and Order to Show Cause hearing re: Bankruptcy cases set for 3/6/2015 at 2:00 p.m., Courtroom 3A. Order to be entered. (Court Reporter/Recorder Robert T. Tate.) (tf,) (Entered: 01/21/2015)
01/21/2015		CLERK'S QUALITY CONTROL MESSAGE - Please be advised the Exhibit 3 #152-3 submitted by M. Temkin on 1/20/2015 is not filed pursuant to the Courts Transcript Policy. Only certified official court reporters or transcription agencies are permitted to electronically file official court transcripts. The Clerks office has removed this document pursuant to the procedure of the Court and at the Courts direction. This message is for informational purposes. (tf,) (Entered: 01/21/2015)
01/21/2015	153	TEXT ORDER: ORDERED that the parties are to show cause on March 6, 2015 at 2:00pm in Courtroom 3A in Camden, New Jersey as to why the Court should not dismiss the bankruptcies with docket numbers 14-32520, 14-32521, 14-32522, 14-32523, 14-30488; it is further Ordered that by February 13, 2015, the parties shall submit briefing they feel is necessary; any responses to those submissions shall be filed by February 20, 2015; and any further replies shall be filed by February 27, 2015. Order by Judge Noel L. Hillman on 1/21/2015. (gn) (Entered: 01/21/2015)
01/21/2015	154	TEXT ORDER: ORDERED that with regard to plaintiffs' motion for sanctions 103 , a hearing will be held on Friday, March 6, 2015 at 10:30am; it is further Ordered that by February 13, 2015, plaintiffs shall submit any supplemental briefing they feel is necessary, if any; defendants shall file their response by February 20, 2015, and plaintiffs shall file their reply by February 27, 2015. re 103 MOTION for Sanctions filed by NATALIA KIRIK ET AL VLADIMIR LUKYANOV. Ordered by Judge Noel L. Hillman on 1/21/2015. (gn) (Entered: 01/21/2015)
01/21/2015	156	ORDER that plaintiffs' "Motion for Preliminary Injunction for an Order to Freeze the Assets of Defendants and Expedited Discovery Related to the Assets" 34 and a Letter Motion from Plaintiffs' Counsel to Judge Hillman Addressing Corporate Global Defendants' Recent Bankruptcy Filings 124 are GRANTED IN PART AND DENIED IN PART. Signed by Judge Noel L. Hillman on 1/21/2015. (tf,) Modified on 1/22/2015 (tf,). (Entered: 01/21/2015)
01/28/2015	157	ORDER enjoining SERGEY KAPUSTIN and directing amendment to Bankruptcy schedules and Statement of Financial Affairs. Signed by Judge Noel L. Hillman on 1/28/2015. (tf,) (Entered: 01/28/2015)
01/28/2015	158	ORDER compelling Principal of Debtors to turn over property. Signed by Judge Noel L. Hillman on 1/28/2015. (tf,) (Entered: 01/28/2015)

01/28/2015	159	ORDER that by 1/30/2015, the Trustee SHALL change the login and password information used to access the Website Administrators and retain sole custody of such information until further Order of this Court. Signed by Judge Noel L. Hillman on 1/28/2015. (tf,) (Entered: 01/28/2015)
01/28/2015	160	ORDER that all parties-in-interest in the case pending in this Court captioned Ardak Akishev, et al., v. Sergey Kapustin, et al., Civil Action Number 13-cv-07152 (NLH) and Debtors bankruptcy cases are directed to file all pleadings and proofs of claim in the Office for the Clerk of the Bankruptcy Court, in any vicinage, unless directed by this Court otherwise. Signed by Judge Noel L. Hillman on 1/28/2015. (tf,) (Entered: 01/28/2015)
02/03/2015	161	MOTION for Hearing re 148 Order, <i>Extending Time to Appeal and for Certification Pursuant to 28 U.S.C. Sec. 1292(b)</i> by JEFFREY LESTER, ESQ. (Attachments: # 1 Application IFP in Support of Motion for Order Extending Time to Appeal and for Certification Pursuant to 28 U.S.C. Sec. 1292(b), # 2 Text of Proposed Order)(ROY, BARRY) (Entered: 02/03/2015)
02/04/2015		Set Deadlines as to 161 MOTION for Hearing re 148 Order, <i>Extending Time to Appeal and for Certification Pursuant to 28 U.S.C. Sec. 1292(b)</i> . Motion set for 3/2/2015 before Judge Noel L. Hillman. The motion will be decided on the papers. No appearances required unless notified by the court. (tf,) (Entered: 02/04/2015)
02/05/2015	162	Letter from Plaintiffs Counsel to JudgeHillman Regarding Automatic Stay Ruling re 145 Motion Hearing, 156 Order on Motion for Preliminary Injunction, Order on Motion for Miscellaneous Relief,. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Text of Proposed Order)(TEMKIN, MARIA) (Entered: 02/05/2015)
02/05/2015	163	Transcript of Proceedings held on 9/5/2014, before Judge NOEL L. HILLMAN. Court Reporter/Transcriber Bob Tate (609-462-4384). NOTICE REGARDING REDACTION OF TRANSCRIPTS: The parties have seven (7) calendar days to file with the Court a Notice of Intent to Request Redaction of this Transcript. Redaction Request due 2/26/2015. Redacted Transcript Deadline set for 3/9/2015. Release of Transcript Restriction set for 5/6/2015. (drw) (Entered: 02/06/2015)
02/11/2015	164	ORDER ON MOTION HEARING AND STATUS CONFERENCE: Status Conference RESCHEDULED to 3/11/2015 10:30 AM in Camden - Courtroom 3A before Judge Noel L. Hillman. Motion Hearing as to 103 MOTION for Sanctions RESCHEDULED to 3/12/2015 10:30 AM in Camden - Courtroom 3A before Judge Noel L. Hillman. Signed by Judge Noel L. Hillman on 2/11/2015. (tf,) (Entered: 02/11/2015)
02/11/2015	165	Letter from SERGEY KAPUSTIN addressed to Judge Hillman dated 2/2/2015. (tf,) (Entered: 02/11/2015)
02/12/2015	166	RESPONSE re 162 Letter,. (Attachments: # 1 Exhibit A-E, # 2 Exhibit F-1, # 3 Exhibit F-2, # 4 Index G-J)(RABINOWITZ, JONATHAN) (Entered: 02/12/2015)
02/13/2015		CLERK'S QUALITY CONTROL MESSAGE - Please be advised the Exhibits F-1 & F-2 (#166-2, 166-3) submitted by Jonathan Rabinowitz on 2/12/2015 is not filed pursuant to the Courts Transcript Policy. Only certified official court reporters or transcription agencies are permitted to electronically file official court transcripts. The Clerks office has restricted this document pursuant to the procedure of the Court and at the Courts direction. This message is for informational purposes. (tf,) (Entered: 02/13/2015)

02/13/2015	167	Letter from Jonathan I. Rabinowitz on Behalf of Jeffrey A. Lester, Chapter 7 Trustee As A Supplement to Response re 166 Response (NOT Motion). (RABINOWITZ, JONATHAN) (Entered: 02/13/2015)
02/13/2015	168	RESPONSE to Motion filed by JEFFREY A. LESTER re 103 MOTION for Sanctions <i>and for Court's sua sponte Motion to Dismiss</i> (RABINOWITZ, JONATHAN) (Entered: 02/13/2015)
02/13/2015	169	MOTION to Appoint Counsel Lead Attorney: Anna Brown., MOTION to Remand by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVIIY, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit, # 4 Exhibit, # 5 Exhibit, # 6 Exhibit, # 7 Exhibit, # 8 Exhibit, # 9 Exhibit, # 10 Exhibit, # 11 Exhibit, # 12 Exhibit, # 13 Exhibit, # 14 Exhibit, # 15 Exhibit, # 16 Exhibit, # 17 Exhibit, # 18 Exhibit, # 19 Exhibit, # 20 Exhibit, # 21 Exhibit, # 22 Exhibit, # 23 Exhibit, # 24 Exhibit, # 25 Exhibit, # 26 Exhibit, # 27 Exhibit, # 28 Exhibit, # 29 Exhibit, # 30 Exhibit, # 31 Exhibit, # 32 Exhibit, # 33 Exhibit, # 34 Exhibit, # 35 Exhibit, # 36 Exhibit, # 37 Exhibit, # 38 Exhibit, # 39 Exhibit, # 40 Exhibit, # 41 Exhibit, # 42 Brief, # 43 Text of Proposed Order)(BROWN, ANNA) (Entered: 02/13/2015)
02/17/2015		MOTION for Sanctions by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVIIY, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (Please see # 169 for docs. (tf,) (Entered: 02/17/2015)
02/17/2015		CLERK'S QUALITY CONTROL MESSAGE - Please be advised the Exhibits #169-8, #169-17 & #169-20 submitted by Anna V. Brown on 2/13/2015 is not filed pursuant to the Courts Transcript Policy. Only certified official court reporters or transcription agencies are permitted to electronically file official court transcripts. The Clerks office has restricted this document pursuant to the procedure of the Court and at the Courts direction. This message is for informational purposes. (tf,) Modified on 2/17/2015 (tf,). (Entered: 02/17/2015)
02/17/2015		Set/Reset Deadlines as to MOTION for Sanctions. Motion set for 3/16/2015 before Judge Noel L. Hillman. The motion will be decided on the papers. No appearances required unless notified by the court. (tf,) (Entered: 02/17/2015)
02/17/2015	170	AMENDED DOCUMENT by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVIIY, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. Amendment to MOTION for Sanctions <i>Amended Exhibits 23 and 24</i> . (Attachments: # 1 Exhibit 24)(TEMKIN, MARIA) (Entered: 02/17/2015)

02/19/2015	171	TEXT ORDER ORDERED that, pursuant to the request of defendants' counsel, defendants' supplemental briefing in response to plaintiffs' motion for sanctions shall be due Friday, February 27, 2015; plaintiffs' response, if any, shall be due Monday, March 9, 2015. So Ordered by Judge Noel L. Hillman on 2/19/2015. (gn) (Entered: 02/19/2015)
02/25/2015	172	Letter from Sergey Kapustin re MOTION for Sanctions. (DOBIS, JAMES) (Entered: 02/25/2015)
02/25/2015	173	RESPONSE in Opposition filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 161 MOTION for Hearing re 148 Order, <i>Extending Time to Appeal and for Certification Pursuant to 28 U.S.C. Sec. 1292(b)</i> (TEMKIN, MARIA) (Entered: 02/25/2015)
02/27/2015	174	Letter from James S. Dobis re MOTION for Sanctions. (Attachments: # 1 Exhibit A - Memorandum in Opposition to Plaintiffs' Motion for Sanctions, # 2 Exhibit B - February 2, 2015 Letter of Sergey Kapustin)(DOBIS, JAMES) (Entered: 02/27/2015)
02/27/2015	175	MEMORANDUM in Opposition filed by BORIS PARKER re MOTION for Sanctions (Attachments: # 1 Exhibit A, # 2 Exhibit A1, # 3 Exhibit A2, # 4 Exhibit B, # 5 Exhibit C, # 6 Exhibit D, # 7 Exhibit E, # 8 Exhibit F, # 9 Exhibit G, # 10 Exhibit H, # 11 Exhibit I, # 12 Exhibit J, # 13 Exhibit K, # 14 Exhibit L, # 15 Exhibit M, # 16 Exhibit N, # 17 Exhibit O, # 18 Exhibit P, # 19 Exhibit Q, # 20 Exhibit R)(DOBIS, JAMES) (Entered: 02/27/2015)
03/02/2015		CLERK'S QUALITY CONTROL MESSAGE - The Memorandum in Opposition # 175 submitted by J. Dobis on 2/27/2015 contains an improper signature. PLEASE RESUBMIT THE MEMORANDUM ONLY WITH A PROPER ELECTRONIC SIGNATURE OR SCANNED SIGNATURE. This submission will remain on the docket unless otherwise ordered by the court. (tf,) (Entered: 03/02/2015)
03/09/2015	176	Letter from SERGEY KAPUSTIN; re: Inventory of Cars. (tf,) (Entered: 03/09/2015)
03/09/2015	177	Letter from SERGEY KAPUSTIN addressed to Judge Hillman dated 3/3/2015; Re: Case. (tf,) (Entered: 03/09/2015)
03/09/2015	178	REPLY BRIEF to Opposition to Motion filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re MOTION for Sanctions (Attachments: # 1 Exhibit 42, # 2 Exhibit 43, # 3 Exhibit 44, # 4 Exhibit 45)(BROWN, ANNA) (Entered: 03/09/2015)
03/11/2015	179	ORDER ON MOTION HEARING AND STATUS CONFERENCE: Status Conference set for 4/6/2015 10:30 AM in Camden - Courtroom 3A before Judge Noel L. Hillman. Motion Hearing re 103 Motion for Sanctions RESCHEDULED to 4/7/2015 10:30 AM in Camden -

		Courtroom 3A before Judge Noel L. Hillman. Signed by Judge Noel L. Hillman on 3/11/2015. (tf,) (Entered: 03/11/2015)
03/11/2015	180	Minute Entry for proceedings held before Judge Noel L. Hillman: Status Hearing held on 3/11/2015. On the date set aside for oral argument on all pending motions in U.S. Bankruptcy Case Numbers : 14-32521,14-32520,14-32522,14-32523,14-30488, 15-1043, 15-1044, status hearing held. Ordered depositions shall proceed as scheduled. Ordered any interested parties wishing to file a supplemental letter briefs are due no later than March 31, 2015. Ordered hearing on all pending motions is adjourned to Monday, April 6, 2015 at 10:30 a.m. Ordered hearing on plaintiff's 103 motion for sanctions as to Boris Parker, Esq. scheduled for March 12, 2015 is adjourned to April 7, 2015 at 10:30 a.m. Order to be entered. (Court Reporter/Recorder Robert T. Tate.) (tf,) (Entered: 03/11/2015)
03/16/2015		NOTICE of Hearing on Motions 103 MOTION for Sanctions , MOTION for Sanctions :Oral Argument on Motions set for 4/7/2015 is adjourned to 4/27/2015 at 1:00 PM in Camden - Courtroom 3A before Judge Noel L. Hillman. (gn) (Entered: 03/16/2015)
04/06/2015	181	Letter from SERGEY KAPUSTIN addressed to Judge Hillman dated 3/30/2015. (tf,) (Entered: 04/06/2015)
04/06/2015	182	Minute Entry for proceedings held before Judge Noel L. Hillman: Order to show cause hearing concerning all pending motions in the bankruptcy matters and the Court's order to show cause 55 as to why the Court should not dismiss the bankruptcies with docket numbers 14-32520, 14-32521, 14-32522, 14-32523, 14- 30488 held on 4/6/2015. Ordered that the bankruptcies shall be Dismissed and all pending motions Denied as moot; Order to be entered. Hearing on 103 Motion for Sanctions set for Monday, April 27, 2015 at 1:00 p.m., in Courtroom 3A. (Court Reporter/Recorder Carol Farrell.) (tf,) (Main Document 182 replaced on 4/8/2015) (gn). (Entered: 04/06/2015)
04/13/2015	183	Letter from Jonathan I. Rabinowitz on Behalf of Jeffrey A. Lester, Chapter 7 Trustee, in Response to E-mail of Ms. Mueller on April 10, 2015. (RABINOWITZ, JONATHAN) (Entered: 04/13/2015)
04/15/2015	184	MOTION Trustee's Authority to Abandon Certain Documents and Records by JEFFREY A. LESTER. (Attachments: # 1 Application IFP, # 2 Text of Proposed Order)(RABINOWITZ, JONATHAN) (Entered: 04/15/2015)
04/15/2015		Set/Reset Deadlines as to 184 MOTION Trustee's Authority to Abandon Certain Documents and Records . Motion set for 5/18/2015 before Judge Noel L. Hillman. The motion will be decided on the papers. No appearances required unless notified by the court. (tf,) (Entered: 04/15/2015)
04/15/2015	185	Letter from Jonathan I. Rabinowitz, Esq., Counsel to Jeffrey A. Lester, Chapter 7 Trustee re 184 MOTION Trustee's Authority to Abandon Certain Documents and Records . (RABINOWITZ, JONATHAN) (Entered: 04/15/2015)
04/16/2015	186	Letter from Plaintiffs Counsel to Judge Hillman Responding to Letter from Counsel to the Trustee Regarding Inspection of Documents at the Debtors' Pennsylvania Office re 185 Letter. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2)(TEMKIN, MARIA) (Entered: 04/16/2015)
04/16/2015	187	Letter from SERGEY KAPUSTIN. (tf,) (Entered: 04/16/2015)
04/27/2015	188	Transcript of Proceedings held on 3/11/15, before Judge Hillman. Court Reporter/Transcriber

		Bob Tate (609-462-4384). NOTICE REGARDING REDACTION OF TRANSCRIPTS: The parties have seven (7) calendar days to file with the Court a Notice of Intent to Request Redaction of this Transcript. Redaction Request due 5/18/2015. Redacted Transcript Deadline set for 5/28/2015. Release of Transcript Restriction set for 7/27/2015. (dd,) (Entered: 04/27/2015)
04/27/2015	189	Minute Entry for proceedings held before Judge Noel L. Hillman: Motion Evidentiary Hearing held on 4/27/2015. Hearing on defendant's 96 MOTION to Withdraw as Attorney on behalf of James S. Dobis and Boris Parker; Ordered 96 Motion Granted. Hearing on plaintiff's [103, 169] MOTIONS for Sanctions by Ardak Akishev, et al. Ordered [103,169] Motions Granted. Ordered that Boris Parker, Esq. is directed to notify trust disciplinary authorities re: mis accounting. Ordered plaintiff's supplemental letter brief due 5/8/2015, defendant's supplemental brief due 5/13/2015 re: evidentiary hearing on default judgment Hearing set for Monday, May 18, 2015 at 10:30 a.m., Courtroom 3A. Opinion and Order to be entered. (Court Reporter/Recorder Robert T. Tate.) (tf,) (Entered: 04/28/2015)
04/29/2015	190	Letter from Trustee's Counsel to Judge Hillman regarding Dismissal Order. (RABINOWITZ, JONATHAN) (Entered: 04/29/2015)
04/29/2015	191	Letter from Plaintiffs' Counsel to Judge Hillman Re Bankruptcies Dismissal Order re 190 Letter. (Attachments: # 1 Text of Proposed Order)(TEMKIN, MARIA) (Entered: 04/29/2015)
05/01/2015	192	Transcript of Proceedings held on 4/6/2015, before Judge NOEL L. HILLMAN. Court Reporter/Transcriber Carol Farrell (856-318-6100). NOTICE REGARDING REDACTION OF TRANSCRIPTS: The parties have seven (7) calendar days to file with the Court a Notice of Intent to Request Redaction of this Transcript. Redaction Request due 5/22/2015. Redacted Transcript Deadline set for 6/1/2015. Release of Transcript Restriction set for 7/30/2015. (drw) (Entered: 05/01/2015)
05/04/2015	193	Letter from Chapter 7 Trustee to Judge Hillman in Response to Plaintiffs' Letter of April 29, 2015 re 191 Letter. (RABINOWITZ, JONATHAN) (Entered: 05/04/2015)
05/04/2015	194	MOTION for Attorney Fees by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVIIY, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (Attachments: # 1 Certification of Anna Brown, # 2 Exhibit 1, # 3 Exhibit 2, # 4 Exhibit 3, # 5 Text of Proposed Order)(TEMKIN, MARIA) (Entered: 05/04/2015)
05/04/2015	195	RESPONSE to Motion filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVIIY, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 184 MOTION Trustee's Authority to Abandon Certain Documents and Records (Attachments: # 1 Text of Proposed Order)(TEMKIN, MARIA) (Entered: 05/04/2015)
05/05/2015	196	ORDER granting 96 Motion to Withdraw as Attorney. James S. Dobis, Esq., and Boris Parker, Esq., are hereby relieved as counsel for Defendants, Sergey Kapustin, Irina Kapustina, Michael

		Goloverya a/k/a Mikhail Goloverya, G Auto Sale, Inc., Global Auto, Inc., Effect Auto Sales, Inc., Global Cars, Inc. and SK Imports, Inc.. Signed by Judge Noel L. Hillman on 5/4/2015. (tf) (Entered: 05/05/2015)
05/05/2015		Set/Reset Deadlines as to 194 MOTION for Attorney Fees . Motion set for 6/1/2015 before Judge Noel L. Hillman. The motion will be decided on the papers. No appearances required unless notified by the court. (tf) (Entered: 05/05/2015)
05/06/2015	197	TEXT ORDER: NOTICE that the default judgment hearing scheduled for May 18, 2015 is RESCHEDULED to Monday, June 29, 2015 at 1:30pm in Courtroom 3A. Plaintiffs' supplemental briefing in support of their motion shall be due May 27, 2015. re: 103 MOTION for Sanctions. So Ordered by Judge Noel L. Hillman on 5/6/2015. (gn) (Entered: 05/06/2015)
05/08/2015	198	Transcript of Proceedings held on 4/27/2015, before Judge NOEL L. HILLMAN. Court Reporter/Transcriber Bob Tate (609-462-4384). NOTICE REGARDING REDACTION OF TRANSCRIPTS: The parties have seven (7) calendar days to file with the Court a Notice of Intent to Request Redaction of this Transcript. Redaction Request due 5/29/2015. Redacted Transcript Deadline set for 6/8/2015. Release of Transcript Restriction set for 8/6/2015. (drw) (Entered: 05/08/2015)
05/11/2015	199	Letter from Boris Parker, Esq. re 189 Motion Hearing,,, (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G, # 8 Exhibit H, # 9 Exhibit I, # 10 Exhibit J, # 11 Exhibit K, # 12 Exhibit L)(DOBIS, JAMES) (Entered: 05/11/2015)
05/11/2015	200	NOTICE by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 197 Order, <i>for Default Judgment</i> (BROWN, ANNA) (Entered: 05/11/2015)
05/18/2015	201	RESPONSE re 197 Order, 103 MOTION for Sanctions . (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E-1, # 6 Exhibit E-2, # 7 Exhibit E-3, # 8 Exhibit E-4, # 9 Exhibit F, # 10 Exhibit G, # 11 Exhibit H, # 12 Exhibit I, # 13 Exhibit J, # 14 Exhibit K, # 15 Exhibit L, # 16 Exhibit M, # 17 Exhibit N, # 18 Exhibit O, # 19 Exhibit P, # 20 Exhibit Q, # 21 Exhibit R, # 22 Exhibit S)(DOBIS, JAMES) (Entered: 05/18/2015)
05/19/2015		CLERK'S QUALITY CONTROL MESSAGE - The Memorandum of Law in Opposition to Plaintiffs' Fee Petition filed as a Response 201 submitted by Defendants on 5/18/2015 contains an improper signature. Only the filing user is permitted to sign electronically filed documents with an s/. PLEASE RESUBMIT THE MEMORANDUM ONLY WITH A PROPER SCANNED SIGNATURE OF BORIS PARKER OR AN ELECTRONIC SIGNATURE OF JAMES STEVEN DOBIS. This submission will remain on the docket unless otherwise ordered by the court. (dmr) (Entered: 05/19/2015)
05/20/2015	202	ORDER DISMISSING CHAPTER 7 BANKRUPTCY CASES PURSUANT TO 11 U.S.C. 707(a). Signed by Judge Noel L. Hillman on 5/20/2015. (drw) (Entered: 05/20/2015)
05/20/2015	203	ORDER directing Counsel for Pltfs to maintain the content of the Websites and have exclusive access and control over the Websites until further order of the Court. No further changes shall

		be made to the Websites w/out the express approval and Order of the Court. Signed by Judge Noel L. Hillman on 5/20/2015. (drw) (Entered: 05/20/2015)
05/21/2015	204	ORDER AUTHORIZING ABANDONMENT OF DOCUMENTS AND RECORDS. Signed by Judge Noel L. Hillman on 5/20/2015. (drw) (Entered: 05/21/2015)
05/26/2015	205	REPLY BRIEF to Opposition to Motion filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 194 MOTION for Attorney Fees (BROWN, ANNA) (Entered: 05/26/2015)
05/27/2015	206	NOTICE by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 197 Order, (Attachments: # 1 Affidavit Akishev Affidavit with exhibits, # 2 Affidavit Aliakparov Affidavit with exhibits, # 3 Affidavit Batalov Affidavit with exhibits, # 4 Affidavit Borzenko Affidavit with exhibits, # 5 Affidavit Glazunov Affidavit with exhibits, # 6 Affidavit Kirik Affidavit with exhibits, # 7 Affidavit Kolbin Affidavit with exhibits, # 8 Affidavit Kondratyuk Affidavit with exhibits, # 9 Affidavit Lisitsyn Affidavit with exhibits, # 10 Affidavit Lukyanov Affidavit with exhibits, # 11 Affidavit Maniashin Affidavit with exhibits, # 12 Affidavit Matveev Affidavit with exhibits, # 13 Affidavit Pukir Affidavit with exhibits, # 14 Affidavit Telin Affidavit with exhibits, # 15 Affidavit Yamkoviy Affidavit with exhibits, # 16 Affidavit Zhilinskiy Affidavit with exhibits, # 17 Affidavit Zverev Affidavit with exhibits, # 18 Certification Certification of Accuracy of Translations, # 19 Certificate of Service)(TEMKIN, MARIA) (Entered: 05/27/2015)
05/27/2015	207	MOTION for Entry of Default by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (Attachments: # 1 Certification Attorney Certification, # 2 Exhibit 1, # 3 Exhibit 2, # 4 Certificate of Service)(BROWN, ANNA) (Entered: 05/27/2015)
05/27/2015	208	Exhibit to 207 Motion for Entry of Default,, by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (BROWN, ANNA) (Entered: 05/27/2015)
05/28/2015		Set/Reset Deadlines as to 207 MOTION for Entry of Default . Motion set for 6/29/2015 1:30 PM in Camden - Courtroom 3A before Judge Noel L. Hillman. (TH,) (Entered: 05/29/2015)

06/01/2015	209	REPLY BRIEF to Opposition to Motion filed by BORIS PARKER re 194 MOTION for Attorney Fees (Attachments: # 1 Declaration of Boris Parker)(DOBIS, JAMES) (Entered: 06/01/2015)
06/01/2015	210	AMENDED DOCUMENT by BORIS PARKER. Amendment to 175 Memorandum in Opposition of Motion, <i>Amended Exhibit C.</i> (DOBIS, JAMES) (Entered: 06/01/2015)
06/02/2015	211	Letter from Trustee's Counsel Regarding Corporate Debtors' Books and Records. (RABINOWITZ, JONATHAN) (Entered: 06/02/2015)
06/03/2015	212	TEXT ORDER ORDERED that Sergey Kapustin shall be designated as records custodian for the Corporate Debtors, and the records shall be abandoned to Mr. Kapustin in accordance with the May 20, 2015 Order. So Ordered by Judge Noel L. Hillman on 6/3/2015. (gn) (Entered: 06/03/2015)
06/04/2015	213	MOTION for Default Judgment as to <i>Global Cargo Oy and Igor Zadorozhniy</i> by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVIIY, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. Responses due by 6/18/2015 (Attachments: # 1 Certification, # 2 Certificate of Service)(BROWN, ANNA) (Entered: 06/04/2015)
06/05/2015		CLERK'S QUALITY CONTROL MESSAGE - The Motion for Default Judgment # 213 filed by A. Brown on 6/4/2015 was submitted incorrectly as a Motion. PLEASE RESUBMIT THE REQUEST FOR DEFAULT USING *REQUEST FOR DEFAULT* FOUND UNDER THE *OTHER DOCUMENTS* MENU. This submission will remain on the docket unless otherwise ordered by the court. (tf,) (Entered: 06/05/2015)
06/05/2015	214	Request for Default by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVIIY, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA against Global Cargo Oy, Igor Zadorozhniy. (Attachments: # 1 Certification, # 2 Certificate of Service)(BROWN, ANNA) (Entered: 06/05/2015)
06/08/2015		Clerk's ENTRY OF DEFAULT as to GLOBAL CARGO OY & IGOR ZADOROZHNIY for failure to plead or otherwise defend. (tf,) (Entered: 06/08/2015)
06/17/2015	215	TEXT ORDER ORDERED that 161 MOTION for Hearing re 148 Order, Extending Time to Appeal and for Certification Pursuant to 28 U.S.C. Sec. 1292(b) by JEFFREY LESTER, ESQ. is DENIED AS MOOT. So Ordered by Judge Noel L. Hillman on 6/17/2015. (gn) (Entered: 06/17/2015)
06/19/2015	216	MOTION for Preliminary Injunction, MOTION for Temporary Restraining Order by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR

		LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (tf,) (Entered: 06/19/2015)
06/19/2015	217	ORDER granting 216 Motion for Temporary Restraining Order. This Temporary Restraining Order shall remain in effect 14 days or until further Order of the Court. Signed by Judge Noel L. Hillman on 6/18/2015. (tf,) Modified on 6/19/2015 (tf,). (Entered: 06/19/2015)
06/19/2015	218	ORDER TO SHOW CAUSE: Show Cause Hearing re Motion for Preliminary Injunction set for 6/29/2015 01:30 PM in Camden - Courtroom 3A before Judge Noel L. Hillman. Signed by Judge Noel L. Hillman on 6/18/2015. (tf,) (Entered: 06/19/2015)
06/25/2015	219	Letter from SERGEY KAPUSTIN addressed to Judge Hillman dated 6/13/2015. (tf,) (Entered: 06/25/2015)
06/26/2015	220	Emergency MOTION to Compel <i>Nordea Bank Finland Plc to Comply with the TRO</i> by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (Attachments: # 1 Brief, # 2 Exhibit, # 3 Exhibit, # 4 Exhibit, # 5 Exhibit, # 6 Exhibit, # 7 Exhibit, # 8 Exhibit, # 9 Text of Proposed Order, # 10 Certificate of Service)(BROWN, ANNA) (Entered: 06/26/2015)
06/26/2015	221	Letter from Jeff Goldsmith, Esq.. (KRIVOSHEYEV, NELLIE) (Entered: 06/26/2015)
06/27/2015	222	Letter from Plaintiffs' Counsel. (Attachments: # 1 Exhibit, # 2 Exhibit)(BROWN, ANNA) (Entered: 06/27/2015)
06/29/2015		Set/Reset Deadlines as to 220 Emergency MOTION to Compel <i>Nordea Bank Finland Plc to Comply with the TRO</i> . Motion set for 7/20/2015 before Judge Noel L. Hillman. The motion will be decided on the papers. No appearances required unless notified by the court. (tf,) (Entered: 06/29/2015)
06/29/2015	223	TEXT ORDER ORDERED that for the reasons expressed on the record at the April 27, 2015 hearing, plaintiffs' motions for sanctions 103 is GRANTED. So Ordered by Judge Noel L. Hillman on 6/29/2015. (gn) (Entered: 06/29/2015)
06/30/2015	224	Letter from Interested Party Nordea Bank Finland Plc, New York Branch; Re: TRO. (tf,) (Entered: 06/30/2015)
06/30/2015	225	CONSENT & REGISTRATION FORM TO RECEIVE DOCUMENTS ELECTONICALLY by MICHAEL GOLOVERYA, IRINA KAPUSTIN, SERGEY KAPUSTIN (tf,) (Entered: 06/30/2015)
06/30/2015	226	Minute Entry for proceedings held before Judge Noel L. Hillman: Motion Evidentiary Hearing held on 6/29/2015. Hearing on plaintiff's 207 Motion for Entry of Default; 220 Emergency Motion to compel Nordea Bank to comply with TRO; 216 Motion for Preliminary Injunction; Hearing on application by Jeff Goldsmith to intervene; Ordered that he shall file a formal motion to intervene. Hearing on oral application by Charles G. Berry to be admitted Pro Hace Vice; Ordered oral application Granted, Ordered counsel to file formal motion with the clerk.

		Defendants and Counsel consent to modify 217 Order. Motion evidentiary hearing set re: default judgment damages and other unresolved issues for Friday, July 31, 2015 at 1:00 p.m., Courtroom 3A. (Court Reporter/Recorder Robert T. Tate.) (tf,) (Entered: 06/30/2015)
06/30/2015	227	STIPULATION AND ORDER for relief from injunctive order to allow automotive finance corporation to enforce its remedies for repossession of certain vehicles and to transfer possession of salvage certificate to a vehicle to Mr. Bekzhanov. Signed by Judge Noel L. Hillman on 6/25/2015. (tf,) (Entered: 06/30/2015)
07/01/2015	228	Letter from Chapter 7 Trustee Regarding Turnover Of Original Vehicle Titles. (RABINOWITZ, JONATHAN) (Entered: 07/01/2015)
07/02/2015	229	ORDER granting 216 Motion for Preliminary Injunction. Signed by Judge Noel L. Hillman on 7/1/2015. (tf,) (Entered: 07/02/2015)
07/02/2015	230	ORDER TO SHOW CAUSE REGARDING TURN-OVER OF TITLES BY CHAPTER 7 TRUSTEE. Signed by Judge Noel L. Hillman on 7/2/2015. (tf,) (Entered: 07/02/2015)
07/06/2015	231	ORDER directing Defendants to authorize and direct Nordea Bank Finland, PLC to transfer funds held in bank accounts in Finland and deliver documents and information with respect to those accounts. Signed by Judge Noel L. Hillman on 7/2/2015. (tf,) (Entered: 07/06/2015)
07/06/2015	232	Transcript of Proceedings held on 6/29/2015, before Judge NOEL L. HILLMAN. Court Reporter/Transcriber Bob Tate (609-462-4384). NOTICE REGARDING REDACTION OF TRANSCRIPTS: The parties have seven (7) calendar days to file with the Court a Notice of Intent to Request Redaction of this Transcript. Redaction Request due 7/27/2015. Redacted Transcript Deadline set for 8/6/2015. Release of Transcript Restriction set for 10/5/2015. (drw) (Entered: 07/07/2015)
07/06/2015	233	**SEALED** Transcript of Proceedings held on 6/29/2015, before Judge NOEL L. HILLMAN. Court Reporter/Transcriber Bob Tate (609-462-4384). This is the complete unredacted/sealed version of the transcript and is unavailable for public viewing. (drw) (Entered: 07/07/2015)
07/07/2015	234	Letter from Irina Kapustina; re: Ardak Akishev. (tf,) (Entered: 07/07/2015)
07/10/2015	235	Letter from Plaintiffs' Counsel. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2)(BROWN, ANNA) (Entered: 07/10/2015)
07/13/2015	236	Letter from Plaintiffs' Counsel to Judge Hillman Re Order to Show Cause Regarding Titles Held by Trustee re 230 Order to Show Cause. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Text of Proposed Order)(TEMKIN, MARIA) (Entered: 07/13/2015)
07/14/2015	237	ORDER REGARDING TURN-OVER OF TITLES BY CHAPTER 7 TRUSTEE, by Thursday, July 16, 2015, at 5:00pm, the interested parties shall confer and agree as to whether the Trustee should deposit the vehicle titles he is holding into the Registry of this Court or the Registry of the Eastern District of New York, etc. Signed by Judge Noel L. Hillman on 7/14/15. (js) (Entered: 07/15/2015)
07/15/2015		AMENDED NOTICE of HEARING:Continued Evidentiary Hearing set for 7/31/2015 is ADJOURNED to 8/31/2015 at 11:00 AM in Camden - Courtroom 3A before Judge Noel L. Hillman. (gn) (Entered: 07/15/2015)

07/15/2015	238	NOTICE of Appearance by KEVIN TIMOTHY SULLIVAN on behalf of NORDEA BANK FINLAND PLC, NEW YORK BRANCH (SULLIVAN, KEVIN) (Entered: 07/15/2015)
07/15/2015	239	MOTION for Leave to Appear Pro Hac Vice <i>as to Charles G. Berry, Esq.</i> by NORDEA BANK FINLAND PLC, NEW YORK BRANCH. (Attachments: # 1 Certification of Kevin Sullivan in Support of Application of Charles G. Berry for Admission Pro Hac Vice, # 2 Certification of Charles G. Berry in Support of Application for Admission Pro Hac Vice, # 3 Text of Proposed Order Granting Admission Pro Hac Vice)(SULLIVAN, KEVIN) (Entered: 07/15/2015)
07/16/2015		Set/Reset Deadlines as to 239 MOTION for Leave to Appear Pro Hac Vice <i>as to Charles G. Berry, Esq.</i> . Motion set for 8/17/2015 before Judge Noel L. Hillman. The motion will be decided on the papers. No appearances required unless notified by the court. (tf,) (Entered: 07/16/2015)
07/16/2015	240	Letter from Trustee's Counsel Regarding Turnover of Titles. (RABINOWITZ, JONATHAN) (Entered: 07/16/2015)
07/16/2015	241	Letter from Plaintiffs Counsel Regarding Titles and Scheduling. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(TEMKIN, MARIA) (Entered: 07/16/2015)
07/17/2015	242	ORDER granting 239 Motion for Leave to Appear Pro Hac Vice as to Charles G. Berry, Esq. Shall make a payment of \$150.00 to the Clerk of the United States District Court. Signed by Judge Noel L. Hillman on 7/16/2015. (tf,) (Entered: 07/17/2015)
07/20/2015	243	TEXT ORDER ORDERED that the Court approves the following schedule for Plaintiffs motion for summary judgment against Defendants Irina Kapustina and Michael Goloverya: Plaintiffs will file motions for summary judgment by September 18, 2015;any opposition is due by October 9, 2015; the replies shall be due by October 23, 2015. So Ordered by Judge Noel L. Hillman on 7/20/2015. (gn,) (Entered: 07/20/2015)
07/20/2015		Pro Hac Vice fee as to Charles G. Berry, Esq.: \$ 150, receipt number CAM007049 (tf,) (Entered: 07/20/2015)
07/20/2015	244	Letter from SERGEY KAPUSTIN addressed to Judge Hillman dated 7/13/2015; re: EDNY Case 13-2479. (tf,) (Entered: 07/20/2015)
07/20/2015	245	Letter from SERGEY KAPUSTIN addressed to Judge Townes dated 7/16/2015. (tf,) (Entered: 07/20/2015)
07/22/2015	246	Notice of Request by Pro Hac Vice Charles G. Berry to receive Notices of Electronic Filings. (SULLIVAN, KEVIN) (Entered: 07/22/2015)
07/23/2015		Pro Hac Vice counsel, CHARLES G. BERRY, has been added to receive Notices of Electronic Filing. Pursuant to L.Civ.R. 101.1, only local counsel are entitled to sign and file papers, enter appearances and receive payments on judgments, decrees or orders. (tf,) (Entered: 07/23/2015)
07/27/2015	247	Letter from Plaintiffs Counsel Regarding Settlement Conference with Empire Defendants. (TEMKIN, MARIA) (Entered: 07/27/2015)
07/31/2015	248	Letter from SERGEY KAPUSTIN addressed to Judge Hillman dated 7/23/2015. (Attachments: # 1 Summary of Plaintiff's Damages)(tf,) (Entered: 07/31/2015)
08/05/2015	249	Letter from SERGEY KAPUSTIN dated 8/3/2015 addressed to Judge Hillman; Re: Global

		Cargo's bank account. (tf,) (Entered: 08/05/2015)
08/07/2015	250	Letter from SERGEY KAPUSTIN dated 7/23/2015 addressed to Judge Hillman. (tf,) (Entered: 08/07/2015)
08/14/2015	251	NOTICE of Appearance by IGOR A. VOLOSHEN on behalf of EFFECT AUTO SALES, INC., G AUTO SALES, INC., GLOBAL AUTO, INC., GLOBAL CARS, INC. (VOLOSHEN, IGOR) (Entered: 08/14/2015)
08/17/2015	252	STATEMENT by Jeff Goldsmith. (Attachments: # 1 Exhibit Exhibit 1, # 2 Exhibit Exhibit 2, # 3 Exhibit Exhibit 3)(KRIVOSHEYEV, NELLIE) (Entered: 08/17/2015)
08/17/2015		CLERK'S QUALITY CONTROL MESSAGE - The 252 Statement submitted by N. KRIVOSHEYEV on 8/17/2015 is unreadable, the documents were scanned in sideways. PLEASE RESUBMIT THE DOCUMENT. (drw) (Entered: 08/17/2015)
08/17/2015	253	STATEMENT by Jeff Goldsmith. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit) (KRIVOSHEYEV, NELLIE) (Entered: 08/17/2015)
08/20/2015	254	Letter from Counsel for Plaintiffs. (BROWN, ANNA) (Entered: 08/20/2015)
08/21/2015	255	Letter from Counsel for Nordea Bank Finland Plc, New York Branch. (SULLIVAN, KEVIN) (Entered: 08/21/2015)
08/21/2015	256	Letter from Plaintiffs Regarding Scheduling of Plaintiffs' Motion to Compel. (Attachments: # 1 Exhibit 3, # 2 Exhibit 4)(BROWN, ANNA) (Entered: 08/21/2015)
08/24/2015	257	Letter from SERGEY KAPUSTIN re 256 Letter. (tf,) (Entered: 08/24/2015)
08/24/2015	258	Letter from Counsel for Nordea Bank Finland Plc, New York Branch. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C)(SULLIVAN, KEVIN) (Entered: 08/24/2015)
08/31/2015	259	Minute Entry for proceedings held before Judge Noel L. Hillman: MOTION EVIDENTIARY HEARING/SETTLEMENT CONFERENCE held on 8/31/2015. Evidentiary Proof hearing on plaintiff's 207 Motion for entry of default judgment; Hearing on creditor's 253 Statement to enforce judgment; Order counsel to file a motion. Contempt hearing held as to Irina and Sergey Kapustin; Ordered that they produce to plaintiffs access to Finland bank account by no later than 2:00 p.m. today or shall be held in contempt of this court's orders. Ordered Igor Voloshen, Esq. counsel for Global Auto, et al. is directed to submit to the court any and all client attorney agreements for the In Camera review no later than September 1, 2015. In Camera Settlement conference held on the record; Ordered transcript of these proceedings sealed. Defendants produced documents to plaintiffs and court. Evidentiary proof hearing continued. Evidentiary proof hearing continued to Friday, September 4, 2015 at 1:30 p.m. (Court Reporter/Recorder Robert T. Tate.) (tf,) (Entered: 09/01/2015)
09/03/2015	260	Letter from Charles G. Berry addressed to Judge Hillman; Re: Authorizations. (SULLIVAN, KEVIN) (Entered: 09/03/2015)
09/04/2015	261	ORDER TO TRANSFER TITLE AND TO RELEASE VEHICLE TO PLAINTIFF MATVEYEV. Signed by Judge Noel L. Hillman on 9/4/2015. (tf,) (Entered: 09/04/2015)
09/04/2015	262	Minute Entry for proceedings held before Judge Noel L. Hillman: Motion Evidentiary Hearing held on 9/4/2015 re 207 MOTION for Entry of Default. Ordered that the defendant is directed to produce copies to the court re: current vehicle documents. Sergey Kapustin advised the court he declines to continue defense re: proof hearing; Final Judgment to be submitted by

		plaintiff counsel including prejudgment interest. Hearing on post judgment interest and attorney's fees set for 9/10/2015 at 3:00 p.m. Ordered Sergey Kapustin to produce at hearing on 9/10/2015 any and all documents related to company Prior for review by the court and vehicle/motorcycle titles to be sent to plaintiff counsel. Hearing on plaintiffs oral application to continue terms of preliminary injunction imposed by this court per 217 Order and for an order to require Sergey Kapustin to deposit into the court's registry certain shares of a company account with company Prior Oy; Court conducted colloquy with Sergey Kapustin re: company shares; Ordered application Granted. Ordered Sergey Kapustin to provide to plaintiffs authorization and release to Nordea Bank re: Prior Oy company loan. Consent Order to be entered by all parties re: company shares. (Court Reporter/Recorder Robert T. Tate.) (tf,) (Entered: 09/08/2015)
09/10/2015	263	Minute Entry for proceedings held before Judge Noel L. Hillman: Motion Evidentiary Hearing held on 9/10/2015 re 207 MOTION for Entry of Default. Ordered motion granted; Order executed in open court. Hearing on plaintiff's application to modify court's 261 Order and Transfer Title and to Release Vehicle to Plaintiff Matveyev with US Marshal assistance; Ordered application granted. Ordered plaintiff Sergey Kapustin is directed to turn over to plaintiff counsel all records from Global Cargo Oy Account Records and money into court's registry or the defendant's Sergey and Irina Kapustin and/or any other parties that oppose shall be held in contempt of court on 9/21/2015 at 10:00 am, Courtroom 3A. Ordered Sergey Kapustin is directed to provide to the court a copy of Mercedes registration no later than 9/11/2015 by 5:00 pm. (Court Reporter/Recorder Robert T. Tate.) (tf,) (Entered: 09/11/2015)
09/11/2015	264	ORDER to transfer title and to release vehicle to Plaintiff Matveyev. Signed by Judge Noel L. Hillman on 9/10/2015. (tf,) (Entered: 09/11/2015)
09/11/2015	265	ORDER granting Plaintiffs' 207 Motion for Final Default Judgment. Plaintiffs are awarded post-judgment injunctive relief, post-judgment interest and monetary damages in the total amount of \$2,228,089.29. Signed by Judge Noel L. Hillman on 9/10/2015. (tf,) (Entered: 09/11/2015)
09/16/2015	266	ORDER REGARDING DEPOSIT OF CERTAIN VEHICLE TITLES INTO THE REGISTRY OF THE COURT. Signed by Judge Noel L. Hillman on 9/16/15. (js) (Entered: 09/16/2015)
09/16/2015	267	ORDER, Defendants SERGEY KAPUSTIN and IRINA KAPUSTIN'S vehicle registrations, attached to this Order, shall be filed on the docket. Signed by Judge Noel L. Hillman on 9/16/15. (js) (Entered: 09/16/2015)
09/18/2015	268	Letter from Charles G. Berry to The Honorable Noel L. Hillman re 260 Letter. (SULLIVAN, KEVIN) (Entered: 09/18/2015)
09/18/2015	269	First MOTION to Intervene by Jeff Goldsmith, Jeff Goldsmith. (Attachments: # 1 Brief, # 2 Certification, # 3 Exhibit, # 4 Exhibit, # 5 Exhibit, # 6 Exhibit, # 7 Exhibit, # 8 Exhibit, # 9 Text of Proposed Order, # 10 Certificate of Service)(KRIVOSHEYEV, NELLIE) (Entered: 09/18/2015)
09/18/2015		NOTICE of Hearing: Status Conference/Contempt/Motion hearing set for 9/21/2015 is ADJOURNED to 10/29/2015 11:00 AM in Camden - Courtroom 3A before Judge Noel L. Hillman. (gn) (Entered: 09/18/2015)
09/19/2015	270	MOTION for Summary Judgment , <i>Partial, on Counts I-IV against Defendants Irina Kapustina and Michael Goloverya</i> by ARDAK AKISHEV, ZHANDOS ALIAKPAROV,

		ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. Responses due by 10/9/2015 (Attachments: # 1 Brief, # 2 Exhibit 1, # 3 Exhibit 2, # 4 Exhibit 3, # 5 Exhibit 4, # 6 Exhibit 5, # 7 Exhibit 6, # 8 Exhibit 7, # 9 Exhibit 8, # 10 Exhibit 9, # 11 Exhibit 10, # 12 Exhibit 11, # 13 Exhibit 12, # 14 Exhibit 13, # 15 Text of Proposed Order)(TEMKIN, MARIA) (Entered: 09/19/2015)
09/20/2015	271	STATEMENT OF UNDISPUTED FACTS by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (BROWN, ANNA) (Entered: 09/20/2015)
09/21/2015		CLERK'S QUALITY CONTROL MESSAGE - The Motion to Intervene submitted by N. Krivosheyev on 9/18/2015 contains an improper signature. Only the filing user is permitted to sign electronically filed documents with an s/. PLEASE RESUBMIT THE DOCUMENT WITH A PROPER ELECTRONIC SIGNATURE. This submission will remain on the docket unless otherwise ordered by the court. (tf,) (Entered: 09/21/2015)
09/21/2015		Set/Reset Deadlines as to 270 MOTION for Summary Judgment , <i>Partial, on Counts I-IV against Defendants Irina Kapustina and Michael Goloverya</i> . Motion set for 10/19/2015 before Judge Noel L. Hillman. The motion will be decided on the papers. No appearances required unless notified by the court. (tf,) (Entered: 09/21/2015)
09/21/2015	272	AMENDED ORDER granting Plaintiffs' 207 Motion for Final Default Judgment. Plaintiffs are awarded post-judgment injunctive relief, post-judgment interest and monetary damages in the total amount of \$2,228,069.29 against EFFECT AUTO SALES, INC., G AUTO SALES, INC., GLOBAL AUTO, INC., GLOBAL CARGO OY, SK IMPORTS, INC., IGOR ZADOROZHNIY, SERGEY KAPUSTIN. Signed by Judge Noel L. Hillman on 9/21/2015. (tf,) (Entered: 09/21/2015)
09/22/2015	273	First MOTION to Intervene of <i>DK International Trading Inc.</i> by Jeff Goldsmith, DK International Trading Inc.. (Attachments: # 1 Brief, # 2 Certification, # 3 Exhibit, # 4 Exhibit, # 5 Exhibit, # 6 Exhibit, # 7 Exhibit, # 8 Exhibit, # 9 Text of Proposed Order, # 10 Certificate of Service)(GOLDSMITH, JEFF) (Entered: 09/22/2015)
09/23/2015		Set/Reset Deadlines as to 273 First MOTION to Intervene of <i>DK International Trading Inc.</i> . Motion set for 10/19/2015 before Judge Noel L. Hillman. The motion will be decided on the papers. No appearances required unless notified by the court. (tf,) (Entered: 09/23/2015)
09/30/2015		NOTICE of Hearing on Motion 273 First MOTION to Intervene of <i>DK International Trading Inc.</i> , <i>Continued evidentiary hearing re: 270 MOTION for Summary Judgment, 194 MOTION for Attorney Fees :Continued evidentiary motion hearing set for 9/21/2015 is adjourned to 10/29/2015 at 11:00 AM in Camden - Courtroom 3A before Judge Noel L. Hillman. (gn) (Entered: 09/30/2015)</i>
10/09/2015	274	Amended CROSSCLAIM against CARCONT, LTD, EMPIRE UNITED LINES, CO.,

		INC., MICHAEL HITRINOV, filed by G AUTO SALES, INC., GLOBAL AUTO, INC., EFFECT AUTO SALES, INC., SERGEY KAPUSTIN.(VOLOSHEN, IGOR) (Entered: 10/09/2015)
10/10/2015	277	Transcript of Proceedings held on 8/31/2015, before Judge NOEL L. HILLMAN. Court Reporter/Transcriber Bob Tate (609-462-4384). NOTICE REGARDING REDACTION OF TRANSCRIPTS: The parties have seven (7) calendar days to file with the Court a Notice of Intent to Request Redaction of this Transcript. Redaction Request due 11/2/2015. Redacted Transcript Deadline set for 11/10/2015. Release of Transcript Restriction set for 1/8/2016. (drw) (Entered: 10/13/2015)
10/10/2015	278	**SEALED** Transcript of Proceedings held on 8/31/2015, before Judge NOEL L. HILLMAN. Court Reporter/Transcriber Bob Tate (609-462-4384). This is the complete unredacted/sealed version of the transcript and is unavailable for public viewing. (drw) (Entered: 10/13/2015)
10/12/2015	275	NOTICE by SERGEY KAPUSTIN re 274 Crossclaim <i>Verification</i> (VOLOSHEN, IGOR) (Entered: 10/12/2015)
10/12/2015	276	NOTICE by EFFECT AUTO SALES, INC., G AUTO SALES, INC., GLOBAL AUTO, INC. re 274 Crossclaim <i>Corporate Disclosures of Crossclaim Plaintiffs</i> (Attachments: # 1 Corporate Disclosure (Re Complaint only), # 2 Corporate Disclosure (Re Complaint only), # 3 Certificate of Service)(VOLOSHEN, IGOR) (Entered: 10/12/2015)
10/13/2015		CLERK'S QUALITY CONTROL MESSAGE - The Notice # 276 filed by I. Voloshen on 10/12/2015 was submitted incorrectly as a Notice. PLEASE RESUBMIT THE Corporate Disclosure Statement USING *Corporate Disclosure Statement*. This submission will remain on the docket unless otherwise ordered by the court. (tf,) (Entered: 10/13/2015)
10/13/2015	279	MOTION to Substitute Party <i>to Substitute Crossclaim Plaintiffs</i> by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (Attachments: # 1 Certification of Anna Brown, # 2 Exhibit 1- EDNY Memorandum and Order, # 3 Exhibit 2- Assignment of Claims, # 4 Text of Proposed Order, # 5 Certificate of Service)(TEMKIN, MARIA) (Entered: 10/13/2015)
10/14/2015		Set/Reset Deadlines as to 279 MOTION to Substitute Party <i>to Substitute Crossclaim Plaintiffs</i> . Motion set for 11/16/2015 before Judge Noel L. Hillman. The motion will be decided on the papers. No appearances required unless notified by the court. (tf,) (Entered: 10/14/2015)
10/15/2015	280	Letter from Counsel for DK International. (Attachments: # 1 Exhibit Assignment of Claims) (GOLDSMITH, JEFF) (Entered: 10/15/2015)
10/15/2015	281	Letter from counsel for DK International. (Attachments: # 1 Exhibit Assignment) (GOLDSMITH, JEFF) (Entered: 10/15/2015)
10/15/2015	282	MEMORANDUM in Opposition filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY

		KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 273 First MOTION to Intervene of <i>DK International Trading Inc.</i> (Attachments: # 1 Certificate of Service)(TEMKIN, MARIA) (Entered: 10/15/2015)
10/16/2015	283	Corporate Disclosure Statement by EFFECT AUTO SALES, INC., G AUTO SALES, INC., GLOBAL AUTO, INC.. (Attachments: # 1 Corporate Disclosure (Re Complaint only), # 2 Corporate Disclosure (Re Complaint only))(VOLOSHEN, IGOR) (Entered: 10/16/2015)
10/20/2015	284	TEXT ORDER AMENDED NOTICE of Hearing on Motion 273 First MOTION to Intervene of DK International Trading Inc., Continued evidentiary hearing re: 270 MOTION for Summary Judgment :Continued evidentiary motion hearing set for 9/21/2015 is adjourned to Tuesday, December 8, 2015 at 2:00pm in Courtroom 3A before Judge Noel L. Hillman. MOTION for Attorney Fees 194 will be decided on the papers unless otherwise directed by the Court. So Ordered by Judge Noel L. Hillman on 10/20/2015. (gn) (Entered: 10/20/2015)
10/22/2015	285	Letter from J. Goldsmith. (GOLDSMITH, JEFF) (Entered: 10/22/2015)
10/23/2015	286	TEXT ORDER ORDERED that all motions and issues pending as of December 8, 2015, except for MOTION for Attorney Fees 194 , shall be heard at the December 8, 2015 hearing. So Ordered by Judge Noel L. Hillman on 10/23/2015. (gn) (Entered: 10/23/2015)
10/29/2015	287	Request for Summons to be Issued by GLOBAL CARS, INC., G AUTO SALES, INC., EFFECT AUTO SALES, INC., GLOBAL AUTO, INC. as to EMPIRE UNITED LINES, CO., INC., GLOBAL CARGO OY, MICHAEL HITRINOV. (VOLOSHEN, IGOR) (Entered: 10/29/2015)
10/30/2015	288	SUMMONS ISSUED (Amended Cross-Claim Complaint) as to CARCONT, LTD, EMPIRE UNITED LINES, CO., INC., MICHAEL HITRINOV Attached is the official court Summons, please fill out Defendant and Plaintiffs attorney information and serve. Issued By *DEANNA WALL* (drw) (Entered: 10/30/2015)
11/09/2015	289	RESPONSE in Opposition filed by MICHAEL GOLOVERYA, IRINA KAPUSTIN re 270 MOTION for Summary Judgment , <i>Partial, on Counts I-IV against Defendants Irina Kapustina and Michael Goloverya</i> (tf,) (Entered: 11/09/2015)
11/16/2015	290	SUMMONS Returned Executed by G AUTO SALES, INC., EFFECT AUTO SALES, INC., GLOBAL AUTO, INC., SK IMPORTS, INC.. MICHAEL HITRINOV served on 11/4/2015, answer due 11/25/2015. (VOLOSHEN, IGOR) (Entered: 11/16/2015)
11/16/2015	291	SUMMONS Returned Executed by GLOBAL CARS, INC., G AUTO SALES, INC., EFFECT AUTO SALES, INC., GLOBAL AUTO, INC., SK IMPORTS, INC.. EMPIRE UNITED LINES, CO., INC. served on 11/4/2015, answer due 11/25/2015. (VOLOSHEN, IGOR) (Entered: 11/16/2015)
11/16/2015	292	SUMMONS Returned Executed by GLOBAL CARS, INC., G AUTO SALES, INC., EFFECT AUTO SALES, INC., GLOBAL AUTO, INC., SK IMPORTS, INC.. CARCONT, LTD served on 11/4/2015, answer due 11/25/2015. (VOLOSHEN, IGOR) (Entered: 11/16/2015)
11/17/2015	293	NOTICE of Voluntary Dismissal by All Plaintiffs (TEMKIN, MARIA) (Entered: 11/17/2015)
11/17/2015	294	REPLY BRIEF to Opposition to Motion filed by DK International Trading Inc. re 273 First

		MOTION to Intervene of <i>DK International Trading Inc.</i> (GOLDSMITH, JEFF) (Entered: 11/17/2015)
11/24/2015	295	CONSENT ORDER TO ALLOW PLTFS SELL CERTAIN VEHICLES; directing the Clerk to release the titles to the Vehicles to Pltfs' counsel w/in 7 days, etc. (Finance and Pltfs' counsel notified). Signed by Judge Noel L. Hillman on 11/23/2015. (drw) (Entered: 11/24/2015)
12/01/2015	296	Letter from Jouni Koskinen dated 1/12/15. (js) (Entered: 12/01/2015)
12/01/2015	297	REPLY BRIEF to Opposition to Motion filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVIY, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 270 MOTION for Summary Judgment , <i>Partial, on Counts I-IV against Defendants Irina Kapustina and Michael Goloverya</i> (Attachments: # 1 Exhibit 14, # 2 Exhibit 15, # 3 Exhibit 16, # 4 Exhibit 17, # 5 Exhibit 18, # 6 Exhibit 19, # 7 Exhibit 20, # 8 Exhibit 21)(BROWN, ANNA) (Entered: 12/02/2015)
12/02/2015	298	Certification on behalf of ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVIY, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (BROWN, ANNA) (Entered: 12/02/2015)
12/03/2015	299	Certification of Anna v. Brown on behalf of ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVIY, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA Re 279 Motion to Substitute Party,, (Attachments: # 1 Exhibit 1- Judge Townes Opinion)(TEMKIN, MARIA) (Entered: 12/03/2015)
12/08/2015	300	Minute Entry for proceedings held before Judge Noel L. Hillman: Motion Hearing held on 12/8/2015. Hearing on oral motion by counsel for Global companies to withdraw as counsel or record; Ordered counsel is directed to file a formal motion. Hearing on plaintiff's 279 Motion to Substitute Party to Substitute Crossclaim Plaintiffs; Ordered 279 Motion is Granted. Hearing on plaintiff's 270 MOTION for Summary Judgment against Defendants Irina Kapustina and Michael Goloverya; Ordered defendants are directed to file a proper response to motion pursuant local rule civil 56.1 no later than January 8, 2016. Ordered oral argument on 270 Motion for Summary Judgment is continued to Tuesday, February 9, 2016 at 11 :00 a.m. Hearing on 273 First MOTION to Intervene of DK International Trading Inc.; Ordered 273 Motion is Granted. Hearing set for Tuesday, February 9, 2016 at 11 :00 a.m., Courtroom 3A. Stipulation and consent order executed in open court re: pledge Hotel 66 to be filed. Order to be entered. (Court Reporter/Recorder Robert T. Tate.) (drw) (Entered: 12/09/2015)
12/09/2015	301	STIPULATION AND CONSENT ORDER re. Deft Sergey Kapustin's pledge of Motel 66 to Pltfs, etc. Signed by Judge Noel L. Hillman on 12/8/2015. (drw) (Entered: 12/09/2015)

12/09/2015	302	Transcript of Proceedings held on 9/4/2015, before Judge NOEL L. HILLMAN. Court Reporter/Transcriber Bob Tate (609-462-4384). NOTICE REGARDING REDACTION OF TRANSCRIPTS: The parties have seven (7) calendar days to file with the Court a Notice of Intent to Request Redaction of this Transcript. Redaction Request due 12/30/2015. Redacted Transcript Deadline set for 1/11/2016. Release of Transcript Restriction set for 3/8/2016. (drw,) (Entered: 12/09/2015)
12/09/2015	303	Transcript of Proceedings held on 9/10/2015, before Judge NOEL L. HILLMAN. Court Reporter/Transcriber Bob Tate (609-462-4384). NOTICE REGARDING REDACTION OF TRANSCRIPTS: The parties have seven (7) calendar days to file with the Court a Notice of Intent to Request Redaction of this Transcript. Redaction Request due 12/30/2015. Redacted Transcript Deadline set for 1/11/2016. Release of Transcript Restriction set for 3/8/2016. (drw,) (Entered: 12/09/2015)
12/10/2015	304	ORDER continuing Pltfs' 270 MOTION for Summary Judgment, Partial, on Counts I-IV against defendants Irina Kapustina and Michael Goloverya; directing pro se Defs to file an opposition to the motion by 1/8/2016; granting DK International Trading Inc.'s 273 Motion to Intervene to the extent that DK International may intervene as a party, denying w/out prejudice as to all other relief requested by DK International's motion; granting 279 Motion to Substitute Party to Substitute Crossclaim Plaintiffs; directing counsel for the corporate Global entities shall file a formal motion to withdraw as counsel. Signed by Judge Noel L. Hillman on 12/9/2015. (drw) (Entered: 12/10/2015)
12/14/2015	305	MOTION to Withdraw as Attorney by EFFECT AUTO SALES, INC., G AUTO SALES, INC., GLOBAL AUTO, INC., GLOBAL CARS, INC., SK IMPORTS, INC.. (Attachments: # 1 Certification, # 2 Text of Proposed Order)(VOLOSHEN, IGOR) (Entered: 12/14/2015)
12/14/2015		Set/Reset Deadlines as to 305 MOTION to Withdraw as Attorney . Motion set for 1/19/2016 before Magistrate Judge Ann Marie Donio. The motion will be decided on the papers. No appearances required unless notified by the court. (drw) (Entered: 12/14/2015)
12/14/2015		AMENDED Set/Reset Deadlines as to 305 MOTION to Withdraw as Attorney . Motion set for 1/19/2016 before Judge Noel L. Hillman. The motion will be decided on the papers. No appearances required unless notified by the court. (drw) (Entered: 12/14/2015)
12/14/2015	306	NOTICE of Appearance by JON WERNER on behalf of EMPIRE UNITED LINES, CO., INC., MICHAEL HITRINOV (WERNER, JON) (Entered: 12/14/2015)
12/14/2015	307	STIPULATION re 274 Crossclaim by EMPIRE UNITED LINES, CO., INC., MICHAEL HITRINOV. (WERNER, JON) (Entered: 12/14/2015)
12/15/2015	308	STIPULATION AND ORDER TO EXTEND TIME TO RESPOND TO THE FIRST AMENDED CROSS-CLAIM COMPLAINT, answer due 1/12/16. Signed by Judge Noel L. Hillman on 12/15/15. (js) (Entered: 12/15/2015)
12/16/2015	309	OPINION FILED. Signed by Judge Noel L. Hillman on 12/16/2015. (drw) (Entered: 12/16/2015)
12/16/2015	310	ORDER denying Pltfs' 194 Motion for Attorney Fees. Signed by Judge Noel L. Hillman on 12/16/2015. (drw) (Entered: 12/16/2015)
12/23/2015	311	Letter from Plaintiffs' Counsel Requesting an Order for DMV re 295 Order, Util - Finance NEF. (Attachments: # 1 Text of Proposed Order)(TEMKIN, MARIA) (Entered: 12/23/2015)

12/31/2015	312	Letter from Plaintiffs' Counsel Regarding Stipulation With Next Gear Capital et.al. (Attachments: # 1 Text of Proposed Order, # 2 Exhibit A - Ttitle)(TEMKIN, MARIA) (Entered: 12/31/2015)
01/12/2016	313	MOTION to Compel <i>Documents Responsive to the Subpoena Issued to Jon Werner, Esq.</i> by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (Attachments: # 1 Brief, # 2 Certification of Maria Temkin, Esq., # 3 Certification of Igor A. Voloshen, Esq., # 4 Certification of Marcus A. Nussbaum, Esq., # 5 Text of Proposed Order)(TEMKIN, MARIA) (Entered: 01/12/2016)
01/12/2016	314	MOTION to Quash <i>Subpoenas Issued by the Empire Defendants</i> by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (Attachments: # 1 Brief, # 2 Text of Proposed Order, # 3 Certification of Maria Temkin, Esq., # 4 Certification of Igor A. Voloshen, Esq., # 5 Certification of Marc A. Nussbaum, Esq.)(TEMKIN, MARIA) (Entered: 01/12/2016)
01/12/2016		Set/Reset Deadlines as to 314 MOTION to Quash <i>Subpoenas Issued by the Empire Defendants</i> , 313 MOTION to Compel <i>Documents Responsive to the Subpoena Issued to Jon Werner, Esq.</i> Motion set for 2/16/2016 before Magistrate Judge Ann Marie Donio. Unless otherwise directed by the Court, this motion will be decided on the papers and no appearances are required. Note that this is an automatically generated message from the Clerk's Office and does not supersede any previous or subsequent orders from the Court. (drw) (Entered: 01/12/2016)
01/12/2016	315	Letter from SERGEY KAPUSTIN. (drw) (Entered: 01/12/2016)
01/12/2016	316	RESPONSE in Opposition filed by IRINA KAPUSTIN re 270 MOTION for Summary Judgment. (drw) (Entered: 01/12/2016)
01/12/2016	317	RESPONSE in Opposition filed by MICHAEL GOLOVERYA re 270 MOTION for Summary Judgment. (drw) (Entered: 01/12/2016)
01/12/2016	318	Response by Michael Goloverya to Statement of Undisputed Material Facts. (drw) (Entered: 01/12/2016)
01/12/2016	319	Response by Irina Kapustina to Statement of Undisputed Material Facts. (drw) (Entered: 01/12/2016)
01/12/2016	320	MOTION to Dismiss , MOTION to Dismiss for Lack of Jurisdiction by EMPIRE UNITED LINES, CO., INC., MICHAEL HITRINOV. Responses due by 1/26/2016 (Attachments: # 1 Brief, # 2 Certification of Jon Werner, # 3 Exhibit A - Transcript of 6/4/2013 hearing, # 4 Exhibit B - 11/7/2013 Memorandum and Order, # 5 Exhibit C - Affidavits of Service, # 6 Exhibit D - USPS Tracking Report, # 7 Exhibit E - Tantuccio Consent Order, # 8 Exhibit F -

		First Amended Complaint, # 9 Exhibit G - EDNY Complaint, # 10 Exhibit H - EDNY Answer, # 11 Exhibit I - 7/24/2015 letter, # 12 Exhibit J - First Amended Crossclaim Complaint, # 13 Exhibit K - Wonica Decision and Order)(WERNER, JON) (Entered: 01/12/2016)
01/13/2016		AMENDED Set/Reset Deadlines as to 314 MOTION to Quash <i>Subpoenas Issued by the Empire Defendants</i> , 313 MOTION to Compel <i>Documents Responsive to the Subpoena Issued to Jon Werner, Esq.</i> . Motion set for 2/16/2016 before Judge Noel L. Hillman. Unless otherwise directed by the Court, this motion will be decided on the papers and no appearances are required. Note that this is an automatically generated message from the Clerk's Office and does not supersede any previous or subsequent orders from the Court. (As per chambers). (drw) (Entered: 01/13/2016)
01/13/2016		Set/Reset Deadlines as to 320 MOTION to Dismiss MOTION to Dismiss for Lack of Jurisdiction . Motion set for 2/16/2016 before Judge Noel L. Hillman. Unless otherwise directed by the Court, this motion will be decided on the papers and no appearances are required. Note that this is an automatically generated message from the Clerk's Office and does not supersede any previous or subsequent orders from the Court. (drw) (Entered: 01/13/2016)
01/13/2016	321	Letter from SERGEY KAPUSTIN dated 1/5/16. (js) (Entered: 01/13/2016)
01/14/2016	322	NOTICE OF APPEAL as to 309 Opinion & 310 Order on Motion for Attorney Fees by Defendants KAPUSTIN'S former attorney BORIS PARKER. Filing fee \$ 505, receipt number CAM007493. The Clerk's Office hereby certifies the record and the docket sheet available through ECF to be the certified list in lieu of the record and/or the certified copy of the docket entries. (Attachment(s) # 1 Cover Letter) (lec). (Entered: 01/14/2016)
01/14/2016	323	ORDER granting 311 Letter from Plaintiffs' Counsel Requesting an Order for DMV re 295 Order. Signed by Judge Noel L. Hillman on 1/14/2016. (drw) (Entered: 01/14/2016)
01/14/2016	324	STIPULATION AND ORDER FOR RELIEF FROM INJUNCTIVE ORDER TO ALLOW AUTOMOTIVE FINANCE CORPORATION TO ENFORCE ITS REMEDIES FOR REPOSSESSION OF CERTAIN VEHICLES AND TO TRANSFER POSSESSION OF VEHICLE WITH SALVAGE CERTIFICATE TO RUSLAN ABYDYNOV. (Finance notified). Signed by Judge Noel L. Hillman on 1/14/2016. (drw) (Entered: 01/14/2016)
01/15/2016	325	USCA Case Number 16-1095 for 322 Notice of Appeal (USCA), filed by IRINA KAPUSTIN. USCA Case Manager Tim McIntyre (Document Restricted - Court Only) (Entered: 01/15/2016)
01/28/2016	326	Letter from SERGEY KAPUSTIN. (drw) (Entered: 01/28/2016)
02/01/2016	327	MOTION for a New Hearing and Other Relief by SERGEY KAPUSTIN. (drw) (Entered: 02/01/2016)
02/01/2016		Set/Reset Deadlines as to 327 MOTION for a New Hearing and Other Relief. Motion set for 3/7/2016 before Magistrate Judge Ann Marie Donio. Unless otherwise directed by the Court, this motion will be decided on the papers and no appearances are required. Note that this is an automatically generated message from the Clerk's Office and does not supersede any previous or subsequent orders from the Court. (drw) (Entered: 02/01/2016)
02/01/2016		Set/Reset Deadlines as to 327 MOTION for a New Hearing and Other Relief. Motion set for 3/7/2016 before Judge Noel L. Hillman. Unless otherwise directed by the Court, this motion will be decided on the papers and no appearances are required. Note that this is an

		automatically generated message from the Clerk's Office and does not supersede any previous or subsequent orders from the Court. (drw) (Entered: 02/01/2016)
02/02/2016	328	Cross MOTION to Compel <i>Responses to Subpoenas Issued to Anna V. Brown, Esq., Maria Temkin, Esq., Igor A. Voloshen, Esq. and Marcus A. Nussbaum, Esq.</i> by EMPIRE UNITED LINES, CO., INC., MICHAEL HITRINOV. (Attachments: # 1 Brief, # 2 Certification of Jon Werner, # 3 Text of Proposed Order)(WERNER, JON) (Entered: 02/02/2016)
02/02/2016	329	BRIEF in Opposition filed by EMPIRE UNITED LINES, CO., INC., MICHAEL HITRINOV re 314 MOTION to Quash <i>Subpoenas Issued by the Empire Defendants</i> (WERNER, JON) (Entered: 02/02/2016)
02/02/2016	330	Cross MOTION to Quash <i>the Subpoena Issued to Jon Werner, Esq.</i> by EMPIRE UNITED LINES, CO., INC., MICHAEL HITRINOV. (Attachments: # 1 Brief, # 2 Certification of Jon Werner, # 3 Text of Proposed Order)(WERNER, JON) (Entered: 02/02/2016)
02/02/2016	331	BRIEF in Opposition filed by EMPIRE UNITED LINES, CO., INC., MICHAEL HITRINOV re 313 MOTION to Compel <i>Documents Responsive to the Subpoena Issued to Jon Werner, Esq.</i> (WERNER, JON) (Entered: 02/02/2016)
02/02/2016	332	CERTIFICATION in Opposition filed by EMPIRE UNITED LINES, CO., INC., MICHAEL HITRINOV re 313 MOTION to Compel <i>Documents Responsive to the Subpoena Issued to Jon Werner, Esq.</i> , 314 MOTION to Quash <i>Subpoenas Issued by the Empire Defendants</i> (WERNER, JON) (Entered: 02/02/2016)
02/02/2016	333	MEMORANDUM in Opposition filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 320 MOTION to Dismiss MOTION to Dismiss for Lack of Jurisdiction (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5)(TEMKIN, MARIA) (Entered: 02/02/2016)
02/02/2016	334	REPLY BRIEF to Opposition to Motion filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 270 MOTION for Summary Judgment , <i>Partial, on Counts I-IV against Defendants Irina Kapustina and Michael Goloverya</i> (Attachments: # 1 Statement as to Irina Kapustina, # 2 Statement as to Michael Goloverya, # 3 Exhibit 23, # 4 Exhibit 24, # 5 Exhibit 25, # 6 Exhibit 26, # 7 Exhibit 27, # 8 Exhibit 28, # 9 Exhibit 29, # 10 Exhibit 30, # 11 Exhibit 31, # 12 Exhibit 32, # 13 Exhibit 33, # 14 Certificate of Service Certificate) (BROWN, ANNA) (Entered: 02/02/2016)
02/02/2016		Setting Deadlines as to 328 Cross MOTION to Compel <i>Responses to Subpoenas Issued to Anna V. Brown, Esq., Maria Temkin, Esq., Igor A. Voloshen, Esq. and Marcus A. Nussbaum, Esq.</i> , 330 Cross MOTION to Quash <i>the Subpoena Issued to Jon Werner, Esq.</i>

		Motions set for 3/7/2016 before Judge Noel L. Hillman. Unless otherwise directed by the Court, these motions will be decided on the papers and no appearances are required. Note that this is an automatically generated message from the Clerk's Office and does not supersede any previous or subsequent orders from the Court. (js) (Entered: 02/03/2016)
02/03/2016	335	Letter from IRINA KAPUSTINA re. 2/9/2016 oral hearing. (drw) (Entered: 02/03/2016)
02/04/2016	336	TEXT ORDER ORDERED that the hearing set for for Tuesday, February 9, 2016 at 11:00am in Courtroom 3A shall discuss all pending motions, except for the pending motion for summary judgment against defendants Irina Kapustina and Michael Goloverya 270 , for which a new hearing date will be scheduled. So Ordered by Judge Noel L. Hillman on 2/4/2016. (gn) (Entered: 02/04/2016)
02/04/2016	337	Letter from Jon Werner requesting adjournment of return date of motion to dismiss re 320 MOTION to Dismiss MOTION to Dismiss for Lack of Jurisdiction . (WERNER, JON) (Entered: 02/04/2016)
02/08/2016	338	TEXT ORDER ORDERED that the request 337 of cross-claim defendants for an extension of time to file their reply in further support of their motion to dismiss 320 is GRANTED; cross-claim defendants' reply shall be due February 29, 2016. So Ordered by Judge Noel L. Hillman on 2/8/2016. (gn) (Entered: 02/08/2016)
02/08/2016	339	REPLY to Response to Motion filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 328 Cross MOTION to Compel Responses to Subpoenas Issued to Anna V. Brown, Esq., Maria Temkin, Esq., Igor A. Voloshen, Esq. and Marcus A. Nussbaum, Esq., 330 Cross MOTION to Quash the Subpoena Issued to Jon Werner, Esq., 313 MOTION to Compel Documents Responsive to the Subpoena Issued to Jon Werner, Esq., 314 MOTION to Quash Subpoenas Issued by the Empire Defendants (TEMKIN, MARIA) (Entered: 02/08/2016)
02/08/2016	340	RESPONSE in Opposition filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 327 MOTION for a New Hearing and Other Relief (Attachments: # 1 Exhibit 1 - Certification of Anna Brown, # 2 Exhibit 2)(TEMKIN, MARIA) (Entered: 02/08/2016)
02/09/2016	341	Minute Entry for proceedings held before Judge Noel L. Hillman: Motion Hearing held on 2/9/2016 re 328 Cross MOTION to Compel Responses to Subpoenas Issued to Anna V. Brown, Esq., Maria Temkin, Esq., Igor A. Voloshen, Esq. and Marcus A. Nussbaum, Esq. filed by EMPIRE UNITED LINES, CO., INC., MICHAEL HITRINOV, 330 Cross MOTION to Quash the Subpoena Issued to Jon Werner, Esq. filed by EMPIRE UNITED LINES, CO., INC., MICHAEL HITRINOV, 313 MOTION to Compel Documents Responsive to the Subpoena Issued to Jon Werner, Esq. filed by NATALIA KIRIK,

		EVGENIY KONDRATUK, ARKADIY KOLBIN, YURIY YAMKOVIIY, ELENA ZVEREVA, MIKHAIL ZVEREV, ALEXEY BATALOV, MIKHAIL MATVEEV, IGOR GLAZUNOV, EVGENIY BORZENKO, IRINA GLAZUNOVA, ZHANDOS ALIAKPAROV, ALLA YAMKOVAYA, ALEXANDER PUKIR, ALEXANDER ZHILINSKIY, ANDREY KIRIK, VIKTOR MANIASHIN, ARDAK AKISHEV, EVGENIY TELIN, EDUARD LISITSYN, VLADIMIR LUKYANOV, Ordered Motions DENIED. 305 MOTION to Withdraw as Attorney filed by EFFECT AUTO SALES, INC., G AUTO SALES, INC., GLOBAL CARS, INC., GLOBAL AUTO, INC., SK IMPORTS, INC., Ordered Motion GRANTED. 327 MOTION for a New Hearing and Other Relief filed by SERGEY KAPUSTIN, Ordered Motion DENIED. 314 MOTION to Quash <i>Subpoenas Issued by the Empire Defendants</i> filed by NATALIA KIRIK, EVGENIY KONDRATUK, ARKADIY KOLBIN, YURIY YAMKOVIIY, ELENA ZVEREVA, MIKHAIL ZVEREV, ALEXEY BATALOV, MIKHAIL MATVEEV, IGOR GLAZUNOV, EVGENIY BORZENKO, IRINA GLAZUNOVA, ZHANDOS ALIAKPAROV, ALLA YAMKOVAYA, ALEXANDER PUKIR, ALEXANDER ZHILINSKIY, ANDREY KIRIK, VIKTOR MANIASHIN, ARDAK AKISHEV, EVGENIY TELIN, VLADIMIR LUKYANOV, EDUARD LISITSYN. Ordered Motion DENIED. Ordered all counsel to file on CMECF certifications to the court re: website postings. Order to be entered. (Court Reporter: Robert T. Tate) (js) (Entered: 02/09/2016)
02/10/2016	342	ORDER granting 305 Motion to Withdraw as Attorney. Signed by Judge Noel L. Hillman on 2/10/16. (js) (Entered: 02/10/2016)
02/10/2016	343	ORDER denying 313 Motion to Compel; granting 314 Motion to Quash; denying 327 Motion ; denying 328 Motion to Compel; granting 330 Motion to Quash. Signed by Judge Noel L. Hillman on 2/10/16. (js) (Entered: 02/10/2016)
02/10/2016	344	STATUS REPORT <i>regarding compliance with February 9, 2016 ruling</i> by EMPIRE UNITED LINES, CO., INC., MICHAEL HITRINOV. (Attachments: # 1 Exhibit December 4, 2015 letter)(WERNER, JON) (Entered: 02/10/2016)
02/18/2016	345	Letter from Anna V. Brown, Esq., Counsel for Plaintiffs. (Attachments: # 1 Exhibit 1, # 2 Text of Proposed Order)(BROWN, ANNA) (Entered: 02/18/2016)
02/22/2016	346	Letter from Jon Werner re 345 Letter. (WERNER, JON) (Entered: 02/22/2016)
02/23/2016	347	MOTION to Disqualify Counsel and other relief by SERGEY KAPUSTIN. (tf,) (Entered: 02/23/2016)
02/23/2016		Set/Reset Deadlines as to 347 MOTION to Disqualify Counsel and other relief. Motion set for 3/21/2016 before Judge Noel L. Hillman. Unless otherwise directed by the Court, this motion will be decided on the papers and no appearances are required. Note that this is an automatically generated message from the Clerk's Office and does not supersede any previous or subsequent orders from the Court. (tf,) (Entered: 02/23/2016)
02/29/2016	348	CERTIFICATION in Support filed by EMPIRE UNITED LINES, CO., INC., MICHAEL HITRINOV re 320 MOTION to Dismiss MOTION to Dismiss for Lack of Jurisdiction (WERNER, JON) (Entered: 02/29/2016)
02/29/2016	349	BRIEF in Support filed by EMPIRE UNITED LINES, CO., INC., MICHAEL HITRINOV re 320 MOTION to Dismiss MOTION to Dismiss for Lack of Jurisdiction (WERNER, JON) (Entered: 02/29/2016)

03/08/2016	350	RESPONSE in Opposition filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 347 MOTION to Disqualify Counsel (Attachments: # 1 Certification of Maria Temkin, # 2 Exhibit 1, # 3 Exhibit 2, # 4 Exhibit 3, # 5 Exhibit 4, # 6 Exhibit 5) (TEMKIN, MARIA) (Entered: 03/08/2016)
03/23/2016	351	Second MOTION Relief from Freeze Order by Jeff Goldsmith. (Attachments: # 1 Certification of Goldsmith in Support of Motion, # 2 Exhibit Exhibit 1 - NJSC Judgment, # 3 Exhibit Exhibit 2 - USDC Order, # 4 Exhibit Exhibit 3 - NYS Judgment, # 5 Exhibit Exhibit 4 - Writ of Execution, # 6 Exhibit Exhibit 5 - Levy, # 7 Exhibit Exhibit 6 - Assignment, # 8 Exhibit Exhibit 7 - Proposed Order, # 9 Certificate of Service)(GOLDSMITH, JEFF) (Entered: 03/23/2016)
03/24/2016		Set/Reset Deadlines as to 351 Second MOTION Relief from Freeze Order . Motion set for 4/18/2016 before Judge Noel L. Hillman. Unless otherwise directed by the Court, this motion will be decided on the papers and no appearances are required. Note that this is an automatically generated message from the Clerk's Office and does not supersede any previous or subsequent orders from the Court. (tf,) (Entered: 03/24/2016)
03/24/2016	352	BRIEF in Support filed by Jeff Goldsmith re 351 Second MOTION Relief from Freeze Order (GOLDSMITH, JEFF) (Entered: 03/24/2016)
03/24/2016	353	Rule 7.1(d)(5) Letter for an automatic extension of the return date of a dispositive motion re 351 Second MOTION Relief from Freeze Order . (BROWN, ANNA) (Entered: 03/24/2016)
03/28/2016	354	BRIEF in Support filed by Jeff Goldsmith re 351 Second MOTION Relief from Freeze Order (Attachments: # 1 Certification)(GOLDSMITH, JEFF) (Entered: 03/28/2016)
03/28/2016		CLERK'S QUALITY CONTROL MESSAGE - Please be advised that the Request for an automatic extension of the return date of a dispositive motion # 353 submitted by Anna Brown on 3/24/2016 cannot be granted as requested because the motion is not a dispositive motion. This submission will remain on the docket unless otherwise ordered by the Court. This message is for informational purposes only. (tf,) (Entered: 03/28/2016)
03/28/2016	355	Certification on behalf of Jeff Goldsmith. (GOLDSMITH, JEFF) (Entered: 03/28/2016)
03/28/2016	356	STIPULATION re 351 Second MOTION Relief from Freeze Order by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (BROWN, ANNA) (Entered: 03/28/2016)
03/29/2016	357	STIPULATION AND ORDER that Plaintiffs time to file a response to Motion for Relief from Freeze Order 351 shall be extended to 4/22/2016. Signed by Judge Noel L. Hillman on 3/29/2016. (tf,) (Entered: 03/29/2016)
04/05/2016	358	OPINION FILED. Signed by Judge Noel L. Hillman on 4/5/16. (js) (Entered: 04/06/2016)

04/05/2016	359	ORDER denying 270 Motion for Summary Judgment. Signed by Judge Noel L. Hillman on 4/5/16. (js) (Entered: 04/06/2016)
04/22/2016	360	BRIEF in Opposition filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVIIY, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 351 Second MOTION Relief from Freeze Order (Attachments: # 1 Exhibit 1- NJ Disciplinary Opinion, # 2 Exhibit 2- NY Disciplinary Opinion)(TEMKIN, MARIA) (Entered: 04/22/2016)
05/02/2016	361	REPLY to Response to Motion filed by DK International Trading Inc. re 351 Second MOTION Relief from Freeze Order (Attachments: # 1 Certificate of Service)(GOLDSMITH, JEFF) (Entered: 05/02/2016)
06/14/2016	362	RESPONSE to Motion filed by SERGEY KAPUSTIN re 320 MOTION to Dismiss MOTION to Dismiss for Lack of Jurisdiction , 347 MOTION to Disqualify Counsel (tf,) (Main Document 362 replaced on 6/14/2016) (tf,). (Entered: 06/14/2016)
07/13/2016	363	Letter from Jeff Goldsmith Esq.. (Attachments: # 1 Certificate of Service)(GOLDSMITH, JEFF) (Entered: 07/13/2016)
08/27/2016	364	RESPONSE in Opposition filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVIIY, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 347 MOTION to Disqualify Counsel (Attachments: # 1 Certification of Maria Temkin, # 2 Exhibit 1, # 3 Exhibit 2, # 4 Exhibit 3, # 5 Exhibit 4, # 6 Exhibit 5, # 7 Exhibit 6, # 8 Exhibit 7, # 9 Exhibit 8, # 10 Exhibit 9, # 11 Exhibit 10, # 12 Exhibit 11, # 13 Exhibit 12)(TEMKIN, MARIA) (Entered: 08/27/2016)
08/29/2016	365	Letter from Plaintiffs' Counsel Requesting a Rule 16 Conference. (TEMKIN, MARIA) (Entered: 08/29/2016)
08/30/2016	366	Letter from Jon Werner re 365 Letter. (WERNER, JON) (Entered: 08/30/2016)
09/01/2016	367	RESPONSE to Motion filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVIIY, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 351 Second MOTION Relief from Freeze Order (Attachments: # 1 Exhibit)(BROWN, ANNA) (Entered: 09/01/2016)
09/06/2016	368	MOTION for an order vacating the Order granting Plaintiffs' Motion for Final Default Judgment and dismissing the First Amended Complaint for lack of subject-matter jurisdiction by SERGEY KAPUSTIN. (tf,) (Entered: 09/06/2016)
09/06/2016		Set/Reset Deadlines as to 368 MOTION for an order vacating the Order granting Plaintiffs'

		Motion for Final Default Judgment and dismissing the First Amended Complaint for lack of subject-matter jurisdiction. Motion set for 10/3/2016 before Judge Noel L. Hillman. Unless otherwise directed by the Court, this motion will be decided on the papers and no appearances are required. Note that this is an automatically generated message from the Clerk's Office and does not supersede any previous or subsequent orders from the Court. (tf,) (Entered: 09/06/2016)
09/08/2016	369	Letter from Plaintiffs' Counsel in Further Support of Their Request for a Rule 16 Conference re 365 Letter, 366 Letter. (TEMKIN, MARIA) (Entered: 09/08/2016)
09/12/2016	370	RESPONSE in Support filed by DK International Trading Inc. re 351 Second MOTION Relief from Freeze Order (GOLDSMITH, JEFF) (Entered: 09/12/2016)
09/15/2016	371	SCHEDULING ORDER: In-Person Conference set for 10/6/2016 @1:30 PM in Camden - Courtroom 3B before Magistrate Judge Ann Marie Donio. Signed by Magistrate Judge Ann Marie Donio on 9/15/16. (js) (Entered: 09/15/2016)
09/16/2016	372	Letter from Jon Werner requesting adjournment of conference re 371 Scheduling Order. (WERNER, JON) (Entered: 09/16/2016)
09/19/2016	373	RESPONSE in Opposition filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 368 MOTION (TEMKIN, MARIA) (Entered: 09/19/2016)
09/22/2016	374	SCHEDULING ORDER: In-Person Conference RESCHEDULED to 10/24/2016 02:00 PM in Camden - Courtroom 3B before Magistrate Judge Ann Marie Donio. Signed by Magistrate Judge Ann Marie Donio on 9/22/2016. (tf,) (Entered: 09/22/2016)
09/26/2016	375	REPLY BRIEF to Opposition to Motion filed by SERGEY KAPUSTIN re 368 MOTION (tf,) (Entered: 09/26/2016)
09/28/2016	376	AMENDED DOCUMENT by SERGEY KAPUSTIN. Amendment to 375 Reply Brief to Opposition to Motion. (tf,) (Entered: 09/28/2016)
09/29/2016	377	ORDER that the MOTION to Dismiss, MOTION to Dismiss for Lack of Jurisdiction by EMPIRE UNITED LINES, CO., INC. and MICHAEL HITRINOV 320 is DENIED. Signed by Judge Noel L. Hillman on 9/29/2016. (tf,) (Entered: 09/29/2016)
10/13/2016	378	MOTION for Reconsideration re 377 Order on Motion to Dismiss, Order on Motion to Dismiss/Lack of Jurisdiction by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (Attachments: # 1 Brief In Support of Motion for Reconsideration, # 2 Exhibit 1, # 3 Certificate of Service) (BROWN, ANNA) (Entered: 10/13/2016)
10/14/2016		Set/Reset Deadlines as to 378 MOTION for Reconsideration re 377 Order on Motion to

		Dismiss, Order on Motion to Dismiss/Lack of Jurisdiction . Motion set for 11/7/2016 before Judge Noel L. Hillman. Unless otherwise directed by the Court, this motion will be decided on the papers and no appearances are required. Note that this is an automatically generated message from the Clerk's Office and does not supersede any previous or subsequent orders from the Court. (tf,) (Entered: 10/14/2016)
10/20/2016	379	Letter from Jon Werner requesting adjournment of return day for motion for reconsideration re 378 MOTION for Reconsideration re 377 Order on Motion to Dismiss, Order on Motion to Dismiss/Lack of Jurisdiction . (WERNER, JON) (Entered: 10/20/2016)
10/21/2016	380	TEXT ORDER ORDERED that the request 379 of defendants Empire United Lines Co., Inc. and Michael Hitrinov for an extension of time to file their opposition to plaintiffs' motion for reconsideration is GRANTED. So Ordered by Judge Noel L. Hillman on 10/21/2016. (gn) (Entered: 10/21/2016)
10/24/2016	383	Minute Entry for proceedings held before Magistrate Judge Ann Marie Donio: In-Person Status Conference held on 10/24/2016. Order to be entered. (Court Reporter/Recorder ECR.) (TH,) (Entered: 10/25/2016)
10/25/2016	381	TEXT ORDER: Plaintiffs' request to reopen discovery shall be, and is hereby, GRANTED. An Amended Scheduling Order shall issue. SO ORDERED by Magistrate Judge Ann Marie Donio on 10/25/2016. (slc) (Entered: 10/25/2016)
10/25/2016	382	AMENDED SCHEDULING ORDER: Final Pretrial Conference set for 1/30/2017 02:00 PM before Magistrate Judge Ann Marie Donio. Pretrial Factual Discovery concluded by 12/30/2016. Signed by Magistrate Judge Ann Marie Donio on 10/25/2016. (tf,) (Entered: 10/25/2016)
10/28/2016	384	SUMMONS Returned Executed by ARKADIY KOLBIN, MIKHAIL ZVEREV, ARDAK AKISHEV, EVGENIY BORZENKO, VLADIMIR LUKYANOV, NATALIA KIRIK, ALEXANDER PUKIR, IGOR GLAZUNOV, YURIY YAMKOVYI, IRINA GLAZUNOVA, EVGENIY TELIN, ELENA ZVEREVA, VIKTOR MANIASHIN, ANDREY KIRIK, ALLA YAMKOVAYA, ALEXEY BATALOV, ZHANDOS ALIAKPAROV, MIKHAIL MATVEEV, ALEXANDER ZHILINSKIY, EVGENIY KONDRATUK, EDUARD LISITSYN. MICHAEL HITRINOV served on 10/20/2016, answer due 11/10/2016. (BROWN, ANNA) (Entered: 10/28/2016)
10/28/2016	385	SUMMONS Returned Executed by ARKADIY KOLBIN, MIKHAIL ZVEREV, ARDAK AKISHEV, EVGENIY BORZENKO, VLADIMIR LUKYANOV, NATALIA KIRIK, ALEXANDER PUKIR, IGOR GLAZUNOV, YURIY YAMKOVYI, IRINA GLAZUNOVA, EVGENIY TELIN, ELENA ZVEREVA, VIKTOR MANIASHIN, ANDREY KIRIK, ALLA YAMKOVAYA, ALEXEY BATALOV, ZHANDOS ALIAKPAROV, MIKHAIL MATVEEV, ALEXANDER ZHILINSKIY, EVGENIY KONDRATUK, EDUARD LISITSYN. MICHAEL HITRINOV served on 10/20/2016, answer due 11/10/2016. (BROWN, ANNA) (Entered: 10/28/2016)
10/28/2016	386	SUMMONS Returned Executed by ARKADIY KOLBIN, MIKHAIL ZVEREV, ARDAK AKISHEV, EVGENIY BORZENKO, VLADIMIR LUKYANOV, NATALIA KIRIK, ALEXANDER PUKIR, IGOR GLAZUNOV, YURIY YAMKOVYI, IRINA GLAZUNOVA, EVGENIY TELIN, ELENA ZVEREVA, VIKTOR MANIASHIN, ANDREY KIRIK, ALLA YAMKOVAYA, ALEXEY BATALOV, ZHANDOS ALIAKPAROV, MIKHAIL MATVEEV, ALEXANDER ZHILINSKIY, EVGENIY

		KONDRATUK, EDUARD LISITSYN. EMPIRE UNITED LINES, CO., INC. served on 10/20/2016, answer due 11/10/2016. (BROWN, ANNA) (Entered: 10/28/2016)
10/28/2016	387	SUMMONS Returned Executed by ARKADIY KOLBIN, MIKHAIL ZVEREV, ARDAK AKISHEV, EVGENIY BORZENKO, VLADIMIR LUKYANOV, NATALIA KIRIK, ALEXANDER PUKIR, IGOR GLAZUNOV, YURIY YAMKOVYI, IRINA GLAZUNOVA, EVGENIY TELIN, ELENA ZVEREVA, VIKTOR MANIASHIN, ANDREY KIRIK, ALLA YAMKOVAYA, ALEXEY BATALOV, ZHANDOS ALIAKPAROV, MIKHAIL MATVEEV, ALEXANDER ZHILINSKIY, EVGENIY KONDRATUK, EDUARD LISITSYN. EMPIRE UNITED LINES, CO., INC. served on 10/20/2016, answer due 11/10/2016. (BROWN, ANNA) (Entered: 10/28/2016)
10/28/2016	388	AFFIDAVIT of Service for Summonses, Amended Answer and Crossclaims (Docket No. 88) and First Amended Crossclaim Complaint (Docket No. 274) served on Michael Hitrinov, Empire United Lines Co., Inc. on 10/20/2016, filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (BROWN, ANNA) (Entered: 10/28/2016)
10/31/2016	389	Letter from Jon Werner requesting extension of time to answer or otherwise respond to FACCC. (WERNER, JON) (Entered: 10/31/2016)
11/01/2016	390	TEXT ORDER ORDERED that the request 389 by cross-claim defendants Empire United Lines Co., Inc. and Michael Hitrinov to answer or otherwise respond to plaintiffs' FACCC by December 8, 2016 is GRANTED. So Ordered by Judge Noel L. Hillman on 11/1/2016. (Byrnes, Kristyn) (Entered: 11/01/2016)
11/21/2016	391	MEMORANDUM in Opposition filed by EMPIRE UNITED LINES, CO., INC., MICHAEL HITRINOV re 378 MOTION for Reconsideration re 377 Order on Motion to Dismiss, Order on Motion to Dismiss/Lack of Jurisdiction (WERNER, JON) (Entered: 11/21/2016)
11/25/2016	392	Letter from Jon Werner requesting extension of time to answer or otherwise respond to FACCC. (WERNER, JON) (Entered: 11/25/2016)
11/28/2016	393	TEXT ORDER ORDERED that cross-claim defendants' request 392 for an extension of time to answer or otherwise respond to the FACCC until January 16, 2017 is GRANTED. So Ordered by Judge Noel L. Hillman on 11/28/2016. (gn) (Entered: 11/28/2016)
12/05/2016	394	Transcript of Proceedings held on 10/24/2016, before Judge ANN MARIE DONIO. Court Reporter/Transcriber Laws Transcription Service ((610)623-4178). NOTICE REGARDING REDACTION OF TRANSCRIPTS: The parties have seven (7) calendar days to file with the Court a Notice of Intent to Request Redaction of this Transcript. Redaction Request due 12/27/2016. Redacted Transcript Deadline set for 1/5/2017. Release of Transcript Restriction set for 3/6/2017. (tf,) (Entered: 12/05/2016)
12/08/2016	395	OPINION. Signed by Judge Noel L. Hillman on 12/8/2016. (tf,) (Entered: 12/08/2016)
12/08/2016	396	ORDER denying 347 defendant Sergey Kapustin's LETTER/MOTION to Disqualify Plaintiffs' Counsel and Other Relief; denying 351 intervenor DK International Trading Inc.'s Second MOTION for Relief from Freeze Order; denying 368 defendant Sergey Kapustin's MOTION

		for an order vacating the Order granting Plaintiffs' Motion for Final Default Judgment and dismissing the First Amended Complaint for lack of subject-matter jurisdiction. Signed by Judge Noel L. Hillman on 12/8/2016. (tf,) (Entered: 12/08/2016)
12/16/2016	397	Letter from Plaintiffs' Counsel. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3) (BROWN, ANNA) (Entered: 12/16/2016)
12/16/2016	398	TEXT ORDER: The Court is in receipt of Plaintiffs' letter dated 12/16/2016 [D.I. 397]. Defendants Hitrinov and Empire United Lines, Inc. shall file a response thereto by no later than 12/27/2016. The Court will conduct a telephone conference on 1/12/2017 at 3:00 PM. Counsel for Plaintiffs shall initiate the telephone call. SO ORDERED by Magistrate Judge Ann Marie Donio on 12/16/2016. (slc) (Entered: 12/16/2016)
12/19/2016	399	MOTION to Quash <i>Plaintiffs' Subpoenas</i> by TRT INTERNATIONAL LTD.. (Attachments: # 1 Certification, # 2 Certificate of Service, # 3 Text of Proposed Order)(DAS, SUZANA) (Entered: 12/19/2016)
12/20/2016		CLERK'S QUALITY CONTROL MESSAGE - The Motion to Quash document #399 submitted by Suzana Das on 12/19/2016 is missing the NOTICE OF MOTION. PLEASE SUBMIT THE MISSING DOCUMENT(S) ONLY using the event *EXHIBIT TO DOCUMENT* found in *Other Documents*. (TH,) (Entered: 12/20/2016)
12/20/2016		Set/Reset Deadlines as to 399 MOTION to Quash <i>Plaintiffs' Subpoenas</i> . Motion set for 1/17/2017 before Magistrate Judge Ann Marie Donio. Unless otherwise directed by the Court, this motion will be decided on the papers and no appearances are required. Note that this is an automatically generated message from the Clerk's Office and does not supersede any previous or subsequent orders from the Court. (TH,) (Entered: 12/20/2016)
12/21/2016	400	MOTION for Reconsideration re 395 Opinion, 396 Order on Motion to Disqualify Counsel,, Order on Motion for Miscellaneous Relief,,,,, by DK International Trading Inc.. (Attachments: # 1 Brief, # 2 Certificate of Service)(GOLDSMITH, JEFF) (Entered: 12/21/2016)
12/21/2016		Set/Reset Deadlines as to 400 MOTION for Reconsideration re 395 Opinion, 396 Order on Motion to Disqualify Counsel,, Order on Motion for Miscellaneous Relief,,,,, . Motion set for 1/17/2017 before Judge Noel L. Hillman. Unless otherwise directed by the Court, this motion will be decided on the papers and no appearances are required. Note that this is an automatically generated message from the Clerk's Office and does not supersede any previous or subsequent orders from the Court. (tf,) (Entered: 12/21/2016)
12/27/2016	401	Letter from Jon Werner responding to motion to compel re 397 Letter. (WERNER, JON) (Entered: 12/27/2016)
12/27/2016	402	MOTION to Quash <i>Subpoena to Testify at a Deposition in a Civil Action and to Produce Documents</i> by Iskandar Ibragimov. (Attachments: # 1 Brief, # 2 Declaration of Iskandar Ibragimov, # 3 Declaration of Ekaterina Schoenefeld, # 4 Text of Proposed Order, # 5 Certificate of Service)(SCHOENEFELD, EKATERINA) (Entered: 12/27/2016)
12/28/2016		Set/Reset Deadlines as to 402 MOTION to Quash <i>Subpoena to Testify at a Deposition in a Civil Action and to Produce Documents</i> . Motion set for 2/6/2017 before Magistrate Judge Ann Marie Donio. Unless otherwise directed by the Court, this motion will be decided on the papers and no appearances are required. Note that this is an automatically generated message from the Clerk's Office and does not supersede any previous or subsequent orders from the Court. (tf,) (Entered: 12/28/2016)

12/28/2016	403	Letter from Plaintiffs' Counsel re 400 MOTION for Reconsideration re 395 Opinion, 396 Order on Motion to Disqualify Counsel,,, Order on Motion for Miscellaneous Relief,,,,, . (BROWN, ANNA) (Entered: 12/28/2016)
12/29/2016	404	TEXT ORDER ORDERED that Plaintiffs' request 403 to reset the return date for the Motion for Reconsideration filed by Intervenor DK International Trading, Inc., Docket No. 400, until February 6, 2017 is GRANTED. So Ordered by Judge Noel L. Hillman on 12/29/2016. (gn) (Entered: 12/29/2016)
12/29/2016	405	MOTION to Compel <i>Deposition of Svetlana Zakirzyanov</i> by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (Attachments: # 1 Brief in Support of Motion to Compel, # 2 Declaration of Counsel, # 3 Exhibit 1, # 4 Exhibit 2)(BROWN, ANNA) (Entered: 12/29/2016)
12/29/2016		Set/Reset Deadlines as to 405 MOTION to Compel <i>Deposition of Svetlana Zakirzyanov</i> . Motion set for 2/6/2017 before Magistrate Judge Ann Marie Donio. Unless otherwise directed by the Court, this motion will be decided on the papers and no appearances are required. Note that this is an automatically generated message from the Clerk's Office and does not supersede any previous or subsequent orders from the Court. (tf,) (Entered: 12/29/2016)
01/03/2017	406	Letter from Jon Werner requesting extension of time to answer or otherwise respond to FACCC. (WERNER, JON) (Entered: 01/03/2017)
01/03/2017	407	Cross MOTION to Compel <i>TRT International, LTD and Oleg Mitnik to Appear for Depositions and to Produce Documents</i> by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (Attachments: # 1 Brief in Support of Motion to Compel, # 2 Declaration of Counsel, # 3 Exhibit 1, # 4 Exhibit 2, # 5 Exhibit 3, # 6 Exhibit 4, # 7 Exhibit 5, # 8 Exhibit 6, # 9 Exhibit 7, # 10 Exhibit 8, # 11 Exhibit 9, # 12 Text of Proposed Order)(BROWN, ANNA) (Entered: 01/03/2017)
01/04/2017		Set/Reset Deadlines as to 407 Cross MOTION to Compel <i>TRT International, LTD and Oleg Mitnik to Appear for Depositions and to Produce Documents</i> . Motion set for 2/6/2017 before Magistrate Judge Ann Marie Donio. Unless otherwise directed by the Court, this motion will be decided on the papers and no appearances are required. Note that this is an automatically generated message from the Clerk's Office and does not supersede any previous or subsequent orders from the Court. (tf,) (Entered: 01/04/2017)
01/04/2017	408	TEXT ORDER: ORDERED that cross-claim defendants Empire United Lines Co., Inc. and Michael Hitrinov's request 406 for an extension of the cross-claim defendants time to answer or otherwise respond to the FACCC until February 13, 2017 is GRANTED. So Ordered by Judge Noel L. Hillman on 1/4/17. (Byrnes, Kristyn) (Entered: 01/04/2017)

01/05/2017	409	Letter from Plaintiffs' Counsel to Extend Time for Submission of Final Pretrial Order and Final Pretrial Conference. (BROWN, ANNA) (Entered: 01/05/2017)
01/06/2017	410	RESPONSE re 409 Letter. (KRASNY, SCOTT) (Entered: 01/06/2017)
01/10/2017	411	Letter from Suzana Das, Counsel of Non-Party TRT International and Igor Mitnik Objecting to Request For Extension for Discovery Filed by Plaintiffs re 409 Letter. (DAS, SUZANA) (Entered: 01/10/2017)
01/10/2017	412	Letter from Plaintiffs' Counsel to Request Extension of Time to Respond to Motion for Reconsideration re 400 MOTION for Reconsideration re 395 Opinion, 396 Order on Motion to Disqualify Counsel,,, Order on Motion for Miscellaneous Relief,,,,. (BROWN, ANNA) (Entered: 01/10/2017)
01/11/2017	413	TEXT ORDER Plaintiffs' request 412 that the Court set the new motion return date for Docket No. 400 for February 21, 2017 with opposition papers due on February 7, 2017 is GRANTED. So Ordered by Judge Noel L. Hillman on 1/11/2017. (gn) (Entered: 01/11/2017)
01/11/2017	414	Letter from Plaintiffs' Counsel in Response to Objection to Amend Scheduling Order re 409 Letter, 410 Response (NOT Motion), 411 Letter. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Exhibit 6)(BROWN, ANNA) (Entered: 01/11/2017)
01/12/2017	416	Minute Entry for proceedings held before Magistrate Judge Ann Marie Donio: Telephone Status Conference held on 1/12/2017. Order to be entered. (Court Reporter: E.C.R.) (js) (Entered: 01/17/2017)
01/13/2017	415	SCHEDULING ORDER: Final Pretrial Conference RESCHEDULED to 3/7/2017 02:30 PM before Magistrate Judge Ann Marie Donio. Signed by Magistrate Judge Ann Marie Donio on 1/13/2017. (tf,) (Entered: 01/13/2017)
01/19/2017	417	RESPONSE to Motion filed by SVETLANA ZAKIRZHYANOV re 405 MOTION to Compel <i>Deposition of Svetlana Zakirzyanov</i> (TH,) (Entered: 01/19/2017)
01/19/2017	418	Notice to be terminated and withdraw from Notices of Electronic filing as to case. Attorney KEVIN TIMOTHY SULLIVAN terminated. (SULLIVAN, KEVIN) (Entered: 01/19/2017)
01/23/2017	419	RESPONSE in Opposition filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 402 MOTION to Quash <i>Subpoena to Testify at a Deposition in a Civil Action and to Produce Documents and Cross-Motion to Compel</i> (Attachments: # 1 Brief in Opposition, # 2 Certification of Counsel, # 3 Exhibit 1, # 4 Exhibit 2, # 5 Exhibit 3, # 6 Exhibit 4, # 7 Exhibit 5, # 8 Exhibit 6, # 9 Text of Proposed Order)(TEMKIN, MARIA) (Entered: 01/23/2017)
01/23/2017	420	Letter from Plaintiffs' Counsel Requesting Approval of the Stipulated Consent Order re 405 MOTION to Compel <i>Deposition of Svetlana Zakirzyanov</i> , 417 Response to Motion. (Attachments: # 1 Text of Proposed Order)(TEMKIN, MARIA) (Entered: 01/23/2017)
01/24/2017		CLERK'S QUALITY CONTROL MESSAGE - The Response in Opposition to Motion #

		419 submitted by M. Temkin on 1/23/2017 contains a Cross-Motion. PLEASE RESUBMIT THE CROSS-MOTION USING THE CORRECT EVENT MOTION in order to have the Motion placed on the Court's calendar. Counsel is only to re-file the Motion and may refer to the supporting documents as being filed on the docket in entry 419 . This submission will remain on the docket unless otherwise ordered by the court. (tf,) (Entered: 01/24/2017)
01/24/2017	421	ORDER denying as moot 405 Motion to Compel; Svetlana Zakirzyanova shall appear for deposition in the Subpoena on February 2, 2017 at 11:00 am. Signed by Magistrate Judge Ann Marie Donio on 1/24/2017. (tf,) (Entered: 01/24/2017)
01/24/2017	422	Cross MOTION to Compel <i>Iskandar Ibragimov to Appear for Deposition and to Produce Documents (supporting documents in 419 Response)</i> by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (BROWN, ANNA) Modified on 1/24/2017 (TH). (Entered: 01/24/2017)
01/25/2017		Set/Reset Deadlines as to 422 Cross MOTION to Compel <i>Iskandar Ibragimov to Appear for Deposition and to Produce Documents</i> . Motion set for 2/21/2017 before Magistrate Judge Ann Marie Donio. Unless otherwise directed by the Court, this motion will be decided on the papers and no appearances are required. Note that this is an automatically generated message from the Clerk's Office and does not supersede any previous or subsequent orders from the Court. (tf,) (Entered: 01/25/2017)
01/26/2017	423	Letter from counsel for non-party Iskandar Ibragimov. (SCHOENEFELD, EKATERINA) (Entered: 01/26/2017)
01/27/2017	424	TEXT ORDER: The Court is in receipt of a letter from counsel for non-party Iskandar Ibragimov [D.I. 423] seeking clarification as to the return date(s) for non-party Iskandar Ibragimov's Motion to Quash [D.I. 402] and Plaintiffs' Cross Motion to Compel [D.I. 422]. It is hereby ORDERED that the new motion return date for [D.I. 402] shall be February 21, 2017 with reply papers due February 14, 2017. SO ORDERED by Magistrate Judge Ann Marie Donio on 1/27/2017. (slc) (Entered: 01/27/2017)
01/30/2017		AMENDED Set/Reset Deadlines as to 402 MOTION to Quash <i>Subpoena to Testify at a Deposition in a Civil Action and to Produce Documents</i> . Motion set for 2/21/2017 before Magistrate Judge Ann Marie Donio. Unless otherwise directed by the Court, this motion will be decided on the papers and no appearances are required. Note that this is an automatically generated message from the Clerk's Office and does not supersede any previous or subsequent orders from the Court. (tf,) (Entered: 01/30/2017)
01/30/2017	425	Exhibit to 399 Motion to Quash by TRT INTERNATIONAL LTD.. (DAS, SUZANA) (Entered: 01/30/2017)
01/31/2017	426	MOTION for Discovery , MOTION to Compel by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV,

		ELENA ZVEREVA. (Attachments: # 1 Brief in Support of Motion, # 2 Certification of Counsel, # 3 Exhibit 1, # 4 Exhibit 2, # 5 Exhibit 3, # 6 Exhibit 4, # 7 Exhibit 5, # 8 Exhibit 6, # 9 Exhibit 7, # 10 Exhibit 8, # 11 Affidavit of Process Server, # 12 Exhibit 1, # 13 Exhibit 2, # 14 Exhibit 3, # 15 Exhibit 4, # 16 Index 5, # 17 Exhibit 6, # 18 Exhibit 7, # 19 Exhibit 8, # 20 Exhibit 9, # 21 Exhibit 10, # 22 Exhibit 11, # 23 Text of Proposed Order order)(BROWN, ANNA) (Entered: 02/01/2017)
02/02/2017		Set/Reset Deadlines as to 426 MOTION for Discovery MOTION to Compel . Motion set for 3/6/2017 before Magistrate Judge Ann Marie Donio. Unless otherwise directed by the Court, this motion will be decided on the papers and no appearances are required. Note that this is an automatically generated message from the Clerk's Office and does not supersede any previous or subsequent orders from the Court. (tf,) (Entered: 02/02/2017)
02/07/2017	427	Letter from Jon Werner requesting extension of time to answer or otherwise respond to FACCC. (WERNER, JON) (Entered: 02/07/2017)
02/07/2017	428	Letter from Plaintiffs' Counsel to Oppose Request for Extension of Time to Answer re 427 Letter. (BROWN, ANNA) (Entered: 02/07/2017)
02/07/2017	429	RESPONSE in Opposition filed by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA re 400 MOTION for Reconsideration re 395 Opinion, 396 Order on Motion to Disqualify Counsel,,, Order on Motion for Miscellaneous Relief,,,, (BROWN, ANNA) (Entered: 02/07/2017)
02/08/2017	430	Letter from Suzana Das, Counsel of Non-Party TRT International and Igor Mitnik Objecting to Request For Extension for Discovery Filed by Plaintiffs to Hon. Ann Marie Donio requesting clarification and additional time to respond to Plaintiffs' Motion to Compel. (DAS, SUZANA) (Entered: 02/08/2017)
02/08/2017	431	ORDER granting request for an extension of the cross-claim defendants' time to answer or otherwise respond to the FACCC until 2/27/2017. Signed by Judge Noel L. Hillman on 2/8/2017. (tf,) (Entered: 02/08/2017)
02/13/2017	432	Letter from Jon Werner to Magistrate Judge Donio requesting adjournment of motion day re 426 MOTION for Discovery MOTION to Compel . (WERNER, JON) (Entered: 02/13/2017)
02/14/2017	433	TEXT ORDER: The Court is in receipt of a letter [D.I. 430] from Suzana Das, Esq., counsel for Igor Mitnik and TRT International, LLC, requesting additional time to respond to the cross-motion to compel [D.I. 407]. The cross-motion to compel was filed on 1/3/2017 and any response thereto was originally due on 1/23/2017. This request for additional time was not made until 2/8/2017. Consequently, the application for additional time to respond to the cross-motion to compel shall be, and is hereby, denied. SO ORDERED by Magistrate Judge Ann Marie Donio on 2/14/2017. (slc) (Entered: 02/14/2017)
02/14/2017	434	TEXT ORDER: The Court is in receipt of a letter [D.I. 432] from Jon Werner, Esq., counsel for Empire United Lines Co., Inc. and Michael Hitrinov, requesting additional time to respond

		to Plaintiff's motion to compel [D.I. 426]. For good cause shown, any opposition to the motion shall be filed by 3/6/2017; and any reply thereto shall be filed by 3/13/2017. SO ORDERED by Magistrate Judge Ann Marie Donio on 2/14/2017. (slc) (Entered: 02/14/2017)
02/14/2017	435	REPLY to Response to Motion filed by Iskandar Ibragimov re 422 Cross MOTION to Compel <i>Iskandar Ibragimov to Appear for Deposition and to Produce Documents</i> , 402 MOTION to Quash <i>Subpoena to Testify at a Deposition in a Civil Action and to Produce Documents</i> (Attachments: # 1 Declaration, # 2 Certificate of Service)(SCHOENEFELD, EKATERINA) (Entered: 02/14/2017)
02/27/2017	436	Exhibit to 419 Response in Opposition to Motion,,, by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (BROWN, ANNA) (Entered: 02/27/2017)
02/27/2017	437	MOTION to Dismiss , MOTION to Dismiss for Lack of Jurisdiction by EMPIRE UNITED LINES, CO., INC., MICHAEL HITRINOV. Responses due by 3/20/2017 (Attachments: # 1 Brief, # 2 Certification of Jon Werner, # 3 Exhibit A - 11/7/13 Memo and Order, # 4 Exhibit B - USPS Tracking Reports, # 5 Exhibit C - Tantuccio Consent Order, # 6 Exhibit D - First Amended Complaint, # 7 Exhibit E - EDNY Complaint, # 8 Exhibit F - EDNY Answer, # 9 Exhibit G - First Amended Crossclaim Complaint, # 10 Exhibit H - Wonica Decision and Order, # 11 Exhibit I - Grobstin Certificate of Service, # 12 Exhibit J - Certification of Michael Hitrinov, # 13 Exhibit K - Certification of Robert Van Horn, # 14 Exhibit L - Certification of Shafadio Manashirov)(WERNER, JON) (Entered: 02/27/2017)
02/28/2017		Set/Reset Deadlines as to 437 MOTION to Dismiss MOTION to Dismiss for Lack of Jurisdiction . Motion set for 4/3/2017 before Judge Noel L. Hillman. Unless otherwise directed by the Court, this motion will be decided on the papers and no appearances are required. Note that this is an automatically generated message from the Clerk`s Office and does not supersede any previous or subsequent orders from the Court. (tf,) (Entered: 02/28/2017)
03/06/2017	438	Proposed Pretrial Order <i>Joint Pretrial Order</i> by ARDAK AKISHEV, ZHANDOS ALIAKPAROV, ALEXEY BATALOV, EVGENIY BORZENKO, IGOR GLAZUNOV, IRINA GLAZUNOVA, ANDREY KIRIK, NATALIA KIRIK, ARKADIY KOLBIN, EVGENIY KONDRATUK, EDUARD LISITSYN, VLADIMIR LUKYANOV, VIKTOR MANIASHIN, MIKHAIL MATVEEV, ALEXANDER PUKIR, EVGENIY TELIN, ALLA YAMKOVAYA, YURIY YAMKOVYI, ALEXANDER ZHILINSKIY, MIKHAIL ZVEREV, ELENA ZVEREVA. (Attachments: # 1 Text of Proposed Order Joint Pretrial Order) (BROWN, ANNA) (Entered: 03/06/2017)
03/06/2017	439	CERTIFICATION in Opposition filed by EMPIRE UNITED LINES, CO., INC., MICHAEL HITRINOV re 426 MOTION for Discovery MOTION to Compel (Attachments: # 1 Exhibit 1 - EUL Subpoena, # 2 Exhibit 2 - Hitrinov Subpoena)(WERNER, JON) (Entered: 03/06/2017)
03/06/2017	440	CERTIFICATION in Opposition filed by EMPIRE UNITED LINES, CO., INC., MICHAEL HITRINOV re 426 MOTION for Discovery MOTION to Compel (Attachments: # 1 Exhibit A - USPS tracking reports)(WERNER, JON) (Entered: 03/06/2017)

03/06/2017	441	BRIEF in Opposition filed by EMPIRE UNITED LINES, CO., INC., MICHAEL HITRINOV re 426 MOTION for Discovery MOTION to Compel (WERNER, JON) (Entered: 03/06/2017)
03/07/2017	442	JOINT FINAL PRETRIAL ORDER. Signed by Magistrate Judge Ann Marie Donio on 3/7/17. (js) (Entered: 03/08/2017)
03/07/2017	443	ORDER: The parties shall submit a list of proposed in limine motions to the Court by no later than March 14, 2017. Telephone Status Conference set for 4/7/2017 @10:00 AM before Magistrate Judge Ann Marie Donio. Signed by Magistrate Judge Ann Marie Donio on 3/7/17. (js) (Entered: 03/08/2017)
03/07/2017	444	Minute Entry for proceedings held before Magistrate Judge Ann Marie Donio: Final Pretrial Conference held on 3/7/2017. Order to be entered. (Court Reporter: E.C.R.) (js) (Entered: 03/08/2017)
03/09/2017	445	ORDER granting 399 Motion to Quash; granting 402 Motion to Quash; denying 407 Motion to Compel; denying 422 Motion to Compel. Signed by Magistrate Judge Ann Marie Donio on 3/9/17. (js) (Entered: 03/09/2017)

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03/10/2017 19:22:46			
PACER Login:	manussbaum:4318728:0	Client Code:	
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Billable Pages:	30	Cost:	3.00

APPENDIX “2”

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO.: 1953(I)

KAIRAT NURGAZINOV,

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

COMPLAINANTS' STATUS REPORT

Complainants herein submit this Status Report to make the Presiding Officer aware of changes in status regarding the above captioned matter.

As of the time of this writing there have been several significant developments which have occurred since complainants' last Status Report docketed on November 22, 2016.

The first issue that complainants wish to bring to the Presiding Officer's attention involves non-party, Sergey Kapustin ("Kapustin"), whom to date has sought, *inter alia* to 1) intervene in this matter; 2) have complainants' counsel 'disqualified' from representing the complainants

herein; 3) to strike and/or ‘seal’ certain filings and documents in this matter; and 4) generally interfere with the orderly and expeditious litigation of this matter.

The Presiding Officer is further respectfully reminded that for a variety of reasons, including but not limited to the fact that Kapustin upon information and belief, does not read or write in English, together with the fact that as set forth below, Kapustin has no monies or funds with which to hire or retain other counsel it is, has been, and continues to be complainants’ contention that documents filed and/or docketed with the Commission in Kapustin’s name were in reality authored by respondents’ counsel herein, Eric Jeffrey, Esq. (“Jeffrey”) together with his “coordinating counsel”, Jon Werner, Esq. (“Werner”) who have previously colluded with Kapustin by providing him with documents for Kapustin’s review in the case at bar.

The Presiding Officer is further asked to note Jeffrey’s having joined in various “arguments” espoused by Kapustin; having vaunted (if not vouched for) Kapustin’s various contentions; and having proffered documents in support of Kapustin’s “arguments” which Kapustin did not annex to his own motion papers and filings with the Commission.

Correspondingly, the Presiding Officer is additionally asked to note Kapustin’s long association with respondents’ coordinating counsel, Werner, inclusive of Werner’s well documented open solicitation of Kapustin in an unrelated proceeding, while simultaneously representing respondent, Michael Hitrinov, (“Hitrinov”) as an adverse party in the same matter.

On December 22, 2016 the United States District Court for the District of New Jersey, by the Honorable Magistrate Judge Mark Falk, signed a criminal Complaint returned by a Federal Grand Jury against Kapustin alleging wire fraud and attempted wire fraud, a copy of which is annexed hereto as Appendix “1”.

Said criminal Complaint specifically ties respondent, Hitrinov to Kapustin in that Kapustin used Hitrinov's company to ship certain vehicles, the purchase and sale of which were the *res gestae* of the criminal Complaint. Further, the transactions at issue in said case were the same transactions at issue in the instant case now pending before the Presiding Officer. With particular regard to the latter, Appendix "1" reads, in relevant part, as follows:

"Victim 2 has attested that... in December 2012, KAPUSTIN told Victim 2 that the car was in Kotka, Finland but couldn't be released, and Victim 2 was told to call CarCont, Ltd in Kotka for an explanation...CarCont, Ltd. refused to release the car, without significant additional charges...[and that Victim 2 was] unable to determine if his/her car in fact was in Kotka...[and that] Victim 2 sought, but was refused, a refund of the \$22,920 purchase price."

As the Presiding Officer may recall from complainants' original Complaint as well as from numerous other documents and filings in this matter, CarCont Ltd. was the consignee in Kotka Finland to whom the subject vehicles in the case at bar were delivered. As the Presiding Officer may further recall, and as additionally pleaded in complainants' original Complaint, it has been and remains complainants' contention that CarCont Ltd. is owned by respondent, Hitrinov.

As the Presiding Officer may additionally recall from numerous filings and documents in this matter, Kapustin was the alleged owner and/or principal shareholder of several purported entities bearing the name "Global", and who while simultaneously acting in concert with Hitrinov and his company, Empire United Lines Co. Inc. ("EUL") with respect to the criminal enterprise set forth within the criminal complaint had separately brought claims against EUL, which were ultimately assigned to victims of the fraud committed by Kapustin and the Global entities; and whom are now prosecuting the claims previously brought by Kapustin and Global, against EUL. See, Opinion of the Honorable Judge Noel L. Hillman of December 8, 2016, a copy of which is annexed hereto as Appendix "2", in which he opines as follows:

“...through the assignment of the Global entities’ claims against the EUL defendants, the 21 plaintiffs who were victims of Kapustin’s and the Global entities’ fraud are now prosecuting the claims of the Global entities against the EUL defendants.”

CONCLUSION

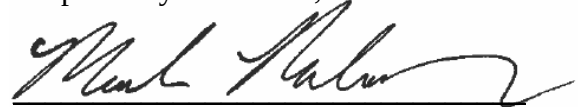
As set forth above, respondent, Hitrinov and his counsel Jeffrey, along with Jeffrey’s “coordinating counsel”, Werner have, by and through their actions, legally and factually “wedded” themselves to Kapustin, who has now been formally indicted as set forth above.

Consequently the foregoing, along with the attachments annexed hereto are respectfully submitted as same reflect a dramatic ‘change in status’ of this case with regard to both respondent, Hitrinov and his counsel, as well as to the several pending motions of non-party, Kapustin so as to inform the Presiding Officer of said change in status as same may reflect upon or be determinative of pending motions now before the Presiding Officer and the Commission herein.

In closing, and as always, complainants thank the Presiding Officer for his many continuing courtesies and considerations in this case.

Dated: January 15, 2017
Brooklyn, New York

Respectfully Submitted,

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

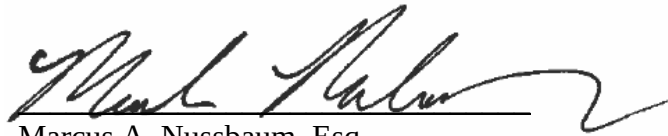
Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' STATUS REPORT** upon Respondents' Counsel at the following address:

Nixon Peabody LLP
Attn: Eric C. Jeffrey, Esq.
799 9th Street NW, Suite 500
Washington, DC 20001-4501

by first class mail, postage prepaid, and via email (ejeffrey@nixonpeabody.com).

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

Dated: January 15, 2017 in Brooklyn, New York.

APPENDIX “1”

to Status Report of January 15, 2017

UNITED STATES DISTRICT COURT
DISTRICT OF NEW JERSEY

UNITED STATES OF AMERICA

Mag. No. 16- **3662(MF)**

v.

Hon.

SERGEY KAPUSTIN

CRIMINAL COMPLAINT

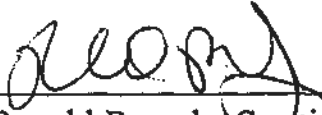
I, RONALD PASCALE, being duly sworn, state the following is true and correct to the best of my knowledge and belief:

SEE ATTACHMENT A

I further state that I am a Special Agent with the Federal Bureau of Investigation, and that this Complaint is based on the following facts:

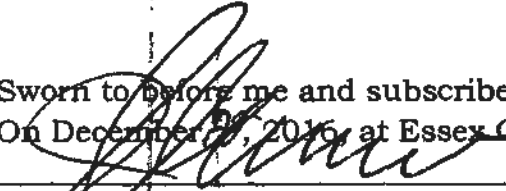
SEE ATTACHMENT B

continued on the attached page and made a part hereof.



Ronald Pascale, Special Agent
Federal Bureau of Investigation

Sworn to before me and subscribed in my presence,
On December 22, 2016, at Essex County, New Jersey



HONORABLE MARK FALK
UNITED STATES MAGISTRATE JUDGE

ATTACHMENT A

From in or about September 2009 through in or about October 2014, in
Districts of New Jersey, Pennsylvania and elsewhere, the defendant,

SERGEY KAPUSTIN

did knowingly and intentionally conspire and agree with others to devise a
scheme and artifice to defraud customers of his auto dealerships, namely
Global Auto Group, G Auto and others, and to obtain money and property by
means of materially false and fraudulent pretenses, representations and
promises, and for the purpose of executing such scheme and artifice to cause
to be transmitted by means of wire communications in interstate and foreign
commerce, writings, signs, signals, pictures and sounds, for the purpose of
executing the scheme; that is to steal approximately two million dollars
(\$2,000,000) by failing to deliver vehicles which had been paid for in full by
purchasers, contrary to Title 18, United States Code, Section 1343.

In violation of Title, 18 United States Code, Section 1349

ATTACHMENT B

I, Ronald Pascale, am a Special Agent with the Federal Bureau of Investigation ("FBI"). I have knowledge of the following facts based upon both my investigation and discussions with civilian witnesses, law enforcement personnel and other individuals. Because this affidavit is being submitted for the sole purpose of establishing probable cause to support the issuance of a complaint, I have not included each and every fact known to the government concerning this matter. Where statements of others are set forth herein, these statements are related in substance and in part. Where I assert that an event took place on a particular time or date, I am asserting that it took place on or about the time or date alleged.

Background

1. At all times relevant to this Complaint:

a. Defendant SERGEY KAPUSTIN (hereinafter KAPUSTIN) was resident of Warminster, Pa., and the owner and President of Global Auto Group ("GLOBAL"), G Auto Sales, Effect Auto Sales. Global Auto, and its derivative auto dealerships, are located in Elizabeth, New Jersey.

b. Global bought and sold used cars, typically high-end vehicles, identified by the classification as "salvaged". The customer base for KAPUSTIN's fraudulent sales was typically in Russia, Ukraine and other members of the former Soviet Republic.

DEFENDANT KAPUSTIN'S FRAUDULENT ACTIVITY

THE SCHEME

2. From in or about January 2011 through at least December 2014, KAPUSTIN conducted his auto business through a wide-ranging and deliberate scheme to defraud purchasers located in Russia, Ukraine and elsewhere. Many of the victims of this fraud have been interviewed in person here in the United States, and several have given testimony in a federal grand jury in Newark. Victims, after viewing Kapustin's Russian language website, would purchase what they saw and believed were high end vehicles from KAPUSTIN and his companies, including Global Auto, Inc., Effect Auto Sales, Inc., G-Auto Sales, Inc., Global Cars, Inc. and SK Imports. KAPUSTIN was himself Russian and his websites were geared typically to buyers who would put their trust in a fellow countryman to follow through on a deal once the purchase price had been paid. The victims were routinely told, either by way of the internet or by telephone, that their cars would be shipped to Kotka, Finland once the full price had been paid. In order to further entice the buyers, the vehicles offered were normally priced below market value. The buyers, believing they were receiving a "good deal" from a reputable dealer, and from a fellow countryman, would wire the full price to the United States to bank accounts controlled by KAPUSTIN.

3. Simply put, the fraud consisted of a litany of false and fraudulent representations by KAPUSTIN, or one of his employees, as to ownership of the cars purchased, their condition, and reasons for the delay in delivery, as well as excuses for his refusal to refund their purchase prices. Unbeknownst to the victims, KAPUSTIN more often than not had neither possession of, nor title to the vehicles being sold. Indeed, even after full price would be paid, the same car oftentimes would remain on the KAPUSTIN website, causing the buyers

additional anxiety. At some point after the excuses became untenable, the victim would be offered a different, often inferior car, burdened with added shipping and storage costs. The unsophisticated buyer, desperate to acquire something for money already spent, would oftentimes wire even additional funding to rescue the car from its storage, all to no avail.

4. Even if these spurious additional charges had been paid, the cars never materialized. Those very few cars that did land in Kotka were normally the product of salvage auctions for vehicles that had been immersed in or flooded with salt water, as had occurred to hundreds of vehicles during Hurricane Sandy. When viewed online, or even in person, they would appear to be in excellent condition, yet were inoperable and thus unsalvageable. As many as one hundred and forty five (145) buyers were victimized by KAPUSTIN's scheme to defraud, and those who have been interviewed all tell comparable stories. Refunds, however small, were few and far in between. Only a handful of buyers were able to recover a fraction of their money. In most instances, their losses were total; most cars were priced between \$20,000 and \$50,000.

MANNER and MEANS

5. **Victim 1** has attested that, in or about January 2013, he\she searched the internet and found the GLOBAL Auto website: (a) on January 13, 2013, Victim 1 spoke with a KAPUSTIN employee at GLOBAL about the purchase of a Lexus; (b) based upon his representations, on January 22, 2013, Victim 1 wired \$36,900, the full purchase price for the Lexus, from his bank in Russia to a GLOBAL bank account in the United States; (c) unbeknownst to Victim 1, the vehicle had been auctioned to another purchaser; (d) KAPUSTIN had neither possession, nor title to the car; (e) between February 5th and 12th, 2013, Victim 1 called repeatedly from Russia to GLOBAL seeking information, yet was given multiple excuses why the car was unavailable; (f) Victim 1 spoke to employees of GLOBAL and to KAPUSTIN directly, who mocked her attempts

to secure a refund, and advised that none would be forthcoming; and, (g) no refund was recovered from Victim 1.

6. **Victim 2** has attested that, in or about November 2012, he\she searched the internet and found KAPUSTIN's GLOBAL Auto website: (a) Victim 2 intended to purchase a Toyota Venza; (b) Victim 2 was told by a KAPUSTIN employee that the car would be shipped to Kotka, Finland, after full price was paid; (c) on November 6, 2012, Victim 2 wired \$16,920 from his bank in Russia to KAPUSTIN's GLOBAL Auto's bank account in the United States, in full payment for the Venza; (d) within a week, Victim 2 received an email from a GLOBAL employee that the car had been damaged in Hurricane Sandy and that another vehicle, same make and model, was available for an additional fee of \$6000; (e) on November 14, 2012, Victim 2 wired the additional \$6000 from his Russian bank account to KAPUSTIN's GLOBAL bank account in the United States for the replacement Venza; (f) in December 2012, KAPUSTIN told Victim 2 that the car was in Kotka, Finland but couldn't be released, and Victim 2 was told to call CarCont, Ltd in Kotka for an explanation; (g) CarCont, Ltd. refused to release the car, without significant additional charges; (h) unable to determine if his\her car in fact was in Kotka, Victim 2 sought, but was refused, a refund of the \$22,920 purchase price.

7. **Victim 3** has testified, under oath, that, in or about November 2013, he\she searched the internet and found KAPUSTIN's GLOBAL website: (a) Victim 3 spoke to an employee at GLOBAL, about a Mercedes Benz #1 purportedly owned by GLOBAL; (b) On November 13, 2013 Victim 2 wired \$39,900 from his bank account in Russia into KAPUSTIN's GLOBAL's bank account, in the United States, in full payment for the vehicle; (c) KAPUSTIN's employee convinced Victim 3 to purchase Mercedes Benz #2, so that two cars could be shipped in a single unit; (d) on November 29, 2013 Victim 3 wired an additional \$11,470 from his\her bank account in Russia to KAPUSTIN's GLOBAL bank account in the United States, in partial payment for Mercedes

Benz #2; (e) in February 2014, Victim 3 was advised that Mercedes Benz #1 was unavailable and Victim 3 was asked to accept a substitute; (f) unbeknownst to Victim 3, Mercedes Benz #1 had been declared unsalvageable on November 13, 2013 before Victim#3 had paid full price; (g) furthermore, KAPUSTIN never had title to Mercedes #2, for which Victim 3 made partial payment; (h) Victim 3 was asked by KAPUSTIN's employee to transfer the total amount of his \$51,390 toward a newer Mercedes Benz 3, to which Victim 3 ultimately agreed; (i) Mercedes Benz 3 was never delivered; (i) over the next few months into the Spring of 2014, Victim 3 spoke repeatedly to KASPUTIN and another employee about a refund, but KAPUSTIN refused; (i) to intimidate Victim 3 into abandoning any civil action, KAPUSTIN threatened his own civil charges against Victim 3, which he claimed would cost Victim 3 even more money, than he had already paid. (j) KAPUSTIN bragged that he knew how to use the court system here in the United States to his advantage.

8. In addition to the testimony by several defrauded buyers, the grand jury, pursuant to subpoenas, has recovered additional documents which underscore the fraud; such as Carfax reports on cars offered for sale by KAPUSTIN. CARFAX¹ reported at most, if not all, of the vehicles purchased by the overseas victims were vehicles for which KAPUSTIN did not have possession or title, and therefore had no ability to deliver, even if operable. Furthermore, many of the advertised vehicles were revealed to be branded with salvage title.² In respect to those few vehicles for which KAPUSTIN actually had title, those vehicles had already been sold in the United States. Bank records from KAPUSTIN accounts, beginning as early as January 2009, reflect wire transfers from dozens of victims, and the absence of any apparent refunds.

¹ CARFAX, Inc. is a commercial website (www.carfax.com) that provides vehicle history reports based on a vehicle's unique identification number, or VIN.

² "Salvage Title" is a form of vehicle branding denoting that the vehicle is a total loss or severely damaged by an insurance company. A salvage title is issued when a car is written off as a total loss by an insurance company.

9. Based upon my training and experience, the statement of victims, and as a result of conspiratorial actions and inactions, false representations and outright lies of KAPUSTIN and his coconspirators, including those described above, it is my conclusion that defendant KAPUSTIN, and others were unable to provide either the cars, or the titles to the cars, for which victims made payment and hence has committed wire fraud, pursuant to Title 18, United States Code, sections 1343 and 1349.

APPENDIX “2”

to Status Report of January 15, 2017

**UNITED STATES DISTRICT COURT
DISTRICT OF NEW JERSEY**

Ardak Akishev, et al., Plaintiffs, v. Sergey Kapustin, et al., Defendants.	Civil Action No. 13-7152(NLH)(AMD) OPINION
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APPEARANCES:

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On behalf of intervenor DK International Trading Inc.

HILLMAN, District Judge

Presently before the Court is the motion of intervenor DK
International Trading Inc. for relief from the Court's freeze

order (Docket No. 351), and the motion of defendant Sergey Kapustin to invalidate the default judgment entered against him (Docket No. 368). For the reasons expressed below, both motions will be denied.¹

BACKGROUND

The history of this case, which the Court has described as labyrinthine, has been set forth several times. (See, e.g., Docket No. 358.) For context to resolve the two pending motions, the Court restates the following background:

Procedural history of this case in this Court

Global Auto Enterprise is a group of individuals (four family members and at least one employee) and affiliated

¹A third motion [Docket No. 347] will also be denied. In his motion, defendant Sergey Kapustin seeks to disqualify Plaintiffs' counsel from pursuing cross-claims he assigned to the plaintiffs in an attempt to satisfy plaintiffs' claims against him. First, nothing in Kapustin's motion serves to undermine that assignment. Second, his claim that plaintiffs' counsel have sought to sell two cars that had been previously sold to others is undermined by Kapustin's own statements to this Court that he owned those cars free and clear. Third, his apparent disagreement with Plaintiffs' counsel about the merits of the cross-claims is suspect as he himself brought those claims in the first instance and has repeatedly asserted to this Court that his failure to deliver certain cars to Europe was the fault of the cross-claim defendants. That he now suggests otherwise is likely another example of his repeated efforts to change his position to suit the argument of the day. Here, as set forth in Plaintiffs' response, the attempt to undermine the cross-claims through vague and unsupported allegations and conspiratorial musings appears to be in retaliation for Plaintiffs' efforts to obtain judgment against his close family members. Whatever the motivation may be, in the end, this disagreement over the merits of the cross-claims is just that, a disagreement, and will resolve itself when the cross-claims are fully litigated. It does not provide a reason to disqualify counsel.

entities owned by the same family members who ran a fraudulent internet auto sales scheme. The fraud is commonly known to law enforcement as a "bait and switch" tactic. Global Auto Enterprise targets online and often unsophisticated foreigners from the former Soviet Union by advertising vehicles slightly below the market value on its glamorous websites GlobalAutoUSA.com and EffectAuto.com. In order to lure the victims, Global Defendants provided false odometer readings or did not disclose the mileage at all or withheld the information that the vehicle had been declared "total loss" after an accident or flooded by hurricane Sandy with a "Salvage" title issued. Rather than disclosing the true condition of the car, they assured the victims that the cars were in "excellent" condition. Most vehicles advertised on the websites did not actually belong to any Defendants. Instead, they used images of cars and information about them gathered from other online car sales sites to advertise these vehicles as "bait." Once Plaintiffs wired the purchase price, the "switch" part of the fraud began.

Defendants wrote apologetic emails that they were encountering delays in delivery and refused to issue any refunds. These kinds of "lulling" communications are typical of this type of fraud. Months later, the buyers were offered a different car for just a few thousand more. Buyers - by then desperate to get anything at all out of the deal - wired additional money. Plaintiffs Kondratuk, Borzenko, Maniashin,

Lisitsyn, Pukir, Lukyanov, the Yamkoviys were pushed to make several international wire transfers.

After the switch, even Plaintiffs (Kobin, Telin, Borzenko and the Zverevs) who were seemingly getting a different car for the same price also got hit with unloading fees, port fees, transportation fees, storage fees, customs fees, and other fees, in excess of several thousand dollars, that were not previously disclosed to them. That was also a scheme to push the victims to cancel the purchase and simply retain the proceeds. Global Auto Enterprise refused to release the cars unless those charges are paid.²

On April 4, 2014, Plaintiffs filed an Amended Complaint. On June 3, 2014, Plaintiffs filed their Motion for an Order to Freeze the Assets of Defendants and Expedited Discovery Related to Assets pursuant to Federal Rule of Civil Procedure 65 ("Asset Freeze Motion") representing the funds Plaintiffs wired to the bank accounts of corporate Global Defendants. On September 5, 2014, the Court held an evidentiary hearing on the Asset Freeze Motion.

On September 23, 2014, to avoid the immediate freeze of the corporate Global Defendants' bank accounts, Plaintiffs and

²In a related version of the fraud, defendants would explain that unexpected repairs were needed on the car and demanded payment to cover these costs. As noted below, in yet another permutation of the extensive fraud scheme and whether he owned or had access to the car or not, Kapustin, by his own admission under oath, would often sell the same car to two different victims.

Global Defendants agreed to and the Court entered the Consent Order, Docket No. 80, to deposit into the registry of the Court \$400,000.00 in monthly installments within 90 days of the Consent Order and to provide expedited discovery related to the disposition of Plaintiffs' funds and Defendants' assets.

This turned out to be another lulling technique with this time the Court as the victim as Kapustin would later admit he had no ability to satisfy the terms of the Consent Order at the time it was approved by the Court and entered at his request. On October 7, 2014, in order to evade his obligations under the Consent Order, Defendant Sergey Kapustin filed his Chapter 13 Bankruptcy Petition (Case No. 14-30488).

On October 24, 27, 28, 29 and November 3, 2014, the Court held evidentiary hearings during which it was established that while Global Defendants websites www.globalautousa.com, www.effectauto.com, and www.effectauto.ru ("Websites") advertised over 4,000 vehicles as "in stock", Defendant Kapustin testified only about 14 vehicles were actually owned by the corporate Global Defendants, and some vehicles were sold twice through the Websites to foreign customers using electronic mail communications and international bank wire payments.

Based on the evidence presented the Court made its preliminary finding that plaintiffs had shown by a preponderance of the evidence that the Global Defendants had

committed at least two predicate acts of mail and wire fraud in the furtherance of a RICO enterprise through a pattern of racketeering activity conducted operating through the Internet; on October 27 and October 29, 2014, this Court ordered that the Defendants' corporate bank accounts to be frozen and the Websites to be shut down immediately. (Docket Nos. 106; 110).

On November 4, 2014, corporate Global Defendants filed their Chapter 7 bankruptcy petitions (Global Auto Sales (Case No. 14-32520), Effect Auto Sales, Inc. (Case No. 14-32521), G Auto Sales, Inc. (Case No. 14-32522) and SK Imports, Inc. (Case No. 14-32523). The bankruptcies were subsequently dismissed for bad faith pursuant to Sections 105(a), 305(a), 349 and 707(a) of the Bankruptcy Code.

On February 17, 2015, Plaintiffs moved for sanctions against Global Defendants and their counsel ("Sanctions' Motion") including entering a default judgment as a sanction for their continuing litigation misconduct including numerous fraudulent representations to the Court, dissipation of assets in order to avoid compliance with the Consent Order, concealment of assets in foreign jurisdictions, filing bankruptcy petitions in bad faith for the purpose of invoking the automatic stay and frustrating this Court's jurisdiction, continuing delay resulting in significant prejudice to Plaintiffs.

On April 27, 2015, the Court held an evidentiary hearing and granted the Plaintiffs' Sanctions Motion. On May 27, 2015, Plaintiffs submitted their Application to Assess Damages for Default Judgment. On June 29, 2015, the Court held a hearing on plaintiffs' motion for default judgment, DK Internationals' request to intervene, and other issues related to defendants' assets. On July 2, 2015, the Court issued a "freeze order" to prevent Kapustin and the Global defendants from dissipating or otherwise touching their assets in order to halt defendants' fraudulent actions.

On September 4, 2015, the Court held an evidentiary hearing and made the finding that Global Defendants were responsible for executing and masterminding the "bait and switch" fraud scheme targeting online and often unsophisticated foreigners from the former Soviet Union and other countries by advertising vehicles for sale below the market value. Defendant Kapustin, as owner of corporate Global Defendants, exercised complete dominion and control over the corporations and used the corporations as his alter egos for his own purposes, making all the decisions including the decisions to defraud Plaintiffs.

The Court further made its finding that Defendant Sergey Kapustin and the corporate Global Defendants are a group of RICO persons, Global Companies Enterprise, associated in fact for the common purpose of engaging in fraudulent conduct constituting a RICO enterprise defined in 18 U.S.C. § 1961(4)

functioning together as a continuing unit, each of them necessary to accomplish each step or aspect of the fraudulent scheme. Defendant Sergey Kapustin and corporate Global Defendants acted in concert for the shared goal of defrauding overseas car buyers and receiving profits from the fraudulent scheme. This enterprise affected interstate and foreign commerce because it exported vehicles to foreign countries and both sent and received funds through banks in the United States and abroad.

Defendant Sergey Kapustin, who is a person within the meaning of RICO, managed and participated in conduct of the Global Companies Enterprise through a pattern of racketeering activity in violation of 18 U.S.C. §1962(c), including multiple acts of wire fraud, mail fraud, and financial fraud. The Court found that Global Defendants engaged in the pattern of racketeering activity, which included related violations of 18 U.S.C. § 1343 (wire fraud); 18 U.S.C. § 1341 (mail fraud); 18 U.S.C. § 1956 (money laundering); 18 U.S.C. § 1957 (engaging in monetary transactions in property derived from unlawful activity); 18 U.S.C. § 1952 (Travel Act), and 18 U.S.C. § 1912 (witness intimidation), as included in 18 U.S.C. 1961(1).

The pattern of the racketeering activity began no later than some time in 2008 resulting in an investigation by Attorney General for the State of New Jersey Division of Consumer Affairs of deceptive conduct of Global Auto

Enterprise, resulting on November 19, 2010, in the consent judgment for injunctive relief, civil penalties, legal fees and restitution to victims. The scheme continued in 2012 when Global Defendants committed predicate acts of racketeering towards Plaintiffs Yamkoviys, and continued through February 2014, when Defendants committed acts of wire fraud (18 U.S.C. § 1343) towards Plaintiff Pukir. Global Defendants continued the pattern by filing fraudulent bankruptcies. Global Defendants' acts were arranged and ordered so as to exhibit both a relation between the predicate acts and the threat of continuing unlawful activity.

Defendants' acts of mail fraud, wire fraud, and financial fraud were open-ended and occurring on an ongoing and daily basis targeting overseas car buyers from GlobalAutoUSA.com and other websites registered by Global Defendants with the intent to defraud foreign buyers. Plaintiffs were directly and proximately harmed by Global Defendants' predicate acts of racketeering, including wire fraud, mail fraud, and Travel Act violations, which resulted in ascertainable financial losses to the Plaintiffs.

Background of DK International's involvement in this case

On November 10, 2014, intervenor DK International³ was granted judgment in its favor by the Superior Court of New Jersey on its claims against Kapustin and its entities,

³ DK International's motion to intervene was granted on December 9, 2015. (Docket No. 304.)

finding that defendants were engaged in fraudulent business practices. DK International had an agreement with the Global Defendants where DK International would fund vehicles purchased by the Global defendants, and it would be reimbursed for those costs, along with half of the profits of the sale of those vehicles. Kapustin and the Global defendants failed to reimburse DK International for \$207,932.50. After a bench trial, the state court judge entered judgment in DK International's favor in that amount, along with \$50,000.00 in punitive damages because of the defendants' "egregious" fraud. (Docket No. 351-2 at 5.) DK International seeks to be relieved of the Court's July 1, 2015 order⁴ freezing defendants' assets so that it may enforce its November 10, 2014 judgment, which was domesticated on May 7, 2015. (Docket No. 351.)

Issues currently pending before the Court

DK International seeks relief from the freeze order on several bases. An additional basis arose during the pendency of DK International's motion when the United States Supreme Court issued a decision on the extraterritorial reach of the RICO statute: RJR Nabisco, Inc. v. European Community, 136 S. Ct. 2090, 2096 (2016). DK International has supplemented its motion to be relieved from the freeze order by arguing that the default judgment entered against Kapustin and the Global

⁴ The Freeze Order was dated July 1, 2015, but it was docketed on July 2, 2015.

defendants has been invalidated by the RJR Nabisco case, which determined that relief under RICO is unavailable to foreign private party plaintiffs if their damages were not incurred in the United States.

DK International argues that without any valid default judgment, there cannot be any valid freeze orders related to those RICO violations, and the Court should therefore dissolve the Order freezing defendants' assets. (Docket No. 363.) Kapustin has filed a motion to vacate the default judgment entered against him on the same basis. (Docket No. 368.) Plaintiffs have opposed both motions on all the bases presented.

DISCUSSION

A. Subject Matter Jurisdiction

The Court has subject matter jurisdiction over this action pursuant to 28 U.S.C. § 1331 and 18 U.S.C. § 1964(c). The Court has supplemental jurisdiction over state law claims under 28 U.S.C. § 1367.

B. Analysis

The resolution of the pending motions involves two separate analyses. First, the Court must consider the impact of RJR Nabisco, Inc. v. European Community, 136 S. Ct. 2090, 2096 (2016) on this case. Second, the Court must determine whether DK International may be permitted to enforce its November 10, 2014 judgment due to the existence of the July 1, 2015 freeze order.

1. Whether the Court must vacate the default judgment entered against Kapustin and the Global defendants pursuant to RJR Nabisco, Inc. v. European Community, 136 S. Ct. 2090 (2016).

DK International and Kapustin have seized upon a succinct sentence in the Supreme Court's decision in RJR Nabisco, Inc. v. European Community, 136 S. Ct. 2090 (2016), to invalidate the default judgment entered against Kapustin and the Global defendants for their violations of RICO. The Supreme Court held, "Section 1964(c) requires a civil RICO plaintiff to allege and prove a domestic injury to business or property and does not allow recovery for foreign injuries." RJR Nabisco, 136 S. Ct. at 2111. These parties argue that because the foreign plaintiffs suffered their injuries in Russia - i.e., they lost their money in Russia for cars that were purchased in Russia but never delivered to Russia - they have not incurred a domestic injury to support a private cause of action under RICO.⁵ Putting aside the issue of whether the RJR Nabisco case applies retroactively,⁶ the Court disagrees

⁵ Although DK International has written two letters to the Court regarding the applicability of the RJR Nabisco case (Docket No. 363 and 370), DK International has not been granted its request to file a supplemental brief to more formally express its view on RJR Nabisco. As DK International notes in its second letter (Docket No. 370), the Court has an independent obligation to assess subject matter jurisdiction, Zambelli Fireworks Mfg. Co. v. Wood, 592 F.3d 412, 420 (3d Cir. 2010), and, under Fed. R. Civ. P. 60(d), the Court may independently relieve a party from an order. Thus, additional briefing by DK International on the current issues before the Court is not necessary.

⁶ It appears that the decision in RJR Nabisco does apply retroactively. See Harper v. Virginia Dept. of Taxation, 509

with DK International's and Kapustin's view that the plaintiffs have not suffered a domestic injury within the meaning of the RICO statute.

In RJR Nabisco, the European Community and 26 of its member states (hereinafter "EC") sued RJR and numerous related entities for their alleged participation in a global money-laundering scheme in association with various organized crime groups. EC first sued RJR in the Eastern District of New York in 2000, alleging that RJR had violated RICO, and the case spread into several actions over 16 years. RJR Nabisco, 136 S. Ct. at 2097.

Greatly simplified, the complaint alleges a scheme in which Colombian and Russian drug traffickers smuggled narcotics into Europe and sold the drugs for euros that—through a series of transactions involving black-market money brokers, cigarette importers, and wholesalers—were used to pay for large shipments of RJR cigarettes into Europe. In other variations of this scheme, RJR allegedly dealt directly with drug traffickers and money launderers in South America and sold cigarettes to Iraq in violation of international sanctions. RJR is also said to have acquired Brown & Williamson Tobacco Corporation for the purpose of expanding these illegal activities. The complaint alleges that RJR engaged in a pattern of racketeering activity consisting of numerous acts of money laundering, material support to foreign terrorist organizations, mail fraud, wire fraud, and violations of the Travel Act. RJR, in concert with the other participants in the scheme, allegedly formed an association in fact that was engaged in interstate and foreign commerce, and therefore constituted a RICO enterprise that the complaint dubs the "RJR Money-Laundering Enterprise." . . .

U.S. 86, 97 (1993) ("When this Court applies a rule of federal law to the parties before it, that rule is the controlling interpretation of federal law and must be given full retroactive effect in all cases still open on direct review and as to all events, regardless of whether such events predate or postdate our announcement of the rule.").

These violations allegedly harmed [EC] in various ways, including through competitive harm to their state-owned cigarette businesses, lost tax revenue from black-market cigarette sales, harm to European financial institutions, currency instability, and increased law enforcement costs.

Id. at 2098.

The Supreme Court was tasked with answering two questions: (1) Do RICO's substantive prohibitions contained in § 1962, violations of which are subject to criminal penalties, apply to conduct that occurs in foreign countries? and (2) Does RICO's private right of action, contained in § 1964(c), apply to injuries that are suffered in foreign countries? Id. at 2099-2100.

The Supreme Court began its analysis by reviewing the law of extraterritoriality. With regard to the first question, the Supreme Court found that each of RICO's substantive prohibitions contained in § 1962 requires proof that a RICO enterprise "engage[d] in, or affect[ed] in some significant way, commerce directly involving the United States--e.g., commerce between the United States and a foreign country." Id. at 2015. In other words, an alleged pattern of racketeering activity must consist "of predicate offenses that were either committed in the United States or committed in a foreign country in violation of a predicate statute that applies extraterritorially."⁷ Id.

⁷ The Supreme Court found that EC's allegations that RJR violated §§ 1962(b) and (c) did not involve an impermissible

The Supreme Court set a different standard for RICO's private right of action provided in § 1964(c). The Supreme Court's focus was not on the conduct of the enterprise, but rather where the private RICO plaintiff suffered his injury. Even though § 1964(c) allows "[a]ny person injured in his business or property by reason of a violation of section 1962" to sue for treble damages, costs, and attorney's fees, the Supreme Court found that § 1964(c) did not overcome the presumption against extraterritoriality. Id. at 2016.

The Supreme Court emphasized that the question presented was whether a court has authority to recognize a private cause of action under U.S. law for injury suffered overseas, and noted that "[n]othing in § 1964(c) provides a clear indication that Congress intended to create a private right of action for injuries suffered outside of the United States." Id. at 2108, 09. The Supreme Court observed that "providing a private civil remedy for foreign conduct creates a potential for international friction beyond that presented by merely applying U.S. substantive law to that foreign conduct." Id. at 2106.

For example, to apply U.S. remedies could unjustifiably permit foreign citizens "to bypass their own less generous

extraterritorial application of RICO, but it did not decide whether the complaint satisfied any other requirements of RICO, or whether the complaint in fact made out violations of the relevant predicate statutes. RJR Nabisco, 136 S. Ct. at 2106 and 2106 n.8.

remedial schemes, thereby upsetting a balance of competing considerations that their own domestic [] laws embody.” Id. 2106-07 (citation omitted). The Supreme Court further observed that even though “a risk of conflict between the American statute and a foreign law is not a prerequisite for applying the presumption against extraterritoriality, where such a risk is evident, the need to enforce the presumption is at its apex.” Id. at 2107 (quotations and citation omitted).

Accordingly, the Supreme Court concluded, “Section 1964(c) requires a civil RICO plaintiff to allege and prove a domestic injury to business or property and does not allow recovery for foreign injuries.”⁸ Id. at 2111.

DK International and Kapustin argue that plaintiffs’ RICO claims brought pursuant to § 1964(c) are exactly those that the Supreme Court deemed to be barred by the presumption against extraterritoriality. The Court does not agree. Simply because plaintiffs reside in Russia and never physically traveled to the United States does not automatically classify their injuries to be “foreign.”

As the Supreme Court cautioned at the conclusion of RJR Nabisco, “[t]he application of [the domestic injury] rule in any given case will not always be self-evident, as disputes

⁸ The Supreme Court ultimately concluded that the remaining RICO damages claims rested entirely on injuries suffered abroad and must be dismissed. RJR Nabisco, 136 S. Ct. at 2111.

may arise as to whether a particular alleged injury is 'foreign' or 'domestic.'" Id. at 2111. The Supreme Court did not delve into how injuries are to be classified as foreign or domestic, but the classification of an injury cannot simply be based on a plaintiff's residence.⁹ A deeper analysis must be performed on the facts of each case.

It is true that plaintiffs live in Russia, and several former USSR Republics, and they never set foot in the United States. They shopped from Eastern Europe for cars on the internet, and wired money from their home countries from foreign accounts to purchase their cars. Defendants failed to ship their cars to Eastern Europe, and defendants failed to return their money to Eastern Europe. The key to this case is that plaintiffs suffered their injuries the moment they clicked the computer mouse - on a United States-based website representing United States-based car dealerships - and ordered and paid for a car whose condition was materially misrepresented or did not even exist at all.

If plaintiffs traveled to the United States, went to the physical location of Kapustin's purported car dealerships in New Jersey and Pennsylvania, chose a car, paid for it on the

⁹ The Supreme Court observed that § 1964(c) of RICO does not contain specific language like the Clayton Act, which specifically allows recovery for foreign injuries. RJR Nabisco, 136 at 2110. But the Supreme Court further noted, "This does not mean that foreign plaintiffs may not sue under RICO." Id. at 2110 n.12.

spot, and arranged for the car to be shipped to Eastern Europe, plaintiffs would have suffered from a clear domestic injury when Kapustin failed to deliver the car and failed to return plaintiffs their money.

Plaintiffs' traveling by way of the internet to Kapustin's virtual United States-based car dealerships, where plaintiffs selected their car, paid for it through a wire transfer to Kapustin's U.S. bank, and arranged for shipping from the United States, should not change their injuries from domestic to foreign when Kapustin failed to deliver their cars from the United States or refund their money from the United States.

This is not a situation where an American car dealership operated a branch in Russia, either physically or virtually through a Russian-based website, and defrauded Russian customers in the same way as Kapustin has defrauded plaintiffs in this case. In that scenario, plaintiffs could not lodge a private RICO action in the United States against the American car dealership, even if the enterprise met the elements of § 1962, because the customers' injuries were suffered in Russia. This scenario is akin to RJR Nabisco, where the European Community suffered injuries at the hands of United States-based RJR Nabisco's alleged money laundering enterprise. The EC suffered injuries in their communities, and not in the United States, such as competitive harm to their state-owned cigarette businesses, lost tax revenue from black-market

cigarette sales, harm to European financial institutions, currency instability, and increased law enforcement costs.

RJR Nabisco, 136 S. Ct. at 2098.

To rule this case outside § 1964(c) would allow the United States to become a haven for internet fraud despite Congress' dual intent both to create a private cause of action under RICO and incorporate predicate acts of mail and wire fraud which extend expressly to transactions affecting foreign commerce. A person responsible for a United States-based fraudulent scheme to defraud people overseas should not escape liability under a federal law that permits private causes of action to redress that fraud simply because the scheme targets foreign citizens over the internet.

The RJR Nabisco domestic injury requirement derived from the Supreme Court's concern that foreign citizens would bypass their own less generous remedial scheme, and upset the balance of competing considerations of their own domestic laws. See id. 2106-07. That concern is not present in this case, where plaintiffs "traveled" to the United States to purchase cars represented to be located in the United States and were defrauded in that process. Plaintiffs should be afforded the same remedies available to a United States citizen who purchased a car from defendants in the exact same manner and were defrauded in the exact same scheme.

Importantly, the Plaintiffs here are not forum shopping. They have come to the place where they were induced by fraud

to send their money and where those ill-gotten proceeds were realized and retained by Kapustin and the Global Defendants. While Plaintiffs could have presumably sought relief in their domestic courts it would have likely been an exercise in futility and any judgment obtained worthless. The defendants have no assets in those countries, operate no businesses there, and have not traveled there. Indeed it was the very remoteness of the victims from the organizers of the scheme that contributed to the success of the scheme.

In a fraudulent and criminal scheme that crosses borders, the extraterritoriality analysis should be a two-way street. The Plaintiffs here could have been anywhere in the world and actually came from several countries. Defendants, however, choose to operate their fraudulent scheme from New Jersey and Pennsylvania. The locus delicti of the crimes committed is the United States. Nothing in 18 U.S.C. § 1964(c) suggests Congress intended to exclude a scenario like this one from the reach of a private victim, even a foreign one.

Consequently, the Court finds that RJR Nabisco, Inc. v. European Community, 136 S. Ct. 2090 (2016) does not require this Court to vacate the default judgment entered against Kapustin and the Global defendants based on their violations of RICO.

2. Whether DK International is precluded from pursuing its judgment against Kapustin and the Global defendants because of the Court's July 1, 2015 freeze order

As noted above, DK International seeks to be relieved of the Court's July 1, 2015 order freezing defendants' assets so that it may enforce its November 10, 2014 judgment, which was domesticated on May 7, 2015. The freeze order provided:

1. Defendants and their agents, employees, attorneys, independent contractors, officers, directors, successors, assigns and affiliates, including Preor Oy, which is controlled by the Defendants, and all persons who receive actual notice of this Order by personal service, mail, email, facsimile transmission or otherwise, are immediately **ENJOINED** from removing, withdrawing, drawing upon, pledging from, transferring, setting off, receiving, changing, selling, assigning, liquidating, or otherwise disposing of Defendants' interest in, directly or indirectly, in any assets located in the United States and in foreign countries, including but not limited any motor vehicles, real estate, cash funds, funds held in any bank accounts in the United States and foreign countries in the amount of up to \$1,500,000.00 (one million five hundred dollars).

2. Any assets, located in the United States and in foreign countries, including but not limited any motor vehicles, real estate, cash funds, funds, incoming wires, transfer funds and deposits in the names of, or subject to control by Defendants, directly or indirectly, or through their agents, employees, attorneys, independent contractors, officers, directors, successors, assigns and affiliates, including Preor Oy, located in the United States and foreign countries in the amount of up to \$1,500,000.00 (one million five hundred dollars) shall be **FROZEN AND RESTRAINED** until further Order of this Court. This Order shall also apply to all persons aiding, abetting, or acting in active concert, participation or under the control of Global Defendants.

(Docket No. 229 at 4-5.)

DK International argues that the freeze order is improper for several reasons,¹⁰ but primarily it argues that it should not be interpreted to prevent it from executing its judgment against the assets of Kapustin and the Global defendants, which are being held by Michael Hitrinov a/k/a Michael Khitrinov and Empire United Lines Co., Inc. ("EUL defendants"). The EUL defendants are in possession of 15 vehicles purportedly belonging to Kapustin and the Global defendants, and DK International's writ of execution was served by the New York County Office of the Sheriff on August 13, 2015 upon the EUL defendants.¹¹ DK International argues that it should be permitted to retrieve those vehicles to

¹⁰ One of DK International's arguments is that the freeze order is improper under the Supreme Court's decision in Grupo Mexicano de Desarrollo, S.A. v. Alliance Bond Fund, Inc., 527 U.S. 308, 332-33 (1999), where the Supreme Court held that a plaintiff who is sued for breach of contract seeking damages, a remedy at law, could not obtain a preliminary injunction against the assets of a debtor, against whom it had no judgment, that would be in effect until the resolution of the plaintiff's claims. The Grupo Mexicano case is distinguishable from the situation here, where the freeze order was issued after two years of litigation which evidenced a circus of fraudulent acts performed by Kapustin, including lying to the Court, violating court orders, and fraudulently filing bankruptcies. The Grupo Mexicano decision does not preclude the Court from imposing sanctions on a defendant or imposing equitable relief to prevent the defendant from committing further fraud.

¹¹ Plaintiffs argue that the writ of execution is invalid because it was served on the EUL defendants, which have physical possession of the vehicles but do not have ownership of the vehicles. The Court does not need to opine on the validity of the writ of execution at this time.

satisfy its judgment against Kapustin and the Global defendants.

By way of background as to how the EUL defendants came to possess the 15 vehicles in dispute, the Global entities had filed an action in the U.S. District Court for the Eastern District of New York (the "EDNY action") for breach of contract, conversion, and replevin against the EUL defendants for their continued possession of the vehicles. The Global entities then filed cross-claims against the EUL defendants in this case. The cross-claims asserted in this case were identical to the claims in the EDNY action, but were limited to the vehicles purchased by five plaintiffs.

The Global entities also alleged that the EUL defendants seized the vehicles located at the time in Elizabeth, New Jersey without any legal or equitable right. The EDNY action was dismissed, and the Global entities then amended their cross-claims here to include all claims in the EDNY action, including replevin of the Elizabeth Vehicles, and to include Sergey Kapustin as a plaintiff individually. Thus, through the assignment of the Global entities' claims against the EUL defendants, the 21 plaintiffs who were victims of Kapustin's and the Global entities' fraud are now prosecuting the claims of the Global entities against the EUL defendants.

The pending claims against the EUL defendants are in their infancy. (See Docket No. 377.) Plaintiffs have alleged in their most recent complaint that "the Empire Defendants are

unlawfully holding 15 vehicles either belonging to Crossclaim Plaintiffs or contracted to customers. The Empire Defendants have previously represented to the Court that the vehicles were located in their warehouse in Elizabeth, New Jersey (the 'Elizabeth Vehicles'). The titles to the Elizabeth Vehicles are currently in registry of this Court pursuant to the Order, dated July 14, 2015 (ECF 237). Crossclaim Plaintiffs seek injunctive relief from this Court in the form of an order compelling Defendants to immediately release the Elizabeth Vehicles, which are unlawfully held by the Empire Defendants, into the registry of this Court. Crossclaim Plaintiffs have further been forced to bring the instant lawsuit in order to recoup for lost profits and lost business suffered by Crossclaim Plaintiffs as a result of the Defendants' breach of contract and other fraudulent and illegal activities, which have resulted in direct and consequential damages in excess of \$1,000,000." (FACCC, Docket No. 274 at 2.)

In the EDNY action, and presumably in this action if they are eventually compelled to file an answer to the FACCC, the EUL defendants have denied Kapustin's and the Global defendants' right to those vehicles. Those assets were encumbered by the EDNY litigation, and they are currently encumbered by this litigation.¹² Because the ownership of the

¹² The EDNY litigation was dismissed without prejudice on October 1, 2015. On October 9, 2015, plaintiffs filed their cross-claim complaint. For eight days, the vehicles were not subject to litigation. The titles were, however, in this

subject vehicles is in dispute, any right of DK International to those vehicles is currently inchoate.

Relatedly, and most importantly for the resolution of DK International's current motion, is that the freeze order cannot be read to freeze assets (1) that do not belong to any of the defendants, or (2) where the possessory interest in those assets is in dispute.¹³ The vehicles DK International seeks to recover to satisfy its judgment currently fall in the second category, and if the EUL defendants prevail in the dispute between them and the cross-claim plaintiffs, the vehicles will fall into the first category. Only if the cross-claim plaintiffs prevail on their claims against the EUL defendants will the vehicles be subject to the freeze order.¹⁴

Court's registry, where they had been since July 14, 2015, which predates DK International's writ of execution.

¹³ The freeze order also does not prevent a judgment lien holder from having a writ of execution served onto defendants' assets. The freeze order merely prevents the disposition of any asset while the order is in effect. The priority of an asset's liens is a separate issue. Indeed, had the Court not entered the freeze order, more of defendants' assets would have dissipated through Kapustin's fraudulent actions, leaving no assets for a judgment lien holder to attach. The Court notes, however, that even with the freeze order, it appears that Kapustin's fraudulent conduct has persisted, and known and hidden assets have been further dissipated. The Court's retention of several vehicle titles at the early stage in this case has caused those vehicles to apparently be one of the only assets available to DK International and other parties harmed by Kapustin. But DK International is not precluded from seeking to enforce its judgment on defendants' other assets that may exist.

¹⁴ DK International argues that the Kapustin and the Global defendants' assignment of their claims to the plaintiffs violated the freeze order. To the extent that the freeze

Accordingly, because the Court has determined that the vehicles held by the EUL defendants are not subject to the freeze order, DK International's motion to be relieved of the freeze order to pursue those vehicles must be denied. DK International is entitled to pursue the execution of its judgment as appropriate under the laws governing a judgment creditor's lien on a debtor's property, including property that is subject to a pending legal dispute.¹⁵

CONCLUSION

The domestic injury requirement for a private cause of action under RICO announced in RJR Nabisco, Inc. v. European Community, 136 S. Ct. 2090 (2016) does not affect the validity of the default judgment entered against Kapustin and the Global defendants because plaintiffs have suffered domestic injuries. With the default judgment intact, the July 1, 2015 freeze order based on defendants' RICO violations remains intact. The freeze order was not improperly entered, and it does not preclude DK International from its rights to enforce

order does not apply to inchoate claims, the assignment was not in violation of the freeze order because the defendants' claims are pending. The continuing viability of the freeze order will need to be addressed, however, if and when the currently inchoate claims become choate.

¹⁵ The Court placed into the registry the titles of the "Elizabeth vehicles" as a measure to protect those assets from Kapustin's extensive and continuing fraudulent actions. Unless DK International informs the Court otherwise, the Court's retention of these titles does not prohibit a judgment lien holder's rights to that property as set forth by the applicable state law governing those rights.

its judgment under the appropriate law governing attachment of a debtor's assets. Based on these findings, the Court must deny both DK International's motion for relief from the freeze order and Kapustin's motion to vacate the default judgment.

An appropriate Order will be entered.

Date: December 8, 2016
At Camden, New Jersey

s/ Noel L. Hillman
NOEL L. HILLMAN, U.S.D.J.

APPENDIX “3”

U.S. District Court
District of New Jersey [LIVE] (Newark)
CRIMINAL DOCKET FOR CASE #: 2:16-mj-03662-MF-1

Case title: USA v. KAPUSTIN

Date Filed: 12/22/2016

Assigned to: Magistrate Judge Mark Falk

Defendant (1)**SERGEY KAPUSTIN**

represented by **CAROL GILLEN**
FEDERAL PUBLIC DEFENDERS OFFICE
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LEAD ATTORNEY
ATTORNEY TO BE NOTICED
Designation: Public Defender or
Community Defender Appointment

Pending Counts

None

Disposition**Highest Offense Level (Opening)**

None

Terminated Counts

None

Disposition**Highest Offense Level (Terminated)**

None

Complaints

18:1349.F - ATTEMPT AND
CONSPIRACY TO COMMIT MAIL
FRAUD

Disposition**Plaintiff****USA**represented by **V. GRADY O'MALLEY**

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Date Filed	#	Docket Text
12/22/2016	<u>1</u>	SEALED COMPLAINT as to SERGEY KAPUSTIN (1). (LM,) (Entered: 12/27/2016)
12/22/2016	<u>3</u>	Order to Seal Case as to SERGEY KAPUSTIN. Signed by Magistrate Judge Mark Falk on 12/22/16. (LM,) (Entered: 12/27/2016)
12/29/2016		Arrest of SERGEY KAPUSTIN (nm,) (Entered: 12/30/2016)
12/29/2016	<u>4</u>	Minute Entry for proceedings held before Magistrate Judge Joseph A. Dickson: Initial Appearance as to SERGEY KAPUSTIN held on 12/29/2016, Attorney Appointment Hearing as to SERGEY KAPUSTIN held on 12/29/2016 (CD #ECR.) (nm,) (Entered: 12/30/2016)
12/29/2016	<u>6</u>	ORDER APPOINTING FEDERAL PUBLIC DEFENDER as to SERGEY KAPUSTIN CAROL GILLEN for SERGEY KAPUSTIN appointed.. Signed by Magistrate Judge Joseph A. Dickson on 12/29/16. (nm,) (Entered: 12/30/2016)
12/29/2016	<u>7</u>	ORDER OF DETENTION as to SERGEY KAPUSTIN. Defendant remanded w/o prejudice. Signed by Magistrate Judge Joseph A. Dickson on 12/29/16. (nm,) (Entered: 12/30/2016)
12/29/2016		WAIVER of Preliminary Examination or Hearing by SERGEY KAPUSTIN placed on the record. (nm,) (Entered: 12/30/2016)
02/08/2017	<u>8</u>	ORDER TO CONTINUE - Ends of Justice as to SERGEY KAPUSTIN: Time excluded from 2/7/17 until 4/7/17. Signed by Magistrate Judge Mark Falk on 2/8/17. (LM,) (Entered: 02/08/2017)
03/01/2017	9	TEXT ORDER as to SERGEY KAPUSTIN - Bail Hearing set for 3/2/2017 at 1:30 p.m. in Newark - Courtroom 2C before Magistrate Judge Michael A. Hammer. So Ordered by Magistrate Judge Michael A. Hammer on 3/1/2017. (jqb,) (Entered: 03/01/2017)
03/02/2017	<u>10</u>	Minute Entry for proceedings held before Magistrate Judge Michael A. Hammer: Bail Hearing as to SERGEY KAPUSTIN held on 3/2/2017. Defendant released on a co-signed \$200,000 unsecured appearance bond, PTS supervision, travel restrictions, etc. (ECR) (jqb,) (Entered: 03/07/2017)
03/02/2017	<u>11</u>	ORDER Setting Conditions of Release as to SERGEY KAPUSTIN (1) \$200,000 unsecured appearance bond, PTS supervision, no contact with victims/witnesses, home detention with electronic monitoring, employment restrictions, etc. (Finance notified). Signed by Magistrate Judge Michael A. Hammer on 3/2/2017. (jqb,) (Entered: 03/07/2017)
03/02/2017	<u>12</u>	Unsecured Appearance Bond Entered as to SERGEY KAPUSTIN in amount of \$200,000.

(jqb,) (Entered: 03/07/2017)

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